

AVIATION LEGISLATION

Licence category B1 / B2



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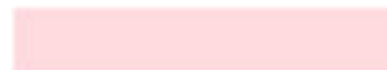
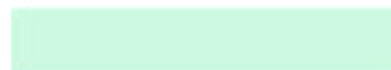
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10.1 Regulatory Framework

Role of the International Civil Aviation Organisation (ICAO)

The International Civil Aviation Organisation (ICAO) is an autonomous agency of the United Nations which primary role is to provide a set of standards and techniques of the international air navigation, of the routes and airports and promote the planning and development of international air transport to ensure safety and security with attention to the aspects of environmental protection.

The ICAO counsel:

- It adopts the standards (compulsory for the state members) recommendations (not compulsory) regarding air navigation and civil aviation;
- It defines the protocols on the investigations on accidents followed by transport safety authorities of the signatory countries of the International Civil Aviation Convention, better known as the Chicago Convention.

The ICAO headquarters is located in the Quartier International of Montréal, Quebec, Canada.



Figura 1 ICAO crest

ICAO should not be confused with IATA (International Air Transport Association), an organization of air company also based in Montreal. ICAO and IATA have developed a code system for the airports and air companies. The ICAO uses a code made-up of 4 letters for airports and 3 letters for airlines.



Figura 2 Map of world regions classified according to the first letter of the ICAO airport code



Chicago Convention

On 1 November 1944, at the initiative of the American government, a conference was held in Chicago whose purpose was to standardize at international level the main rules and procedures of air traffic.

The need of these standardization arose from the increase in air traffic.

The ICAO started with the name of PICAO as a temporary counsel within the assembly. Aim of the PICAO was to elaborate and coordinate the transitional rules to be adopted for a period of 3 years in order to lay the groundwork for an international civil aviation organization.

The PICAO become ICAO during the plenary assembly held during May and June of the 1946 in Montreal, place that become the definitive headquarter of the ICAO.

The Chicago Convention freely and voluntarily signed by the Contracting States, it expresses its effectiveness through its own rules contained in the attached (or annexes) to the Convention itself and which are the international minima expressed in the form of:

- **INTERNATIONAL STANDARDS (Standard Practices)**

any specification whose application is universally considered essential for the safety and regularity of international air navigation, to which each Contracting State must conform and comply with the rules contained in art. 38 of the Convention;

- **RECCOMENDED PRACTICES**

any standard whose application is recognized as highly desirable and necessary for the safety, regularity and technical and economic efficiency of international air navigation. In this case it is a question of advice or better recommendations issued by the ICAO in the interests of the security and common prosperity of the aviation of all civilized countries.

ICAO moreover defines the following parameters:

- **ISA, International Standard Atmosphere**
air standard, to calibrate the instruments (established at sea level):
 - **Temperature**
15 °C
 - **Pression**
1013,25 hPa (29,92 Hg or 760 mmHg)
 - **density**
1,225 kg / m³
 - **MSL, Medium Sea Level**
45 ° latitude (dry, without humidity)
 - **vertical thermal gradient**
- 6,5 °C × 1000 m / -2 °C × 1000 ft
 - **vertical baric gradient**
-1 hPa each 27 ft
 - **nautical mile**
1,852 km
 - **knot**
1 nm/h (nautical mile/hour)
 - **terrestrial mile**
1,609 km

The Annexes represent the international willingness to standardize rules and procedures related to the operation of air navigation in order to ensure an ordered and safe development of international civil aviation.

The technical-legal regulation contained in the Annexes includes standard rules and recommended practices (Standards and Recommended Practices); the annexes are 19:

- **Annex 1**
Personnel Licensing
- **Annex 2**
Rules of the Air
- **Annex 3**
Meteorological Service for International Air Navigation
- **Annex 4**
Aeronautical Charts
- **Annex 5**
Units of Measurement to be Used in Air and Ground Operations
- **Annex 6**
Operation of Aircraft
- **Annex 7**
Aircraft Nationality and Registration Marks
- **Annex 8**
Airworthiness of Aircraft
- **Annex 9**
Facilitation

- **Annex 10**
Aeronautical Telecommunications
- **Annex 11**
Air Traffic Services
- **Annex 12**
Search and Rescue
- **Annex 13**
Aircraft Accident and Incident Investigation
- **Annex 14**
Aerodromes
- **Annex 15**
Aeronautical Information Services
- **Annex 16**
Environmental Protection
- **Annex 17**
Security: Safeguarding International Civil Aviation Against Acts of Unlawful Interference
- **Annex 18**
The Safe Transport of Dangerous Goods by Air
- **Annex 19**
Safety Management

Beyond the annexes, ICAO produces the so-called Docs, which represent the implementing decrees of the annexes, whose contents are voluntarily generic and vast.

Some examples:

- **Doc 7910**
Location Indicators
- **Doc 9432**
Manual of Radiotelephony
- **Doc 8585**
Designators for aircraft operating, aeronautical authorities and services airlines
- **Doc 4444**
Air Traffic Management
- **Doc 8643**
Aircraft type Designators
- **Doc 8973**
It contains detailed procedures and guidelines that act as a reference point, not mandatory, for State members in the adoption and updating of their national security programs.
- **Doc 9859**
Safety Management Manual

Role of the European Commission (EC)

European Commission is one of the main institutions of the European Union, its executive body and promoter of the legislative process.

It is composed by a delegate for each state member (called Commissioner), that must be totally independent from the national government that has indicated.

European Commission:

- Represent and protect the interests of the European Union in its entirety
- has the monopoly on the power of legislative initiative, proposes the adoption of EU legislation, whose final approval lies with the European Parliament and the Council of the European Union.
- Is responsible of the execution of the political executions from the legislative organizations, manages the EU programs and the spending of its funds.

Role of European Union Aviation Safety Agency (EASA)

The European Union Aviation Safety Agency (EASA) is the control organization of the aeronautical sector of the European Union.



Figura 3 EASA Logo

Starting from December 17, 1903, in which took off the first heavier-powered aircraft, aviation never ceased to evolve. Through technical innovation, research and improvement of the design and construction processes, the aircraft has gradually carved out increasing quotas in the world industry, and in the last decades it has constituted one of the strategic sectors.

Air transport, commercial and civil, above being a social necessity is one of the factors that creates good economic repercussions, technological and productive for benefits of the states, despite periods of crisis. In fact, today, in a world characterized by globalization, the renunciation of this transport is impossible.

«The aerospace industry is crucial for the European Union due to the interest in its technological, economic and defence aspects. It is important that European countries cooperate in this sector, as none of them has a market or sufficient research and production tools to face the challenge of the main competitors on the world market. » (European Union)

To quote a few numbers, around 25 000 aircraft crosses daily the European sky and according to current air traffic trends, this number is expected to double up in the next 10-14 years.

On one hand, maintaining this level of growth implies sufficient availability in terms of airport capacity and on the other the need for a series of management reforms in the sector.

In fact, air transport, and consequently the aeronautical industry, can not leave aside issues such as quality, safety and environmental protection that must be incorporated and implemented through for example the adoption of new national and supranational legislation and bodies.

The willingness to standardize and harmonize these fields have led the state members of European Union to the idea to build an independent organization, endowed with juridical personality and own powers, able to respond to these expectations.

Member States have perceived the need to provide common European civil aviation rules on safety levels, quality standards, environmental compatibility, as well as the circulation of goods and services and cooperation with third countries.

This process, which took place on 15 July 2002, with the publication of the Regulation (EC) no. 1592/2002 in the Official Journal of the European Union, marks the creation of these rules and the birth of the European Aviation Safety Agency, based in Cologne (Germany).



Role of the European Union Member States and National Aviation Authorities

EASA Relationship



Figura 4 Map of the EASA connections with the various national authorities

The role of the Member State is to respect the European directives.
Each National Authority of the Member State must confront and collaborate with EASA.

« Enac represents Italy in the major international civil aviation organizations such as ICAO, ECAC, EASA and Eurocontrol - European Organisation for the Safety of Air Navigation; with all of them Enac undertakes a continuous and fruitful dialogue and cooperation; within each of them performs leading functions as well. »
(ENAC website)



Role of the bilateral agreements concluded by the European Commission

On September 16, 2015, the leadership of the certification services/departments of the Agência Nacional de Aviação Civil (ANAC), European Aviation Safety Agency (EASA), Federal Aviation Administration (FAA), and Transport Canada Civil Aviation (TCCA) signed a charter establishing the Certification Management Team (CMT). The CMT oversees and manages collaboration efforts to permit the development and implementation of regulatory and policy solutions common to certification issues and support greater harmonization.

In May 2016, the CMT signed its Collaboration Strategy.

There are 5 different Bilateral Agreements:

- EU – China Bilateral Agreement;
- EU – Japan Bilateral Agreement;
- EU – Brazil Bilateral Agreement;
- EU – Canada Bilateral Agreement;
- Eu – USA Bilateral Agreement.

There is also a Trade and Cooperation Agreement with the UK

The role of Regulation (EU) 2018/1139 (the Basic Regulation) and its implementing acts: Regulations (EU) No 748/2012 (Initial Airworthiness) and (EU) No 1321/2014 (Continuing Airworthiness)

Regulation (EU) 2018/1139 (Basic Regulation)

Regulation 1592/2002 and 216/2008, later updated and replaced by 2018/1139, called Basic Regulation, consists of several second-level regulations which illustrate the related implementation procedures.

The first two regulations, 748/2012 and 1321/2014, called Implementation Rules are made up of an articulate and one or more documents called Parts.

The parts, divided into two sections, illustrate respectively the requirements that must be met by aeronautical subjects (section A) and the procedures to be followed by the competent authorities (section B).

Regulation (EU) 748/2012 (Initial Airworthiness)

The regulation (EU) 748/2012 regards the certification processes of the aeronautical products and the production and design companies.

An aircraft, an engine or a propeller are aeronautical products. Any instrument, equipment, mechanism, part, system, annex or accessory, installed and used for the control of an aircraft in flight is called part or pertinence.

The Implementation Rule (EU) 748/2012 contains a single annex called Part 21, which establishes the requirements and procedures for the certification of aircraft, products, parts, pertinences, production and design organizations.

Moreover, also in 748/2012 the "Certifications Specifications" (Certification Specifications or CS) are introduced to ensure uniform application of the common rules.

Regulation (EU) 1321/2014 (Continuing Airworthiness)

Regulation (EU) 1321/2014 concerns the continuing airworthiness of aeronautical products, the certification of companies and maintenance personnel.

It contains eight Parts:

- **Annex I (Part-M)**
Continuing airworthiness requirements;
- **Annex II (Part-145)**
Maintenance organisation approvals;
- **Annex III (Part-66)**
Certifying staff;
- **Annex IV (Part-147)**
Training organisation requirements;
- **Annex Va (Part-T)**
Airworthiness of the aircrafts of third parties;
- **Annex Vb (Part-ML)**
Airworthiness of the aircrafts other than complex motor-powered aircraft not listed in the air operator certificate of an air carrier licensed in accordance with regulation (EC) 1008/2008;
- **Annex Vc (Part-CAMO)**
Management of continuing airworthiness of an aircraft and of components for installation
- **Annex Vd (Part-CAO)**
Combined airworthiness organisation

Role Of The relationship between regulations (hard law) and AMC,GM and CSs (soft law)

For each of the Parts, the Executive Director of EASA publish separately explicative news and additional information called "Decisions" which are called Acceptable Means of Compliance (acceptable methods of compliance or AMC) and Guidance Materials (or GM). There is also the Certification Specification (CS). The AMC, GM and CS are called Soft Law.

The AMC,GM and CS issued by EASA are not of a legislative nature. They cannot create additional obligations on the regulated persons, who may decide to show compliance with the applicable requirements using other means. However, as the legislator wanted such material to provide for legal certainty and to contribute to uniform implementation, it provided the AMC,GM and CS adopted by EASA with a presumption of compliance with the rules, so that it commits competent authorities to recognise regulated persons complying with EASA AMC,GM and CS as complying with the law.

The Regulation (hard law) is the obligatory law that every organization, person and authority must be follow, the AMC,GM and CS (soft law) is a method to be compliant with the hard law

Role of occurrence reporting according to Regulation (EU) No 376/2014

Regulation (EU) No 376/2014 aims to improve civil aviation safety in the Union by ensuring that civil aviation safety information is reported, collected, recorded, protected, exchanged, disseminated and analyzed. Regulation (EU) No 376/2014 guarantees:

- that, if necessary, on the basis of the analysis of the information collected, security measures are taken promptly;
- the continuous availability of information on security through the introduction of rules relating to the confidentiality and adequate use of information and through a harmonized and reinforced protection of the informant and of the persons mentioned in event reports;
- that aviation security risks are considered and regulated at Union level as well as at national level.

The reporting of events has the sole objective of preventing accidents and incidents and not attributing blame or responsibility.

Role of the relationship between the various annexes (parts) relating to Initial and Continuing Airworthiness (such as Part 21, Part-M, Part-145, Part-66, Part-147, Part-T, Part-ML, Part-CAMO, and Part-CAO) and Regulations (EU) No 965/2012 (the Air Operations Regulation) and (EU) No 1178/2011 (the Air Crew Regulation).

Design (DOA) and production (POA) organisations, approved in accordance with regulation (EU) No 748/2012, Part 21, must work together and interface with the organizations that manage the continuing airworthiness of aircraft, in order to guarantee the standards set by Part M. and Part-CAMO

Moreover, the Design organisations, in some cases, can interface directly with the maintenance organisation, Part-145 or Part-CAO, approved in order to produce small parts or aeronautical instruments.

All that is designed and produced by such enterprises approved according to Part 21 must therefore satisfy the needs of the aircraft operators, whatever operation they are authorized to perform in compliance with Regulation (EU) No 965/2012.

Continuing Airworthiness Management Organisation (CAMO), approved in compliance with Part CAMO or Part-CAO, must constantly check the maintenance status of the aircraft and all its parts and have the task of issuing the work order, to the organisation approved as Part-145 or Part CAO, with the list of maintenance inspections to be done.

Part-CAMO organisation follow the requirements set out in Part-M, Part-CAO organisation follow the requirements set out in Part-ML and in some case set out in Part-M.

For the Airworthiness of the aircrafts of third parties the requirements are set out in Part-T

In addition, CAMO and CAO organisations interface with DOA and POA organizations, approved Part-21, regarding the updates on airworthiness standards.

All operating personnel, in accordance with Regulation (EU) 965/2012, must know the continuing airworthiness regulation.

Aircraft Maintenance Organisation (AMO), approved in accordance with Part 145 or Part-CAO, must perform the maintenance required by CAMO or CAO, approved Part-M.

Moreover, the AMO must qualify their own maintenance staff by releasing a certification authorization (CA) attesting the ability to perform certain maintenance tasks. For issuing this authorization the staff must have the Aircraft Maintenance License (AML) obtained pursuant to Part-66.

In some cases, the operative staff, in accordance with the Reg. 965/2012, can be authorized to perform small inspections of the aircraft.

Operative staff, under regulation 965/2012, obtain their licences under the requirements set out in Regulation (EU) no 1178/2011

The Owner of the (AML), i.e. the Certifying Staff (CS), obtains this privilege in accordance with Part 66 by performing training in organisations approved in accordance with Part-147 and completing the practical experience in organisations approved in as Part-145 or Part-CAO.

Depending on the AML category, a CS is authorized by the maintenance organisation to carry out certain maintenance operations.

In some cases, the operating staff, in accordance with Regulation (EU) 965/2012, may be a CS.

A Maintenance Training Organisation (MTO), approved in accordance with Part-147, aims to train the CS so that they can obtain the AML and the qualifications concerning the specific aircraft, in compliance with Part-66.

The MTO can also contract the practical training activities to companies approved as Part-145 or Part-CAO in order to provide training as close as possible to the maintenance reality.

In some cases, the maintenance staff, in accordance with Regulation (EU) 965/2012, can be a CS and then achieve training at an MTO.

10.2 Certifying Staff — Maintenance

Deep understanding of Part-66 maintenance licences with the associated privileges and authorisations, and how to exercise them properly for the different aircraft categories

The current aeronautical regulations require that certifying staff who are called to certify the airworthiness of a product, part or equipment, are qualified in accordance with Annex III - Part 66 of the Regulation (EC) 1321/2014.

Part-66 provides the requirements for the technical qualification of such personnel, essentially in terms of knowledge and experience.

Part-66 identifies staff who meets the required standards with a document called Aircraft Maintenance License.

Part-66 and Part-147

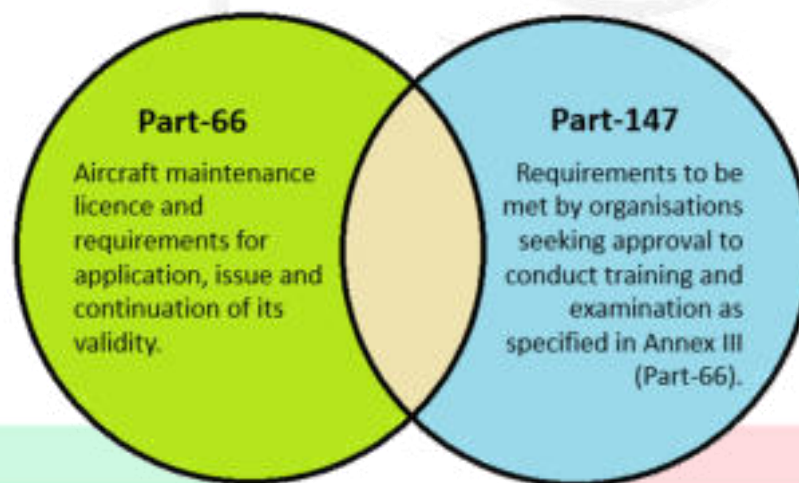


Figura 5 Part-66 and Part-147

The release of the CRS in the maintenance organisations



Figura 6 Step to be able to release a CRS

FLYON.AERO

The ownership of the aircraft maintenance licence, including the type licensing when requested (Cat. B e Cat. C), is a necessary but non-sufficient condition for being able to release an aircraft, a part or an appliance to service.

For this purpose, is required the written declaration of the maintenance organisation authorizing the holder of the AML to release CRS on its own, this authorization is called CA (certification authorization).

In fact:

- The CRS is a document of the maintenance organisation;
- The Certifying Staff is the person who certify the document.

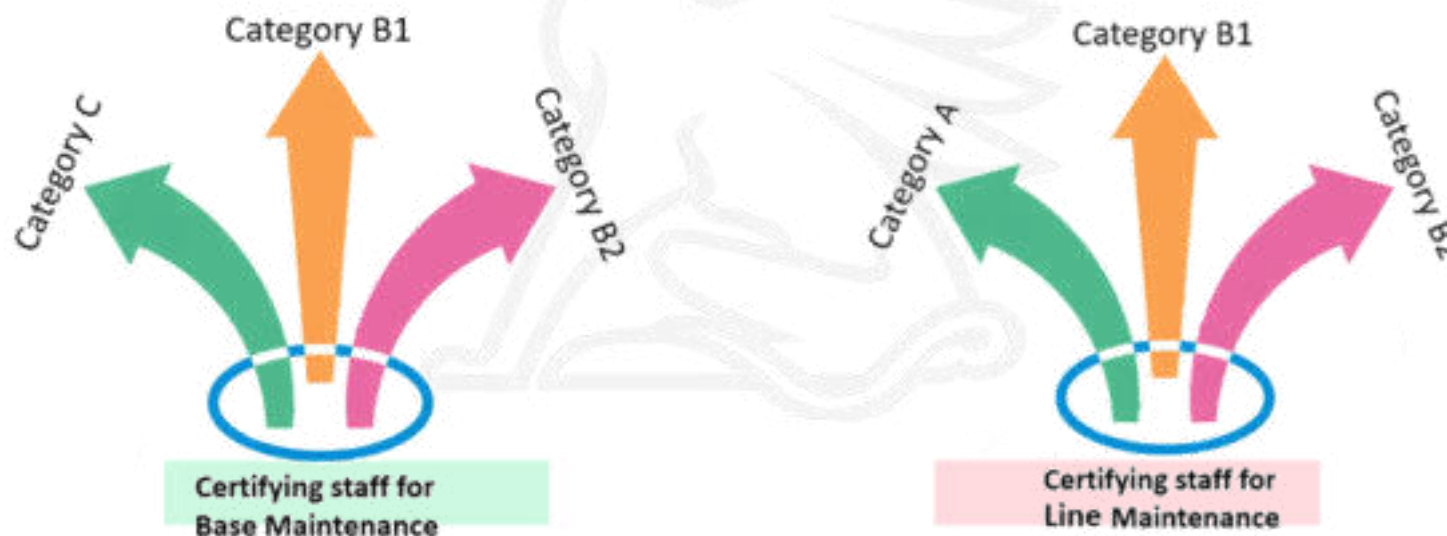


Figura 7 Categories of AMLs

66.A.3 License categories

This section establishes the requirements needed for the release of the aeronautical maintenance licence for planes and helicopters belonging to these categories:

- Category A
- Category B1
- Category B2
- Category B2L
- Category B3
- Category L
- Category C

Category A and Category B1 are further divided into sub-categories:

- A1 e B1.1 Aeroplanes Turbine
- A2 e B1.2 Aeroplanes Piston
- A3 e B1.3 Helicopters Turbine
- A4 e B1.4 Helicopters Piston

Category B3 is applicable to non-pressurized aircraft with a piston engine weighing less than 2000 kg.

Category B2L is applicable to all aircraft other those in Group 1 and is divided into the following “system rating”:

- Communication/navigation (com/nav),
- Instrument,
- Autoflight,
- Surveillance,
- Airframe system.

Category L, divided into the following subcategories

- L1C: composite sailplanes
- L1: sailplanes
- L2C: composite powered sailplanes and composite ELA1 aeroplanes
- L2: Powered sailplanes and ELA1 aeroplanes
- L3H: hot-air balloons
- L3G: gas balloons
- L4H: hot-air airships
- L4G: ELA2 gas airship
- L5: gas airships other than ELA2

66.A.10 Application

The request for aircraft maintenance licence or for any extensions or change of it, must be carried out through EASA Form 19 and subjected to the competent authority according to the established modalities.

The request of extension for aircraft maintenance licence will be transmitted to the competent authority that released it.

Figura 8 ENAC application Form for ALM Part 66

60.A.15 Eligibility

To request the aircraft maintenance licence, you must be at least 18 years of age.

66.A.20 Privileges

The privileges of the aircraft maintenance licence Cat. A are limited to small maintenance works and correction of slight defects within the limits of the task specifically approved by the authorization, and directly carried out in an organization approved as Part 145.

In a maintenance organisation, the aeronautical Cat. B maintenance license permit the holder to issue certificates of release to service as a result of maintenance works also for tasks performed by other qualified personnel (example, category A).

In particular, category B can be divided into two main areas:

Category B1

Maintenance Certifying Technician – Mechanical

Category B2

Maintenance Certifying Technician – Avionic

In a maintenance organisation approved as Part-145 the aircraft maintenance license of Category B1 allows the holder to issue certificates of release to service as a result of scheduled maintenance tasks including the aircraft structure, powerplants, mechanical and electrical systems.

These activities also include the replacement of avionics units whose efficiency status can be verified by simple tests (LRU).

Category B1 automatically includes the appropriate subcategory A.

In a maintenance organisation approved as Part-145 the aircraft maintenance license of category B2 allows the holder to issue certificates of re-entry into service as a result of maintenance on avionics and electrical systems.

The privileges of an AML certification Cat. C are limited to basic tasks performed in the areas of an organisation approved as Part-145.

The aircraft maintenance license of Category C allows the holder to issue certificates of release to service as a result of scheduled base maintenance tasks and moreover he must be always supported by qualified staff of B1 and B2 holders of an AML, called support staff.

Category B2 do not include any A subcategory.

66.A.25 Basic knowledge requirements

An applicant for an aircraft maintenance licence, or the addition of a category or subcategory, shall demonstrate by examination a level of knowledge in the appropriate subject modules.

The examination shall be conducted either by a training organisation appropriately approved or by the competent authority.

The training courses and examinations shall be passed within 10 years prior to the application for an aircraft maintenance licence or the addition of a category or subcategory to such aircraft maintenance licence.

66.A.30 Basic experience requirements

An applicant for an aircraft maintenance licence shall have acquired:

For category A, B1.2, B1.4, B3:

- 3 years of practical maintenance experience on operating aircraft, if the applicant has no previous relevant technical training; or
- 2 years of practical maintenance experience on operating aircraft and completion of training considered relevant by the competent authority as a skilled worker, in a technical trade; or
- 1 year of practical maintenance experience on operating aircraft and completion of a basic training course approved in accordance with Annex IV (Part-147).

For category B2, B1.1 e B1.3:

- 5 years of practical maintenance experience on operating aircraft, if the applicant has no previous relevant technical training; or
- 3 years of practical maintenance experience on operating aircraft and completion of training considered relevant by the competent authority as a skilled worker, in a technical trade; or
- 2 years of practical maintenance experience on operating aircraft and completion of a basic training course approved in accordance with Annex IV (Part-147).

For category C:

- 3 years of experience exercising category B1.1, B1.3 or B2 privileges on complex motor-powered aircraft or as support staff according to point 145.A.35, or, a combination of both;
- 5 years of experience exercising category B1.2 or B1.4 privileges on complex motor-powered aircraft or as support staff according to point 145.A.35, or a combination of both.

For category C with respect to other than complex motor-powered aircraft: 3 years of experience exercising category B1 or B2 privileges on other than complex motor-powered aircraft or as support staff according to point 145.A.35, or a combination of both;

For category C obtained through the academic route: an applicant holding an academic degree in a technical discipline, from a university or other higher educational institution recognised by the competent authority, 3 years of experience working in a civil aircraft maintenance environment on a representative selection of tasks directly associated.

For category B2L:

- 3 years of practical maintenance experience in operating aircraft, covering the corresponding system ratings, if the applicant has no previous relevant technical training; or
- 2 years of practical maintenance experience in operating aircraft, covering the corresponding system ratings, and completion of training, considered relevant by the competent authority, as a skilled worker in a technical trade; or
- 1 year of practical maintenance experience in operating aircraft, covering the corresponding system ratings, and completion of a Part-147 approved basic training course. For the addition of (a) new system ratings to an existing B2L licence, 3 months of practical maintenance experience relevant to the new system ratings shall be required for each system rating added.

For category L:

- 2 years of practical maintenance experience in operating aircraft covering a representative cross section of maintenance activities in the corresponding subcategory;

- as a derogation, 1 year of practical maintenance experience in operating aircraft covering a representative cross section of maintenance activities in the corresponding subcategory, subject to the introduction of the limitation provided for in point 66.A.45(h)(ii)(3).

66.A.40 Continued validity of the aircraft maintenance licence

The aircraft maintenance licence becomes invalid 5 years after its last issue or change, unless the holder submits his/her aircraft maintenance licence to the competent authority that issued it, in order to verify that the information contained in the licence is the same as that contained in the competent authority records.

Any certification privilege based upon an aircraft maintenance licence becomes invalid as soon as the aircraft maintenance licence is invalid

The aircraft maintenance licence is only valid when issued and/or changed by the competent authority and when the holder has signed the document.

66.B.1 Scope

This section establishes the procedures including the administrative requirements to be followed by the competent authorities in charge of the implementation and the enforcement of Annex III (Part-66).

66.B.10 Competent Authority

The Member State shall designate a competent authority with allocated responsibilities for the issuance, continuation, change, suspension or revocation of aircraft maintenance licences.

This competent authority shall establish an adequate organisational structure to ensure compliance with Annex III (Part-66).

- **Resources**
The competent authority shall be appropriately staffed to ensure the implementation of the requirements of Annex III (Part-66).
- **Procedures**
The competent authority shall establish documented procedures detailing how compliance with Annex III (Part-66)

66.B.20 Record-keeping

The competent authority shall establish a system of record-keeping that allows adequate traceability of the process to issue, revalidate, change, suspend or revoke each aircraft maintenance licence. These records shall include for each licence:

- the application for an aircraft maintenance licence or change to that licence, including all supporting documentation;
- a copy of the aircraft maintenance licence including any changes;
- copies of all relevant correspondence;
- details of any exemption and enforcement actions;
- any report from other competent authorities relating to the aircraft maintenance licence holder;
- the records of examinations conducted by the competent authority;
- the applicable conversion report used for conversion;
- the applicable credit report used for crediting.

66.B.100 Procedure for the issue of an aircraft maintenance licence by the competent authority

On receipt of EASA Form 19 and any supporting documentation, the competent authority shall verify EASA Form 19 for completeness and ensure that the experience claimed meets the requirement of Annex III (Part-66).

The competent authority shall verify an applicant's examination status and/or confirm the validity of any credits to ensure that all required modules of Appendix I have been met as required by Annex III (Part-66).

When having verified the identity and date of birth of the applicant and being satisfied that the applicant meets the standards of knowledge and experience required by Annex III (Part-66), the competent authority shall issue the relevant aircraft maintenance licence to the applicant.

The same information shall be kept on competent authority records.

66.B.200 Examination by the competent authority

All examination questions shall be kept in a secure manner prior to an examination, to ensure that candidates will not know which questions will form the basis of the examination.

The competent authority shall nominate:

- persons who control the questions to be used for each examination.
- examiners who shall be present during all examinations to ensure the integrity of the examination.

Basic examinations shall follow the standard specified in Appendices I and II or in Appendices VII and VIII to Annex III (Part-66), as applicable.

Type training examinations and type examinations shall follow the standard specified in Appendix III to Annex III (Part-66).

New essay questions shall be raised at least every 6 months and questions already used withdrawn or rested from use.

A record of the questions used shall be retained in the records for reference.

All examination papers shall be handed out at the start of the examination to the candidate and handed back to the examiner at the end of the allotted examination time period.

No examination paper must be removed from the examination room during the allotted examination time period.

Apart from specific documentation needed for type examinations, only the examination paper may be available to the candidate during the examination.

Examination candidates shall be separated from each other so that they cannot read each other's examination papers. They may not speak to any person other than the examiner.

Candidates who are proven to be cheating shall be banned from taking any further examination within 12 months of the date of the examination in which they were found cheating.

66.B.500 Revocation, suspension or limitation of the aircraft maintenance licence

The competent authority shall suspend, limit or revoke the aircraft maintenance licence where it has identified a safety issue or if it has clear evidence that the person has carried out or been involved in one or more of the following activities:

- obtaining the aircraft maintenance licence and/or the certification privileges by falsification of documentary evidence;
- failing to carry out requested maintenance combined with failure to report such fact to the organisation or person who requested the maintenance;
- failing to carry out required maintenance resulting from own inspection combined with failure to report such fact to the organisation or person for whom the maintenance was intended to be carried out;
- negligent maintenance;
- falsification of the maintenance record;
- issuing a certificate of release to service knowing that the maintenance specified on the certificate of release to service has not been carried out or without verifying that such maintenance has been carried out;
- carrying out maintenance or issuing a certificate of release to service when adversely affected by alcohol or drugs;
- issuing certificate of release to service while not in compliance with Annex I (Part-M), Annex II (Part-145) or Annex III (Part-66).

10.3 Approved Maintenance Organisations

General understanding of Part-145 and Part-CAO.

For the continuing airworthiness of an aircraft CAMO issue a work order to:

Part-145 approved organisation for the maintenance of aircraft and components;

Part-CAO approved organisation for maintenance of aircraft other than complex motor powered aircraft and components to be installed therein not used by licenced air carriers in accordance with Regulation (EC) No 1008/2008.

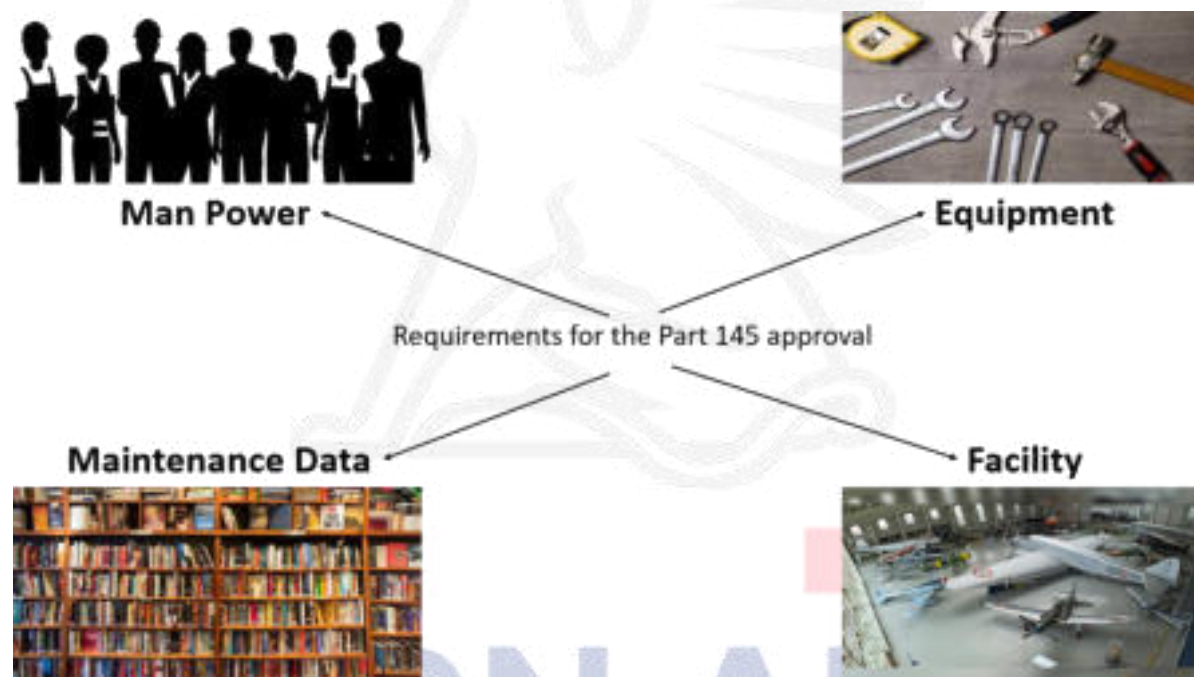


Figura 9 Requirements for the Part 145 and CAO approval

Regulation (EU) No 1321/2014 Annex 2 (Part-145)

145.A.10 Scope

Part-145 establishes the requirements to be met by an organisation to qualify for the issue or continuation of an approval for the maintenance of aircraft and components.

145.A.15 Application

An application for a certificate or an amendment to an existing certificate in accordance with this Annex shall be made in a form and manner established by the competent authority, taking into account the applicable requirements of Annex I (Part-M), Annex Vb (Part-ML) and this Annex.

Applicants for an initial certificate pursuant to this Annex shall provide the competent authority with:

- the results of a pre-audit performed by the organisation against the applicable requirements provided for in Annex I (Part-M), Annex Vb (Part-ML) and this Annex;
- documentation demonstrating how they will comply with the requirements established in this Regulation.

145.A.20 Terms of approval and scope of work

The organisation's scope of work shall be specified in the maintenance organisation exposition (MOE) in accordance with point 145.A.70.

The organisation shall comply with the terms of approval attached to the organisation certificate issued by the competent authority, and with the scope of work specified in the MOE.

145.A.25 Facility requirements

The organisation shall ensure that:

Facilities are provided appropriate for all planned work, ensuring in particular, protection from the weather elements. Specialised workshops and bays are segregated as appropriate, to ensure that environmental and work area contamination is unlikely to occur.

- For base maintenance of aircraft, aircraft hangars are both available and large enough to accommodate aircraft on planned base maintenance;
- For component maintenance, component workshops are large enough to accommodate the components on planned maintenance.

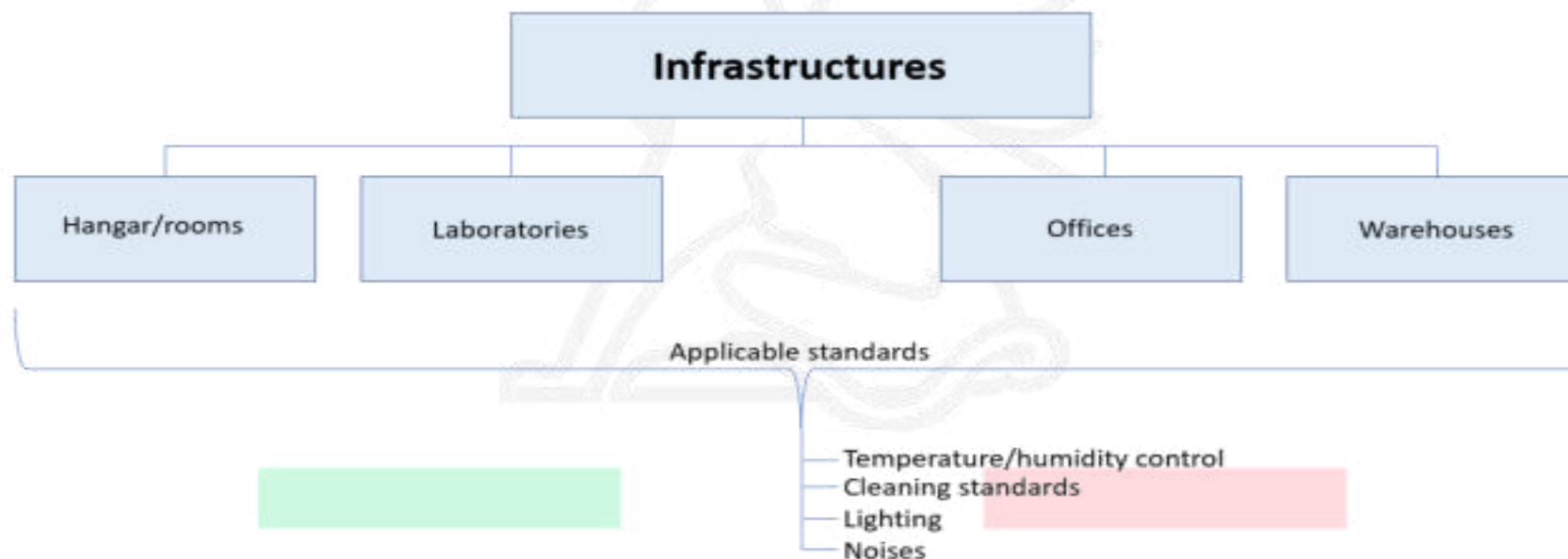


Figura 10 Facilities of Part-145

Office accommodation is provided for the management of the planned work, and certifying staff so that they can carry out their designated tasks in a manner that contributes to good aircraft maintenance standards.

The working environment including aircraft hangars, component workshops and office accommodation is appropriate for the task carried out and in particular special requirements observed. Unless otherwise dictated by the particular task environment, the working environment must be such that the effectiveness of personnel is not impaired:

- temperatures must be maintained such that personnel can carry out required tasks without undue discomfort.
- dust and any other airborne contamination are kept to a minimum and not be permitted to reach a level in the work task area where visible aircraft/component surface contamination is evident. Where dust/other airborne contamination results in visible surface contamination, all susceptible systems are sealed until acceptable conditions are re-established.
- lighting is such as to ensure each inspection and maintenance task can be carried out in an effective manner.
- noise shall not distract personnel from carrying out inspection tasks. Where it is impractical to control the noise source, such personnel are provided with the necessary personal equipment to stop excessive noise causing distraction during inspection tasks.
- where a particular maintenance task requires the application of specific environmental conditions different to the foregoing, then such conditions are observed. Specific conditions are identified in the maintenance data.
- the working environment for line maintenance is such that the particular maintenance or inspection task can be carried out without undue distraction. Therefore where the working environment deteriorates to an unacceptable level in respect of temperature, moisture, hail, ice, snow, wind, light, dust/other airborne contamination, the particular maintenance or inspection tasks must be suspended until satisfactory conditions are re-established.

Secure storage facilities are provided for components, equipment, tools and material. Storage conditions ensure segregation of serviceable components and material from unserviceable aircraft components, material, equipment and tools. The conditions of storage are in accordance with the manufacturer's instructions to prevent deterioration and damage of stored items. Access to storage facilities is restricted to authorised personnel.

145.A.30 Personnel requirements

The organisation shall appoint an accountable manager that has corporate authority to ensure that all maintenance activities of the organisation can be financed and carried out in accordance with Regulation (EU) 2018/1139 and its delegated and implementing acts. The accountable manager shall:

- ensure that all necessary resources are available to accomplish maintenance in accordance with this Annex, Annex I (Part-M) and Annex Vb (Part-ML), as applicable, to support the organisation certificate;
- establish and promote the safety policy;
- demonstrate a basic understanding of this Regulation.

The accountable manager shall nominate a person or group of persons representing the management structure for the maintenance functions and with the responsibility to ensure that the organisation works in accordance with the MOE and approved procedures. It shall be made clear in the procedures who deputises for a particular person in the case of lengthy absence of that person

The accountable manager shall nominate a person or group of persons with the responsibility to manage the compliance monitoring function as part of the management system

The accountable manager shall nominate a person or group of persons with the responsibility to manage the development, administration and maintenance of effective safety management processes as part of the management system.

The person or group of persons nominated shall have a responsibility to the accountable manager and direct access to him/her to keep him/her properly informed on compliance and safety matters

The person or persons nominated shall be able to demonstrate relevant knowledge, background and satisfactory experience related to aircraft or component maintenance and demonstrate a **working knowledge** of this Regulation.

The organisation shall have a maintenance man-hour plan to ensure it has sufficient and appropriately qualified staff to plan, perform, supervise, inspect and monitor the organisation's activities in accordance with the terms of approval. In addition, the organisation shall have a procedure to reassess the work intended to be carried out when the actual staff availability is reduced compared to the planned staffing level for a particular work shift or period.

The organisation shall establish and control the competency of the personnel involved in any maintenance, airworthiness reviews, safety management and compliance monitoring in accordance with a procedure and to a standard agreed with the competent authority. In addition to the necessary expertise related to the job function, the competency of the personnel must include an understanding of the application of safety management principles, including human factors and human performance issues, which is appropriate to their function and responsibilities in the organisation.

The organisation shall ensure that personnel who carry out or control a continued-airworthiness non-destructive test of aircraft structures or components, or both, are appropriately qualified for the particular non-destructive test in accordance with the European or equivalent standard recognised by the Agency. Personnel who carry out any other specialised task shall be appropriately qualified in accordance with officially recognised standards. By derogation from this point, personnel qualified in category B1, B3 or L in accordance with Annex III (Part-66), may carry out and/or control colour contrast dye penetrant tests.

Any organisation maintaining aircraft, except for Component certifying staff, shall in the case of aircraft line maintenance, have appropriate aircraft-rated certifying staff qualified as category B1, B2, B2L, B3 and L, as appropriate..

In addition such organisations may also use appropriately task-trained certifying staff holding the privileges to carry out minor scheduled line maintenance and simple defect rectification. The availability of such certifying staff shall not replace the need for category B1, B2, B2L, B3 and L certifying staff, as appropriate.

Any organisation maintaining aircraft, except for Component certifying staff, shall:

in the case of base maintenance of complex motor-powered aircraft, have appropriate aircraft-type-rated certifying staff, qualified as category C. In addition, the organisation shall have sufficient aircraft-type-rated staff qualified as category B1 and B2, as appropriate to support the category C certifying staff.

- Category B1 and B2 support staff shall ensure that all relevant tasks or inspections have been carried out to the required standard before the category C certifying staff issues the certificate of release to service.
- The organisation shall maintain a register of any such category B1 and B2 support staff.
- The category C certifying staff shall ensure that compliance has been met and that all work required by the customer has been accomplished during the particular base maintenance check or work package, and shall also assess the impact of any work not carried out, with a view to either requiring its accomplishment or agreeing with the operator to defer such work to another specified check or time limit.

in the case of base maintenance of aircraft other than complex motor-powered aircraft, have one of the following:

- appropriate aircraft-rated certifying staff, qualified as category B1, B2, B2L, B3 and L, as appropriate;

- appropriate aircraft-rated certifying staff, qualified in category C and assisted by support staff.

Component certifying staff shall be qualified in accordance with Article 5(6) and point 145.A.35.

By way of derogation from previous points in relation to the obligation to comply with Annex III (Part-66), the organisation may use certifying staff and support staff that are qualified in accordance with the following provisions:

- For base maintenance carried out at a location outside a territory for which a Member State is responsible under the Chicago Convention, the certifying staff and support staff may be qualified in accordance with the national aviation regulations of the State in which the base maintenance facility is located, subject to the conditions specified in Appendix IV to this Annex.
- For line maintenance carried out at a line station located outside a territory for which a Member State is responsible under the Chicago Convention, the certifying staff may be qualified, subject to the conditions specified in Appendix IV to this Annex, in accordance with the following alternative conditions:
 - national aviation regulations of the State in which the line station is located,
 - national aviation regulations of the State in which the organisation's principal place of business is located.
- For a repetitive pre-flight airworthiness directive which specifically states that the flight crew may carry out such airworthiness directive, the organisation may issue a limited certification authorisation to the pilot on the basis of the flight crew licence held. In that case, the organisation shall ensure that the pilot has carried out sufficient practical training ensuring that the pilot can accomplish the airworthiness directive.
- If an aircraft is operated away from a supported location, the organisation may issue a limited certification authorisation to the pilot on the basis of the flight crew licence held, subject to being satisfied that the pilot has carried out sufficient practical training ensuring that the pilot can accomplish the specified task.
- In the following unforeseen cases, where an aircraft is grounded at a location other than the main base where no appropriate certifying staff are available, the organisation contracted to provide maintenance support may issue a one-off certification authorisation:
 - to one of its employees holding equivalent type authorisations on aircraft of similar technology, construction and systems; or

- to any person with not less than five years maintenance experience and holding a valid ICAO aircraft maintenance licence rated for the aircraft type requiring certification provided there is no organisation appropriately approved under this Part at that location and the contracted organisation obtains and holds on file evidence of the experience and the licence of that person.

All such cases as specified in this point must be reported to the competent authority within seven days after issuing such certification authorisation. The organisation issuing the one-off authorisation shall ensure that any such maintenance that could affect flight safety is re-checked by an appropriately approved organisation.

If the organisation performs airworthiness reviews and issues the corresponding airworthiness review certificate in accordance with point ML.A.903 of Annex Vb (Part-ML), it shall have airworthiness review staff that are qualified and authorised in accordance with point 145.A.37.

145.A.35 Certifying staff and support staff

The organisation shall ensure that certifying staff and support staff have an adequate understanding of the relevant aircraft or components, or both, to be maintained and of the associated organisation procedures. In the case of certifying staff, this shall be accomplished before the issue or reissue of the certification authorisation.

- ‘Support staff’ means those staff holding an aircraft maintenance licence under Annex III (Part-66) in category B1, B2, B2L, B3 and/or L with the appropriate aircraft ratings, working in a base maintenance environment while not necessarily holding certification privileges.
- ‘Relevant aircraft and/or components’, means those aircraft or components specified in the particular certification authorisation.
- ‘Certification authorisation’ means the authorisation issued to certifying staff by the organisation and which specifies the fact that those staff may sign certificates of release to service within the limitations stated in such authorisation on behalf of the approved organisation

The organisation may only issue a certification authorisation to certifying staff in relation to the basic categories or subcategories and, except for the category A licence, any type rating listed on the aircraft maintenance licence as required by Annex III (Part-66), subject to the licence remaining valid throughout the validity period of the authorisation and to the certifying staff remaining in compliance with Annex III (Part-66).

The organisation shall ensure that all certifying staff and support staff are involved in at least 6 months of actual relevant aircraft or component maintenance experience in any consecutive 2-year period.

For the purpose of this point ‘involved in actual relevant aircraft or component maintenance’ means that the person has worked in an aircraft or component maintenance environment and has either exercised the privileges of the certification authorisation and/or has actually carried out maintenance on at least some of the aircraft type or aircraft group systems specified in the particular certification authorisation

The organisation shall ensure that all certifying staff and support staff receive sufficient recurrent training in each 2-year period to ensure that they have up-to-date knowledge of relevant technologies, organisation procedures and safety management, including human factor issues

The organisation shall establish a programme for recurrent training for certifying staff and support staff, including a procedure to ensure compliance with the relevant provisions of this point and a procedure to ensure compliance with Annex III (Part-66)

With the exception of the unforeseen cases, the organisation shall assess all certifying staff for their competency, qualifications and capability to carry out their intended certifying duties in accordance with a procedure in the MOE prior to the issue or reissue of a certification authorisation under this Annex to such staff

When the conditions above have been fulfilled by the certifying staff, the organisation shall issue a certification authorisation that clearly specifies the scope and limits of such authorisation. Continued validity of the certification authorisation is dependent upon continued compliance with points above.

The certification authorisation must be in a style that makes its scope clear to the certifying staff and any authorised person who may require to examine the authorisation. Where codes are used to define scope, the organisation shall make a code translation readily available. 'Authorised person' means the officials of the competent authorities, the Agency and the Member State who has responsibility for the oversight of the maintained aircraft or component

The person or persons referred to in point 145.A.30 that are responsible for the compliance monitoring function shall also remain responsible for issuing certification authorisations to certifying staff. That personnel may nominate other persons to effectively issue or revoke certification authorisations in accordance with a procedure in the MOE

The organisation shall provide certifying staff with a copy of their certification authorisation in either a documented or electronic format

Certifying staff shall produce their certification authorisation to any authorised person within 24 hours

The minimum age for certifying staff and support staff is 21 years

The holder of a category A aircraft maintenance licence may only exercise certification privileges on a specific aircraft type following the satisfactory completion of the relevant category A aircraft task training carried out by an organisation appropriately approved in accordance with Annex II (Part-145) or Annex IV (Part-147). This training shall include practical hands on training and theoretical training as appropriate for each task authorised. Satisfactory completion of training shall be demonstrated by an examination or by workplace assessment carried out by the organisation

The holder of a category B2 aircraft maintenance licence may only exercise the certification privileges following the satisfactory completion of:

- the relevant category A aircraft task training; and
- 6 months of documented practical experience covering the scope of the authorisation that will be issued.

The task training shall include practical hands on training and theoretical training as appropriate for each task authorised. Satisfactory completion of training shall be demonstrated by an examination or by workplace assessment. Task training and examination/assessment shall be carried out by the maintenance organisation issuing the certifying staff authorisation. The practical experience shall be also obtained within such maintenance organisation

145.A.37 Airworthiness review staff

In order to be approved to carry out airworthiness reviews and to issue the corresponding airworthiness review certificates (ARC) for aircraft covered by Annex Vb (Part-ML), the organisation shall have airworthiness review staff that comply with all of the following requirements:

- they have acquired experience in continuing airworthiness of at least 1 year for sailplanes and balloons and of at least 3 years for all other aircraft;
- they hold a certifying staff authorisation for the corresponding aircraft;
- they have acquired knowledge of Annex I (Part-M), Subpart C, or of Annex Vb (Part-ML), Subpart C

they have acquired knowledge of the procedures of the maintenance organisation relevant to the airworthiness review and issue of the airworthiness review certificate.

Before the organisation issues an airworthiness review authorisation to a candidate, that person shall perform an airworthiness review under the supervision of the competent authority or under the supervision of a person that is already authorised as airworthiness review staff by the organisation. If this airworthiness review under supervision is satisfactory, the competent authority shall formally accept that person to become airworthiness review staff.

The organisation shall ensure that the airworthiness review staff can demonstrate appropriate recent continuing airworthiness experience.

145.A.40 Equipment and tools

The organisation shall have available and use the necessary equipment and tools to perform the approved scope of work.

- Where the manufacturer specifies a particular tool or equipment, the organisation shall use that tool or equipment, unless the use of alternative tooling or equipment is agreed by the competent authority via procedures specified in the exposition.
- Equipment and tools must be permanently available, except in the case of any tool or equipment that is so infrequently used that its permanent availability is not necessary. Such cases shall be detailed in an exposition procedure.
- An organisation approved for base maintenance shall have sufficient aircraft access equipment and inspection platforms/docking as required for the proper inspection of the aircraft.

The organisation shall ensure that all tools, equipment and particularly test equipment, as appropriate, are controlled and calibrated according to an officially recognised standard at a frequency to ensure serviceability and accuracy. Records of such calibrations and traceability to the standard used shall be kept by the organisation.

145.A.42 Components

Classification of components. All components shall be classified into the following categories:

- Components which are in a satisfactory condition, released on an EASA Form 1 or equivalent and marked in accordance with Subpart Q of Annex I (Part 21) to Regulation (EU) No 748/2012.
- Unserviceable components which shall be maintained in accordance with this Regulation.
- Components categorised as unsalvageable because they have reached their mandatory life limitation or contain a non-repairable defect.
- Standard parts used on an aircraft, engine, propeller or other aircraft component when specified in the maintenance data and accompanied by evidence of conformity traceable to the applicable standard.

- Material, both raw and consumable, used in the course of maintenance when the organisation is satisfied that the material meets the required specification and has appropriate traceability. All material shall be accompanied by documentation clearly relating to the particular material and containing a conformity to specification statement as well as the manufacturing and supplier source.

Components, standard parts and materials for installation

- The organisation shall establish procedures for the acceptance of components, standard parts and materials for installation to ensure that components, standard parts and materials are in satisfactory condition and meet the applicable requirements of point (a).
- The organisation shall establish procedures to ensure that components, standard parts and materials shall only be installed on an aircraft or a component when they are in satisfactory condition, meet the applicable requirements of point (a) and the applicable maintenance data specifies the particular component, standard part or material.
- The organisation may fabricate a restricted range of parts to be used in the course of undergoing work within its own facilities, provided procedures are identified in the exposition.
- Components which are referred to in point (b)(2) of point 21.A.307 of Annex I (Part 21) to Regulation (EU) No 748/2012 shall only be installed if considered eligible for installation by the aircraft owner on their own aircraft.

Segregation of components

- Unserviceable and unsalvageable components shall be segregated from serviceable components, standards parts and materials.
- Unsalvageable components shall not be permitted to re-enter the component supply system, unless mandatory life limitation have been extended or a repair solution has been approved in accordance with Regulation (EU) No 748/2012

145.A.45 Maintenance data

The organisation shall hold and use applicable current maintenance data which is necessary in the performance of maintenance, including modifications and repairs. “Applicable” means relevant to any aircraft, component or process specified in the organisation’s terms of approval and in any associated capability list.

In the case of maintenance data provided by the person or organisation requesting the maintenance, the organisation shall hold such data when the work is in progress. Applicable maintenance data is the data specified in point Part- or Part-ML.

The organisation shall establish procedures to ensure that if inaccurate, incomplete or ambiguous procedure, practice, information or maintenance instruction is found in the maintenance data used by maintenance personnel, it is recorded as part of the internal safety reporting scheme.

The organisation may only modify maintenance instructions in accordance with a procedure that is specified in the MOE. With respect to changes to maintenance instructions, the organisation shall demonstrate that they result in equivalent or improved maintenance standards, and shall inform the author of the maintenance instructions of such changes. For the purposes of this point, “maintenance instructions” mean instructions on how to carry out a particular maintenance task; they exclude the engineering design of repairs and modifications.

The organisation shall provide a common work card or worksheet system to be used throughout the relevant parts of the organisation. In addition, the organisation shall either accurately transcribe the maintenance data onto such work cards or worksheets, or make precise reference to the particular maintenance task or tasks contained in that maintenance data. Work cards and worksheets may be computer generated and held in an electronic database that is adequately protected against unauthorised alteration, and for which there is a backup electronic database which shall be updated within 24 hours after an entry is made to the main electronic database. Complex or long maintenance tasks shall be transcribed onto the work cards or worksheets and subdivided into clear stages to ensure that there is a record of the accomplishment of the complete maintenance task.

When the organisation provides maintenance services to an aircraft operator which requires its own work card or worksheet system to be used, then such work card or worksheet system may be used. In that case, the organisation shall establish a procedure to ensure that those work cards or worksheets are correctly completed.

The organisation shall ensure that all applicable maintenance data is readily available for use when required by maintenance personnel.

The organisation shall establish a procedure to ensure that maintenance data it controls is kept up to date. In the case of operator/customer controlled and provided maintenance data, the organisation shall be able to show that either it has written confirmation from the operator/customer that all such maintenance data is up to date or it has work orders specifying the amendment status of the maintenance data to be used or it can show that it is on the operator/customer maintenance data amendment list.

145.A.47 Production planning

The organisation shall have a system appropriate to the amount and complexity of work to plan the availability of all necessary personnel, tools, equipment, material, maintenance data and facilities in order to ensure the safe completion of the maintenance work.

As part of the management system, the planning of maintenance tasks, and the organising of shifts, shall take into account human performance limitations, including the threat of fatigue for maintenance personnel.

When it is required to hand over the continuation or completion of maintenance tasks for reasons of a shift or personnel changeover, relevant information shall be adequately communicated between outgoing and incoming personnel.

The organisation shall ensure that aviation safety hazards associated with external working teams carrying out maintenance at the organisation's facilities are considered by the organisation's management system.

145.A.48 Performance of maintenance

The organisation may only carry out maintenance on an aircraft or component for which it is approved when all the necessary facilities, equipment, tooling, material, maintenance data and personnel are available.

The organisation shall be responsible for the maintenance that is performed within the scope of its approval.

The organisation shall ensure that:

- after the completion of the maintenance, a general verification is carried out to ensure that the aircraft or component is clear of all tools, equipment and any extraneous parts or material, and that all access panels that were removed have been refitted;
- an error-capturing method is implemented after the performance of any critical maintenance task;
- the risk of errors during maintenance and the risk of errors being repeated in identical maintenance tasks are minimised;
- damage is assessed, and modifications and repairs are carried out using the data as applicable;
- the assessment of aircraft defects is carried out in accordance with Annex I (Part-M) or Annex Vb (Part-ML), as applicable.

145.A.50 Certification of maintenance

A certificate of release to service shall be issued by appropriately authorised certifying staff on behalf of the organisation when that certifying staff has verified that all the maintenance that was ordered has been properly carried out by the organisation in accordance with the procedures specified, taking into account the availability and use of the maintenance data, and that there are no known non-compliances which endanger flight safety.

A certificate of release to service shall be issued before flight at the completion of any maintenance.

New defects or incomplete maintenance work orders identified during the maintenance shall be brought to the attention of the person or organisation responsible for the aircraft continuing airworthiness for the specific purpose of obtaining agreement to rectify such defects or completing the missing elements of the maintenance work order. In the case where that person or organisation declines to have such maintenance carried out under this point, it may issue a certificate of release to service within the approved aircraft limitations. The organisation shall enter such fact in the aircraft certificate of release to service before the issue of such certificate.

A certificate of release to service shall be issued by appropriately authorised certifying staff on behalf of the organisation after the maintenance that was ordered has been carried out on a component whilst it was off the aircraft. The authorised release certificate “EASA Form 1” referred to in Appendix II of Annex I (Part-M) constitutes the component certificate of release to service except if otherwise specified in Part-M or Annex Vb (Part-ML), as applicable. When an organisation maintains a component for its own use, the EASA Form 1 may not be necessary if the organisation’s internal release procedures in its MOE so provides.

By way of derogation from first point of this chapter and point 145.A.42, when an aircraft is grounded at a location other than the main line station or main maintenance base due to the non-availability of a component with the appropriate release certificate, the organisation contracted for the maintenance of that aircraft may temporarily fit a component without the appropriate release certificate for a maximum of 30 flight hours or until the aircraft first returns to the main line station or main maintenance base, whichever is the sooner, subject to the agreement of the person or organisation responsible for the aircraft’s continuing airworthiness and subject to that component having a suitable release certificate but otherwise in compliance with all applicable maintenance and operational requirements. Such components shall be removed by the time limit provided for in the first sentence of this point unless an appropriate release certificate has been obtained in the meantime under first points of this chapter and point 145.A.42.

145.A.55 Record-keeping

Maintenance records

- The organisation shall record the details of the maintenance work that is carried out within the scope of its approval. As a minimum, the organisation shall retain all the records that are necessary to prove that all the requirements have been met for the issue of the certificate of release to service, including, if any, subcontractor's release documents.
- The organisation shall provide a copy of each certificate of release to service to the operator or customer, together with copies of the detailed maintenance records that are associated with the work carried out and that are necessary to demonstrate compliance with Annex I (Part-M) or Annex Vb (Part-ML), as applicable.
- The organisation shall retain a copy of all detailed maintenance records (including certificates of release to service) and of any associated maintenance data for 3 years from the date when the aircraft or component to which the work relates was issued with a certificate of release to service.
- If an organisation terminates its operation, it shall transfer all the retained maintenance records that cover the last 3 years to the last customer or owner of the respective aircraft or component, or shall store them in the manner specified by the competent authority.

Airworthiness review records

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- If an organisation has the privilege referred to in point 145.A.75, it shall retain a copy of each airworthiness review certificate that it has issued, together with all the supporting documents, and shall make those records available, upon request, to the owner of the aircraft.
- The organisation shall retain a copy of all the records referred to in point above for 3 years after the issue of the airworthiness review certificate.
- If an organisation terminates its operation, it shall transfer all the retained airworthiness review records that cover the last 3 years to the last owner or operator of the respective aircraft, or shall store them in the manner specified by the competent authority.

Management system, contracting and subcontracting records

The organisation shall ensure that the following records are retained for a minimum period of 5 years:

- records of management system key processes;
- contracts, both for contracting and subcontracting.

Personnel records

The organisation shall ensure that the following records are retained:

- records of the qualifications, training and experience of the personnel involved in maintenance, compliance monitoring and safety management;
- records of the qualifications, training and experience of all airworthiness review staff.

The records of all airworthiness review staff shall include details of any appropriate qualifications held, together with a summary of their relevant continuing airworthiness experience and training, and a copy of the airworthiness review authorisation issued to that staff by the organisation.

The records of all the certifying staff and support staff shall include the following:

- the details of any aircraft maintenance licence held under Annex III (Part-66) or equivalent;
- the scope of the certification authorisations that were issued to that staff, where relevant;

- the particulars of the staff that held limited or one-off certification authorisations.

Personnel records shall be kept for as long as a person works for the organisation, and shall be retained for at least 3 years after the person has left the organisation, or after an authorisation issued to that person has been withdrawn.

The organisation shall give to the staff, upon their request, access to their personnel records as detailed in those points. In addition, upon their request, the maintenance organisation shall furnish each of them with a copy of their personnel records on leaving the organisation.

The organisation shall establish a record-keeping system that allows adequate storage and reliable traceability of all its activities.

The format of the records shall be specified in the organisation's procedures.

The records shall be stored in a manner that ensures that they are protected from damage, alteration and theft.

145.A.60 Occurrence reporting

As part of its management system, the organisation shall establish and maintain an occurrence-reporting system, including mandatory and voluntary reporting. For organisations that have their principal place of business in a Member State, a single system may be established to meet the requirements of Regulation (EU) No 376/2014 and its implementing acts and of Regulation (EU) 2018/1139 and its delegated and implementing acts.

The organisation shall report to its competent authority and to the design approval holder of the aircraft or component any safety-related event or condition of an aircraft or component identified by the organisation which endangers or, if not corrected or addressed, could endanger an aircraft, its occupants or any other person, and in particular any accident or serious incident.

The organisation shall also report any such event or condition that affects an aircraft to the person or organisation that is responsible for the continuing airworthiness of that aircraft in accordance with Annex I (Part-M) or Annex Vb (Part-ML), as applicable. For events or conditions that affect aircraft components, the organisation shall report to the person or organisation that requested the maintenance.

For organisations that do not have their principal place of business in a Member State:

- the initial mandatory reports shall:
 - appropriately safeguard the confidentiality of the identity of the reporter and of the persons mentioned in the report;

- be made as soon as practicable, but in any case within 72 hours after the organisation has become aware of the occurrence unless exceptional circumstances prevent this;
- be made in a form and manner established by the competent authority;
- contain all pertinent information about the condition known to the organisation;
- where relevant, a follow-up report that provides details of the actions the organisation intends to take to prevent similar occurrences in the future shall be made as soon as those actions have been identified; those follow-up reports shall:
 - be sent to the entities to which the initial report was sent;
 - be made in a form and manner established by the competent authority.

145.A.65 Maintenance procedures

The organisation shall establish procedures which ensure that human factors and good maintenance practices are taken into account during maintenance, including subcontracted activities, and which comply with the applicable requirements of this Annex, Annex I (Part-M) and Annex Vb (Part-ML). Such procedures shall be agreed with the competent authority.

The maintenance procedures established under this point shall:

- ensure that a clear maintenance work order or contract has been agreed between the organisation and the person or organisation that requests the maintenance, to clearly establish the maintenance to be carried out so that the aircraft and components may be released to service ;
- cover all the aspects of carrying out the maintenance, including the provision and control of specialised services,

145.A.70 Maintenance organisation exposition

The organisation shall establish and maintain a maintenance organisation exposition (MOE) that includes, directly or by reference, all of the following:

- a statement signed by the accountable manager confirming that the maintenance organisation will at all times work in accordance with this Annex, Annex I (Part-M) and Annex Vb (Part-ML), as applicable, and with the approved MOE. If the accountable manager is not the chief executive officer of the organisation, then the chief executive officer shall countersign the statement;
- the organisation's safety policy and the related safety objectives;
- the title(s) and name(s) of the person(s) nominated;
- the duties and responsibilities of the persons nominated, including the matters on which they may deal directly with the competent authority on behalf of the organisation;
- an organisation chart showing the accountability and associated lines of responsibility;
- a list of the certifying staff and, if applicable, support staff and airworthiness review staff with their scope of authorisation;
- a general description of the manpower resources and of the system that is in place to plan the availability of staff;
- a general description of the facilities at each approved location;
- a specification of the scope of work of the organisation that is relevant to the terms of approval;
- the procedure that sets out the scope of changes not requiring prior approval and that describes how such changes will be managed and notified to the competent authority;
- the procedure for amending the MOE;
- the procedures specifying how the organisation ensures compliance with this Annex;
- a list of the commercial operators to which the organisation provides regular aircraft maintenance services, and the associated procedures;

- where applicable, a list of the subcontracted organisations;
- a list of the approved locations including, where applicable, line maintenance locations;
- a list of the contracted organisations;
- a list of the currently approved alternative means of compliance used by the organisation.

The initial issue of the MOE shall be approved by the competent authority. It shall be amended as necessary so that it remains an up-to-date description of the organisation.

145.A.75 Privileges of the organisation

In accordance with the MOE, the organisation shall be entitled to carry out the following tasks:

- maintain any aircraft or component for which it is approved at the locations identified in the certificate and in the MOE;
- arrange for the maintenance of any aircraft or component for which it is approved at another subcontracted organisation that works under the management system of the organisation. This is limited to the work permitted and it shall not include a base maintenance check of an aircraft, or a complete workshop maintenance check or overhaul of an engine or an engine module;
- Maintain any aircraft or any component for which it is approved at any location subject to the need for such maintenance arising either from the unserviceability of the aircraft or from the necessity of supporting occasional line maintenance, subject to the conditions specified in the exposition;
- Maintain any aircraft and/or component for which it is approved at a location identified as a line maintenance location capable of supporting minor maintenance and only if the organisation exposition both permits such activity and lists such locations;
- Issue certificates of release to service in respect of completion of maintenance
- if specifically approved to do so for aircraft covered by Annex Vb (Part-ML) and if it has its principal place of business in one of the Member States, the organisation may perform airworthiness reviews and issue the corresponding airworthiness review certificates under the conditions specified in Annex Vb (Part-ML).

145.A.85 Changes to the organisation

The following changes to the organisation shall require prior approval by the competent authority:

- changes to the certificate, including the terms of approval of the organisation;
- changes of the persons referred to in points 145.A.30(a), (b), (c) and (ca);
- changes to the reporting lines between the personnel nominated in accordance with points 145.A.30(b), (c) and (ca), and the accountable manager;
- the procedure as regards changes not requiring prior approval;
- additional locations of the organisation other than those that are subject to point 145.A.75(c).

For the changes referred to in first paragraph and for all other changes requiring prior approval in accordance with this Annex, the organisation shall apply for and obtain an approval issued by the competent authority. The application shall be submitted before such changes take place in order to enable the competent authority to determine that there is continued compliance with this Annex and to amend, if necessary, the organisation certificate and the related terms of approval that are attached to it.

The organisation shall provide the competent authority with any relevant documentation.

The change shall only be implemented upon the receipt of a formal approval from the competent authority.

The organisation shall operate under the conditions prescribed by the competent authority during such changes, as applicable.

All changes not requiring prior approval shall be managed and notified to the competent authority as set out in a procedure which is approved by the competent authority.

145.A.90 Continued validity

The organisation's certificate shall remain valid, subject to compliance with all of the following conditions:

- the organisation remaining in compliance with Regulation (EU) 2018/1139 and its delegated and implementing acts, taking into account the provisions of this Annex related to the handling of findings;
- the competent authority being granted access to the organisation;
- the certificate not being surrendered by the organisation, or suspended or revoked by the competent authority.

Upon surrender or revocation, the certificate shall be returned to the competent authority without delay.

145.A.95 Findings and observations

After the receipt of a notification of findings, the organisation shall:

- identify the root cause(s) of, and contributing factor(s) to, the non-compliance;
- define a corrective action plan;
- demonstrate the implementation of corrective action to the satisfaction of the competent authority.

The actions shall be performed within the period agreed with that competent authority.

The observations received shall be given due consideration by the organisation. The organisation shall record the decisions taken in respect of those observations.

145.A.120 Means of Compliance

An organisation may use any alternative means of compliance to establish compliance with this Regulation.

If an organisation wishes to use an alternative means of compliance, it shall, prior to using it, provide the competent authority with a full description. The description shall include any revisions to manuals or procedures that may be relevant, as well as an explanation indicating how compliance with this Regulation is achieved.

The organisation may use those alternative means of compliance subject to prior approval from the competent authority.

145.A.140 Access

For the purpose of determining compliance with the relevant requirements of Regulation (EU) 2018/1139 and its delegated and implementing acts, the organisation shall ensure that access to any facility, aircraft, document, records, data, procedures or to any other material relevant to its activity subject to certification, whether it is subcontracted or not, is granted to any person authorised by one of the following authorities:

- the competent authority;
- the authority performing the oversight tasks.

145.A.155 immediate reaction to a safety problem

The organisation shall implement:

- any safety measures mandated by the competent authority;
- any relevant mandatory safety information issued by the Agency.

145.A.200 Management system

The organisation shall establish, implement and maintain a management system that includes:

- clearly defined accountability and lines of responsibility throughout the organisation, including a direct safety accountability of the accountable manager;
- a description of the overall philosophies and principles of the organisation with regard to safety (“the safety policy”), and the related safety objectives;
- the identification of aviation safety hazards entailed by the activities of the organisation, their evaluation and the management of the associated risks, including taking actions to mitigate the risks and verify their effectiveness;
- maintaining personnel trained and competent to perform their tasks;
- documentation of all management system key processes, including a process for making personnel aware of their responsibilities and the procedure for amending that documentation;
- a function to monitor the compliance of the organisation with the relevant requirements. Compliance monitoring shall include a feedback system of findings to the accountable manager to ensure the effective implementation of corrective actions as necessary.

The management system shall correspond to the size of the organisation and the nature and complexity of its activities, taking into account the hazards and the associated risks inherent in those activities.

If the organisation holds one or more additional organisation certificates within the scope of Regulation (EU) 2018/1139, the management system may be integrated with that required under the additional certificate(s) held.

145.A.202 Internal safety reporting scheme

As part of its management system, the organisation shall establish an internal safety reporting scheme to enable the collection and evaluation of such occurrences that are to be reported

The scheme shall also enable the collection and evaluation of those errors, near misses and hazards reported internally that do not fall.

Through that scheme, the organisation shall:

- identify the causes of, and contributing factors to, the errors, near misses and hazards reported, and address them as part of its safety risk management process;
- ensure an evaluation of all known, relevant information relating to errors, near misses, hazards and the inability to follow procedures, and a method to circulate the information as necessary.

The organisation shall make arrangements to ensure the collection of safety issues related to subcontracted activities.

145.A.205 Contracting and subcontracting

The organisation shall ensure that when contracting or subcontracting any part of its maintenance activities:

- the maintenance conforms to the applicable requirements;
- any aviation safety hazard associated with such contracting or subcontracting is considered as part of the organisation's management system.

If the organisation subcontracts any part of its maintenance activities to another organisation, the subcontracted organisation shall work under the scope of approval of the subcontracting organisation.

Regulation (EU) No 1321/2014 Annex Vs (Part-CAO)

CAO.1 General

For the purpose of this Annex (Part-CAO):

the competent authority shall be:

- for organisations having their principal place of business in a Member State, the authority designated by that Member State;
- for organisations having their principal place of business in a third country, the Agency.

'owner' means the person responsible for the continuing airworthiness of the aircraft, including the following persons:

- the registered owner of the aircraft;
- the lessee in the case of a leasing contract;
- the operator.
-

CAO.A.010 scope

This Annex establishes the requirements to be met by a combined airworthiness organisation (CAO) in order to be issued, upon application, an approval for the maintenance and continuing airworthiness management of aircraft and components for installation thereon, and to continue carrying out those activities, where such aircraft are not classified as complex motor-powered aircraft and are not listed in the air operator certificate of an air carrier licensed in accordance with Regulation (EC) No 1008/2008.

CAO.A.015 Application

CAOs shall apply for the issuance of, or change to, a CAO approval to the competent authority in a form and manner established by that authority.

CAO.A.017 Means of compliance

Alternative means of compliance to the acceptable means of compliance adopted by the Agency may be used by an organisation to demonstrate compliance with Regulation (EU) 2018/1139 and its delegated and implementing acts.

When an organisation wishes to use alternative means of compliance, it shall, prior to using it, provide the competent authority with a full description of those alternative means of compliance. That description shall include an assessment demonstrating compliance of alternative means of compliance with Regulation (EU) 2018/1139 and its delegated and implementing acts.

The organisation may use those alternative means of compliance subject to prior approval by the competent authority, and upon receipt of the notification.

CAO:A.020 Terms of approval

The CAO shall specify the approved scope of work in its combined airworthiness exposition (CAE),.

For aeroplanes of more than 2 730 kg maximum take-off mass (MTOM) and for helicopters of more than 1 200 kg MTOM or certified for more than 4 occupants, the scope of work shall indicate the particular aircraft types. Changes to this scope of work shall be approved by the competent authority.

For complete turbine engines, the scope of work shall indicate the engine manufacturer or group or series or type or the maintenance task(s). Changes to this scope of work shall be approved by the competent authority.

A CAO which employs only one person for both planning and carrying out of all maintenance tasks cannot hold privileges for the maintenance of:

- aeroplanes equipped with a turbine engine (in the case of aircraft-rated organisations);
- helicopters equipped with a turbine engine or with more than one piston engine (in the case of aircraft-rated organisations);

- complete piston engines of 450 HP and above (in the case of engine-rated organisations); and
- complete turbine engines (in the case of engine-rated organisations).

For aircraft other than those mentioned in point (1), for components different from complete turbine engines and for non-destructive testing (NDT)-specialised services, the scope of work shall be controlled by the CAO. For maintenance of components different from complete engines, the scope of work shall be classified in accordance with the following system ratings:

- C1: air conditioning and pressurisation;
- C2: auto flight;
- C3: communications and navigation;
- C4: doors and hatches;
- C5: electrical power and lights;
- C6: equipment;
- C7: engine;
- C8: flight controls;
- C9: fuel;
- C10: helicopter and rotors;
- C11: helicopter transmission;
- C12: hydraulic power;
- C13: indicating and recording system;

- C14: landing gear;
- C15: oxygen;
- C16: propellers;
- C17: pneumatic and vacuum systems;
- C18: protection from ice/rain/fire;
- C19: windows;
- C20: structural;
- C21: water ballast; and
- C22: propulsion augmentation.

Organisations obtaining an approval in accordance with this Annex on the basis of an existing organisation approval issued in accordance with Subpart G or Subpart F of Annex I (Part-M) or Annex II (Part-145) in accordance with paragraph 4 of Article 4, shall include in the scope of work all the necessary details to ensure that the privileges are identical to the ones included in the existing approval.

The CAO approval shall be issued on the basis of the template set out in Appendix I to this Annex.

A CAO may fabricate, in conformity with maintenance data, a restricted range of parts for use in the course of undergoing work within its own facilities, as indicated in their CAE.

CAO.A.025 Combined airworthiness exposition

The CAO shall provide a manual containing at least the following information:

- a statement signed by the accountable manager confirming that the organisation will at all times work in accordance with the requirements of this Annex and the CAE;
- the CAE's scope of work;
- the title(s) and name(s) of the person(s) referred to in points (a) and (b) of point CAO.A.035;
- an organisation chart showing the chains of responsibility between the person(s) referred to in points (a) and (b) of CAO.A.035;
- a list of certifying staff with their scope of approval, if such staff exist;
- a list of staff responsible for the development and approval of aircraft maintenance programmes (AMPs) with their scope of approval, if such staff exist;
- a list of airworthiness review staff with their scope of approval, if such staff exist;
- a list of staff responsible for the issuance of permits to fly, if such staff exist;
- a general description and location of the facilities;
- procedures specifying how the CAO shall ensure compliance with the requirements of this Annex;
- the CAE amendment procedure, as provided for in point (b) of point CAO.A.105.

The initial CAE shall be approved by the competent authority.

Amendments to the CAE shall be handled in accordance with point CAO.A.105.

CAO.A.030 Facilities

The CAO shall ensure that all necessary facilities, including adequate office accommodation are provided for it to be able to carry out all the planned work.

In addition, where the scope of approval of the organisation includes maintenance activities, the CAO shall ensure that:

- specialised workshops, hangars and bays provide adequate protection from contamination and the environment;
- secure storage facilities are provided for components, equipment, tools and material, under conditions ensuring that unserviceable components and materials are segregated from all other components, material, equipment and tools, that the manufacturer's instructions for storage are complied with and that access to the storage facilities is restricted to authorised personnel.

CAO.A.035 Personnel requirements

The CAO shall appoint an accountable manager, who shall have an authority for ensuring that all activities of the organisation can be financed so that those activities are carried out in accordance with the requirements of this Annex.

The accountable manager shall nominate a person or group of persons who shall be responsible for ensuring that the CAO is always in compliance with the requirements of this Annex. Those person(s) shall ultimately be responsible to the accountable manager.

All persons referred to in point above shall have the relevant knowledge, background and experience related to continuing airworthiness management or maintenance, as appropriate for their functions.

The CAO shall have sufficient appropriately qualified staff for it to be able to carry out the planned work. The CAO shall be entitled to use temporarily subcontracted staff.

The CAO shall assess and record the qualification of all personnel.

Personnel who carry out specialised tasks, such as welding, or non-destructive testing ('NDT') inspection other than colour contrast inspections shall be qualified in accordance with an officially-recognised standard

CAO.A.040 Certifying staff

Certifying staff shall comply with the requirements of Article 5. They shall only exercise their privileges to release maintenance if the CAO has ensured:

- that these certifying staff meet the requirements of Annex III (Part-66) except when paragraph 6 of Article 5 refers to a national regulation of a Member State, in which case, they shall meet the requirements of such a regulation;
- that these certifying staff have an adequate understanding of the relevant aircraft or aircraft component(s) to be maintained, or both, as well as of the organisation procedures required to perform such maintenance.

By derogation from point above, in unforeseen circumstances where an aircraft is grounded at a location other than the main base where no appropriate certifying staff are available, the CAO contracted to provide maintenance support may issue a one-off certification authorisation, alternatively:

- to one of their employees holding type qualifications for aircraft of similar technology, construction and systems;
- to any person with no less than 3 years of maintenance experience and holding a valid ICAO aircraft maintenance licence rated for the aircraft type requiring certification, provided that there is no organisation approved in accordance with this Annex at that location and that the contracted CAO obtains and holds on file evidence of the experience and licence of that person.

The issuance of a one-off certification authorisation shall be reported by the CAO to the competent authority within 7 days of the issuance. The CAO issuing the one-off certification authorisation shall ensure that any such maintenance that could affect flight safety is rechecked.

By derogation from first point, the CAO may use certifying staff qualified in accordance with the following requirements when providing maintenance support to operators involved in commercial operations, subject to appropriate procedures to be approved as part of the CAE:

- for a repetitive preflight airworthiness directive (AD) which specifically states that the flight crew may carry out such an AD, the CAO may issue a limited certifying-staff authorisation to the pilot-in-command on the basis of the flight crew licence held, provided that the CAO ensures that sufficient practical training has been carried out by the pilot-in-command so he/she can accomplish the AD to the required standard;
- in the case of aircraft operating away from a supported location, the CAO may issue a limited certifying-staff authorisation to the pilot-in-command, on the basis of the flight crew licence held, provided that the organisation ensures that sufficient practical training has been carried out so that such a commander can accomplish the task to the required standard.

The CAO shall record the details concerning certifying staff and maintain an up-to-date list of all certifying staff, together with details on their scope of approval, as part of the organisation's exposition.

CAO.A.045 Airworthiness review staff

In order for it to be approved to carry out airworthiness reviews and, if applicable, to issue permits to fly, a CAO shall have appropriate airworthiness review staff who shall comply with all of the following requirements:

- they acquired experience in continuing airworthiness of at least 1 year for sailplanes and balloons and of at least 3 years for all other aircraft;
- they hold an appropriate licence issued in accordance with Article 5 of this Regulation or an aeronautical degree or equivalent, or they acquired experience in continuing airworthiness in addition to that referred to in point (1) of at least 2 years for sailplanes and balloons and at least 4 years for all other aircraft;
- they acquired appropriate aeronautical-maintenance training.

Before the CAO issues an authorisation to an airworthiness review staff to perform airworthiness review, the CAO shall nominate the person who will perform an airworthiness review of an aircraft under supervision of the competent authority or under the supervision of a person already authorised as airworthiness review staff of the CAO. If this supervision is satisfactory, the competent authority shall formally accept the staff to become airworthiness review staff.

The CAO shall ensure that its airworthiness review staff can demonstrate appropriate recent continuing airworthiness experience.

Each airworthiness review staff shall be identified in the CAE in a list that contains the airworthiness review authorisation referred in point (b).

The CAO shall maintain a record of all its airworthiness review staff, which shall include details of any appropriate qualification and a summary of relevant continuing airworthiness experience and training of the person concerned, as well as a copy of his or her authorisation. It shall retain that record for a period of at least 2 years after the date at which the person concerned no longer works for the CAO.

CAO.A.050 Components, equipment and tools

The CAO shall:

- hold the equipment and tools specified in the maintenance data provided for in point CAO.A.055, or verified equivalents as listed in the CAE, as necessary for day-to-day maintenance within the scope of the organisation's approval;
- have a procedure to ensure that it has access to all other equipment and tools necessary to carry out its work, used only on an occasional basis, where needed.

The CAO shall ensure that the tools and equipment it uses are controlled and calibrated to an officially recognised standard. It shall keep records of such calibrations and the standards used.

The CAO shall inspect, classify and appropriately segregate all incoming components in accordance with Annex I (Part-M) or Annex Vb (Part-ML), as applicable.

CAO.A.055 Maintenance data and work orders

The CAO shall hold and use applicable current maintenance data specified in Annex I (Part-M) or in Annex Vb (Part-ML), as applicable, in the performance of maintenance, including modifications and repairs. However, in the case of customer-provided maintenance data, it shall only be required to hold such data when the work is in progress.

Before the commencement of maintenance, a written work order shall be agreed between the CAO and the person or organisation requesting maintenance, in a manner that clearly establishes the maintenance to be carried out.

CAO.A.060 Maintenance standards

When performing maintenance, the CAO shall comply with all of the following requirements:

- ensure that any person performing maintenance is qualified in accordance with the requirements of this Annex;
- ensure that the area in which maintenance is carried out is well organised and clean (no dirt or contamination);
- use the methods, techniques, standards and instructions specified in the maintenance data and work orders referred to in point CAO.A.055;
- use the tools, equipment and material specified in point CAO.A.050;
- ensure that maintenance is performed in accordance with any environmental limitations specified in the maintenance data referred to in point CAO.A.055;
- ensure that proper facilities are used in case of inclement weather or lengthy maintenance;
- ensure that the risk of multiple errors during maintenance and the risk of errors being repeated in identical maintenance tasks are minimised;
- ensure that an error-capturing method is implemented after the performance of any critical maintenance task;
- perform a general verification after completion of maintenance in order to ensure that the aircraft or component is clear of all tools, equipment and any extraneous parts and material and that all access panels removed have been refitted;
- ensure that all maintenance performed is properly recorded and documented.

CAO.A.065 Aircraft certificate of release to service

At the completion of any aircraft maintenance carried out in accordance with this Annex, an aircraft CRS shall be issued in accordance with Annex I (Part-M) or Annex Vb (Part-ML), as applicable.

CAO.A.070 Component certificate of release to service

At the completion of all component maintenance in accordance with this Annex, a component CRS shall be issued in accordance with Annex I (Part-M) or Annex Vb (Part-ML), as applicable. An EASA Form 1 shall be issued in accordance with Appendix II to Annex I (Part-M), except for components fabricated in accordance with point CAO.A.020.

The EASA Form 1 may be generated from a computer database.

CAO.A.075 Continuing-airworthiness management

All continuing airworthiness management shall be carried out in accordance with the requirements of Subpart C of Annex I (Part-M) or Subpart C of Annex Vb (Part-ML), as applicable.

For every aircraft managed, the CAO shall:

- develop and control the AMP for the aircraft managed and:
 - in the case of aircraft complying with Annex Vb (Part-ML), approve the AMP and its amendments, or
 - in the case of aircraft complying with Annex I (Part-M), present the AMP and its amendments to the competent authority for approval, unless the approval is covered by an indirect approval procedure;
- provide a copy of the AMP to the owner;
- ensure that data used for any modification and repairs, as applicable;

- ensure that all maintenance is performed in accordance with the AMP and released in accordance with Section A, Subpart H of Annex I (Part-M), Section A of Annex II (Part-145) or Section A, Subpart H of Annex Vb (Part-ML), as applicable;
- ensure that all applicable ADs and all operational directives with a continuing airworthiness impact are implemented;
- ensure that all defects discovered during maintenance or reported are corrected by an appropriately approved maintenance organisation or by independent certifying staff;
- ensure that the aircraft is brought for maintenance to an appropriately approved organisation or to independent certifying staff, whenever necessary;
- coordinate the scheduled maintenance, application of ADs, replacement of service-life-limited parts and component inspection in order to ensure the work is carried out properly;
- manage and archive all continuing-airworthiness records and, if applicable, the aircraft technical log;
- ensure that the mass-and-balance statement reflects the current status of the aircraft.

CAO.A.080 Continuing Airworthiness management data

The CAO shall hold and use applicable current maintenance data specified Annex I (Part-M) or Annex Vb (Part-ML), as applicable, for the performance of the continuing airworthiness management tasks referred to in this Annex (Part-CAO). That data may be provided by the owner, subject to a contract, in which case the CAO only needs to hold such data for the duration of the contract, unless where it is to retain the data pursuant to this Annex (Part-CAO).

CAO.A.085 Airworthiness review

The CAO shall perform any airworthiness reviews in accordance with point M.A.901 of Annex I (Part-M) or point ML.A.903 of Annex Vb (Part-ML), as applicable.

CAO.A.090 Record-keeping

The CAO shall retain the following records:

- the maintenance records necessary to demonstrate that all requirements of this Annex have been met for the issuance of the CRS, including the subcontractor's release documents; the CAO shall provide a copy of each CRS to the owner of the aircraft, together with a copy of any specific repair or modification data used for the repairs or modifications carried out. The CAO shall retain a copy of this records, and any associated maintenance data, for a period of 3 years from the date at which it released to service the aircraft or aircraft component to which the work relates;
- the continuing airworthiness management records required. The CAO shall retain a copy of this for a period of 2 years from the date at which the aircraft has been permanently withdrawn from service
- a copy of each airworthiness review certificate (ARC) issued in accordance with point ML.A.901 of Annex Vb (Part-ML) and recommendation issued or, as applicable, extended, together with all supporting documents. The CAO shall retain a copy of this for a period of 2 years from the date at which the aircraft has been permanently withdrawn from service;
- a copy of each permit to fly issued in accordance with point 21.A.729 of Annex I (Part-21) to Regulation (EU) No 748/2012. The CAO shall retain a copy of this for a period of 2 years from the date at which the aircraft has been permanently withdrawn from service.

All records shall be stored in a manner that ensures protection from damage, alteration and theft.

All computer hardware used for backup of the maintenance records shall be stored in a different location from that containing those data and in an environment that ensures that they remain in good condition.

Where the continuing airworthiness management of an aircraft is transferred to another organisation or person, all the records retained shall be transferred to that organisation or person.

Where the CAO terminates its operation, all retained records shall be transferred as follows:

- the records referred to in first point shall be transferred to the last owner or customer of the respective aircraft or component or shall be stored as specified by the competent authority;

- the records referred to in the other 3 point shall be transferred to the owner of the aircraft.

CAO.A.095 Privileges of the organisation

The CAO shall have the following privileges:

- Maintenance
 - Maintain any aircraft or component for which it is approved at the locations specified in the approval certificate and the CAE.
 - Arrange for the performance of specialised services at another organisation appropriately qualified under the control of the CAO, in accordance with the appropriate procedures set out in the CAE and approved by the competent authority.
 - Maintain any aircraft or component for which it is approved at any location, where the need of such maintenance arises either from the unserviceability of the aircraft or the need for supporting occasional maintenance, in accordance with the conditions specified in the CAE.
 - Issue certificates of release to service upon completion of maintenance, in accordance with point CAO.A.065 or CAO.A.070.
- Continuing airworthiness management
 - Manage the continuing airworthiness of any aircraft for which it is approved.
 - Approve the AMP, in accordance with point (b)(2) of point ML.A.302, for aircraft managed in accordance with Annex Vb (Part-ML).
 - Carry out limited continuing airworthiness tasks with any contracted organisation working under their quality system, as listed on the approval certificate.
 - Extend, in accordance with point M.A.901(f) of Annex I (Part-M) or point ML.A.901(c) of Annex Vb (Part-ML), an ARC that has been issued by the competent authority, another organisation or person as applicable.
- Airworthiness review:

- A CAO with its principal place of business in one of the Member States, the approval of which includes the privileges referred to in point (b), may be approved to carry out airworthiness reviews in accordance with point M.A.901 of Annex I (Part-M) or point ML.A.903 of Annex Vb (Part-ML), as applicable, and:
 - issue the related ARC or recommendation for the issuance of the ARC;
 - extend the validity of an existing ARC.
- A CAO with its principal place of business in one of the Member States, the approval of which includes the privileges referred to in point (a), may be approved to carry out airworthiness reviews in accordance with point ML.A.903 of Annex Vb (Part-ML) and issue the related ARC.
- Permit to fly

A CAO with its principal place of business in one of the Member States, the approval of which includes the privileges referred to in point (c), may be approved to issue a permit to fly in accordance with point (d) of point 21.A.711 of Annex I (Part-21) to Regulation (EU) No 748/2012 for those aircraft for which it can issue the ARC when it attests conformity with the approved flight conditions, in accordance with an adequate procedure provided for in the CAE.

A CAO may be approved for one or more privileges.

CAO.A.100 Quality system and organizational review

To ensure that the CAO continues to meet the requirements of this Annex, this organisation shall establish a quality system and designate a quality manager.

The quality system shall monitor the carrying out of the activities of the organisation covered by this Annex. It shall monitor in particular:

- that all those activities are performed in accordance with the approved procedures;
- that all contracted maintenance tasks are carried out in accordance with the contract;
- that the organisation continues to comply with the requirements of this Annex.

The records of that monitoring shall be retained for at least the previous 2 years.

Where the organisation holding a CAO approval is additionally approved in accordance with an Annex other than this Annex, the quality system may be combined with that required by the other Annex.

A CAO shall be considered as a small CAO when one of the following condition is met:

- the scope of the CAO does only contain aircraft covered by Part-ML.
- the CAO does not exceed 10 full-time equivalent staff involved in maintenance.
- the CAO does not exceed 5 full-time equivalent staff involved in continuing airworthiness management.

In the case of a small CAO, the quality system may be replaced by regular organisational reviews, subject to the approval of the competent authority. In that case, the CAO shall not contract continuing airworthiness management tasks to other parties.

CAO.A.105 Changes to the organisation

In order to enable the competent authority to determine continued compliance with this Annex, the CAO shall notify the competent authority of any proposal to carry out any of the following changes, before such changes take place:

- changes affecting the information contained in the approval certificate laid down in Appendix I and the terms of approval of this Annex;
- changes of the persons referred to in points CAO.A.035;
- changes in the aircraft types covered by the scope of work referred to in point CAO.A.020 in the case of aeroplanes of more than 2 730 kg maximum take-off mass (MTOM) and in the case of helicopters of more than 1 200 kg MTOM or certified for more than 4 occupants;
- changes in the scope of work referred to in point CAO.A.020 in the case of complete turbine engines;
- changes in the control procedure set out in point (b) of this point.

(b) Any other changes in locations, facilities, equipment, tools, material, procedures, scope of work and staff shall be controlled by the CAO through a control procedure provided for in the CAE. The CAO shall submit a description of those changes and the corresponding CAE amendments to the competent authority within 15 days from the day on which the change took place.

CAO.A.110 Continued validity

An approval shall be issued for an unlimited duration and shall remain valid subject to:

- the organisation remaining in compliance with the requirements of this Annex, in particular how the findings are handled in accordance with point CAO.A.115;
- the competent authority being granted access to the organisation to determine continued compliance with the requirements of this Annex;
- the competent authority not having surrendered or revoked the approval.

Upon surrender or revocation of the approval, the organisation shall return the approval certificate to the competent authority.

CAO.A.115 Findings

A Level 1 finding is any significant non-compliance with Part-CAO requirements which lowers the safety standard and seriously hazards flight safety.

A Level 2 finding is any non-compliance with the Part-CAO requirements which may lower the safety standard and possibly hazard flight safety.

After receiving a notification of a finding in accordance with point CAO.B.060, the CAO shall adopt a corrective action plan and demonstrate to the satisfaction of the competent authority that it has taken the necessary corrective action to address the finding within the time period set by that authority.

10.4 Independent certifying staff

Privileges, responsibilities, record-keeping, limitations, and oversight according to Part-M, Part-66 and Part-ML.

Privileges

Independent certifying staff acting in accordance with the requirements laid down in Article 5 of Regulation (EU) 1321/2014;

Article 5 says:

1. Certifying staff shall be qualified in accordance with the requirements of Annex III (Part-66), except as provided for in Annex I (Part-M), Annex Vb (Part-ML), Annex Vd (Part-CAO) and in Annex II (Part-145).
2. Any aircraft maintenance licence and, if any, the technical limitations associated with that licence, issued or recognised by a Member State in accordance with the JAA requirements and procedures and valid at the time of entry into force of Regulation (EC) No 2042/2003, shall be deemed to have been issued in accordance with this Regulation.
3. Certifying staff holding a licence issued in accordance with Annex III (Part-66) in a given category/sub-category are deemed to have the privileges described in point 66.A.20(a) of the same Annex corresponding to such a category/sub-category. The basic knowledge requirements corresponding to these new privileges shall be deemed as met for the purpose of extending such licence to a new category/sub-category.
4. Certifying staff holding a licence including aircraft which do not require an individual type rating may continue to exercise his/her privileges until the first renewal or change, where the licence shall be converted following the procedure described in point 66.B.125 of Annex III (Part-66) to the ratings defined in point 66.A.45 of the same Annex.
5. Conversion reports and Examination credit reports complying with the requirements applicable before Regulation (EU) No 1149/2011 applied shall be deemed to be in compliance with this Regulation.
6. Until specific requirements for certifying staff for components are added to this Regulation, the requirements laid down in the national laws in force in the relevant Member State shall continue to apply, except for maintenance organisations located outside the Union where the requirements shall be approved by the Agency.

7. Limited certifying staff authorisations issued to flight engineer licence holders pursuant to point 145.A.30(j)(3) or (4) of Annex II (Part-145) before 2 December 2022 shall remain valid until they expire or until they are revoked by the maintenance organisation.

'independent certifying staff' means certifying staff who does not work on behalf of an approved maintenance organisation and who complies with, alternatively:

- the requirements of Annex III (Part-66);
- for aircraft to which Annex III (Part-66) does not apply, the certifying staff requirements in force in the Member State of registry of the aircraft;

Responsibilities and limitations

If an holder of aircraft signs the release to service as an independent certifying staff, this release is only valid in the Member State responsible for such certifying staff qualification and where the aircraft is registered.

Independent certifying staff holding a licence issued in accordance with Annex III (Part-66), may perform airworthiness reviews and issue the ARC for aircraft registered in any Member State. However, independent certifying staff holding a national qualification shall only perform airworthiness reviews and issue the ARC for aircraft registered in the Member State responsible for the national qualification.

To maintain the privileges, the independent certifying staff must do 6-month or 100 days of maintenance experience in the preceding 2 years.

Maintenance activities performed by an independent certifying staff is considered a medium risk operation.

ARCs issued by independent certifying staff holding a national qualification shall not benefit from mutual recognition when transferring the aircraft to another Member State.

COMPONENT MAINTENANCE BY INDEPENDENT CERTIFYING STAFF

The cases where the independent certifying staff can release component maintenance are only valid when the independent certifying staff is allowed, according to ML.A.201, to carry out maintenance (refer to GM1 ML.A.201) and when he or she is competent for such component maintenance.

As an example, in accordance with ML.A.201(e), the independent certifying staff cannot carry out maintenance when the balloon is operated under Subpart-ADD.

AIRWORTHINESS REVIEW (AR) BY INDEPENDENT CERTIFYING STAFF

ML.A.904(c) and (d) refer to the independent certifying staff. The terms 'corresponding aircraft' or 'particular aircraft' mean that the person meets at the time of the AR the certifying staff requirements for the aircraft subject to the AR.

The authorisation issued to the certifying staff by the competent authority is only granted after assessment of the knowledge required and after the satisfactory performance of an AR under supervision of the competent authority.

The competent authority who issued the airworthiness review authorisation pursuant to point (c) of point ML.A.904 for independent certifying staff shall revoke such authorisation if the holder shows poor performance of the airworthiness review or uses such authorisation in inappropriate manner.

Record keeping

In the case of an ML.A.801(b)(2) CRS, the independent certifying staff should retain all records necessary to prove that all requirements have been met for the issuance of a CRS.

Oversight according to Part-M, Part-66 and Part-ML

The requirements state by Part-M, Part-66 and Part-ML are described above

10.5 Air operations

General understanding of Regulation (EU) No 965/2012 (the Air Operations Regulation)

The provisions of Regulation 965/2012 on Air Operations (OPS) are published in several documents:

- implementing rules (published in the Official Journal of the European Union as a Commission regulation and subsequent amending regulations);
- acceptable means of compliance (AMC),
- guidance material (GM),
- certification specification (published on the official website).

The Regulation on Air OPS is amended to include provisions for commercial flight operations with gliders and balloons, for non-commercial operations with aircraft, helicopters, gliders and balloons and for special operations (for example, aerial work).

EASA updates the IR, AMC, GM and CS with amendment called respectively: “regulation” and “decision”.

Below the last amendment of AIR OPS

Implementing Rules (IRs) (Commission regulation)		
Commission Regulation	Affected Annex	Applicability date
Regulation (EU) No 965/2012 Initial Regulation	Annex I (definitions) Annex II (Part-ARO) Annex III (Part-ORO) Annex IV (Part-CAT) Annex V (Part-SPA)	28/10/2012
Regulation (EU) 2019/1387	Annex I (Definitions) Annex II (Part-ARO) Annex III (Part-ORO) Annex IV (Part-CAT) Annex V (Part-SPA) Annex VI (Part-NCC) Annex VII (Part-NCO) Annex VIII (Part-SPO)	25/09/2019 The following rules shall apply from 5/11/2020: CAT.OP.MPA.300; CAT.OP.MPA.301; CAT.OP.MPA.303; CAT.OP.MPA.311; CAT.POL.A.105(d); CAT.POL.A.255;

		CAT.POL.A.355.	
Incorporated AMC & GM (ED decisions)			
Annex (Part)	ED Decision	Issue No Amendment No	Applicability date
GM to Cover Regulation	2014/019/R 2019/019/R	Issue 1 (initial) Amendment 3	01/07/2014 18/09/2019
GM to Definitions for terms used in Annexes II to VIII	2012/015/R 2019/019/R	Issue 1 (initial) Amendment 11	24/10/2012 18/09/2019
AMC&GM to Part-ARO	2014/025/R 2019/019/R	Issue 3 Amendment 10	28/10/2014 01/09/2019(except for AMC1.ARO.RAM P.200(c) , which applies from 01/01/2020)
AMC&GM to Part-ORO	2014/017/R 2019/019/R	Issue 2 Amendment 15	01/07/2014 18/09/2019
CS-FTL.1	2014/002/R	Issue 1 (initial)	10/02/2014
AMC&GM to Part-CAT	2014/015/R 2019/019/R	Issue 2 Amendment 17	01/07/2014 18/09/2019
AMC&GM to Part-SPA	2012/019/R 2019/019/R	Issue 1 (initial) Amendment 8	24/10/2012 18/09/2019
AMC&GM to Part-NCC	2013/021/R 2019/019/R	Issue 1 (initial) Amendment 12	23/08/2013 18/09/2019
AMC&GM to Part-NCO	2014/016/R 2019/019/R	Issue 2 Amendment 9	01/07/2014 18/09/2019
AMC&GM to Part-SPO	2014/018/R 2019/019/R	Issue 1 (initial) Amendment 12	01/07/2014 18/09/2019

Differences between commercial and non commercial air operations, and their influence on aircraft maintenance

Commercial operation

'commercial operation' means any operation of an aircraft, in return for remuneration or other valuable consideration, which is available for the public or, when not made available to the public, which is performed under a contract between an operator and a customer, where the latter has no control over the operator.

NON-Commercial operation

The following examples of operations are not covered by the definition of commercial operations or by that of specialised operations. They are identified as non-commercial operations. Some of these operations are performed on an irregular basis. The operator and its crew members may consider them as non-routine operations, situated outside their operational routine. This constitutes a risk that the operator should include in its risk assessment process.

The operations listed below are performed with aircraft having a certificate of airworthiness or a permit to fly and being already listed on an AOC or on a declaration. They are grouped by the purpose of the flight.

- Demonstration flights
- Maintenance check flights
- Ferry flights – flights changing the location of the aircraft
- Training flights
- Other non-commercial flights
- Charity flights, humanitarian flights

Air Operators Certificates (AOCs) and self-declaration authorisations

Air Operators certificates (AOC)

The Air Operators Certificate (AOC) certify that the operator has the:

- Financial capacity;
- Technical capacity;
- Professional capacity;
- Business organization;
- Safety devices

Required to ensure the operation of their aircraft in conditions of safety for the specified activities.

The AOC is issue by the CAA (Civil Aviation Authority) of the State where the Operator is located following a positive assessment result. The organisation has to demonstrate compliance with applicable regulation.

The scope of the certification specified in a valid AOC can be extended by the CAA at the request of the operator following a positive assessment result. For extension purposes, the operator must demonstrate compliance with applicable regulation.

The Operator shall inform the CAA of all event which lowers or may lowers the safety standard and endangers flight safety.

Declaration

The operator of complex motor-powered aircraft engaged in non-commercial operations or non-commercial specialised operations, and the commercial specialised operator shall:

- provide the competent authority with all relevant information prior to commencing operations, using the form contained in Appendix I to Annex III of regulation (EU) 965/2012;
- notify to the competent authority a list of the alternative means of compliance used;
- maintain compliance with the applicable requirements and with the information given in the declaration;
- notify the competent authority without delay of any changes to its declaration or the means of compliance it uses through submission of an amended declaration using the form contained in Appendix I to this Annex III of regulation (EU) 965/2012; and
- notify the competent authority when it ceases operation.

The new declaration should be submitted before the change becomes effective indicating the date as of which the change would apply.

The intent of the declaration is to:

- have the operator acknowledge its responsibilities under the applicable safety regulations and that it holds all necessary approvals;
- inform the competent authority of the existence of an operator; and
- enable the competent authority to fulfil its oversight responsibilities in accordance with ARO.GEN.300 and 305.

Air Operator responsibilities, in particular regarding continuing airworthiness and maintenance

The operator is responsible for the operation of the aircraft in accordance with Basic Regulation, as applicable, the relevant requirements of Regulation (EU) 956/2021.

Every flight shall be conducted in accordance with the provisions of the operations manual.

The operator shall establish and maintain a system for exercising operational control over any flight operated under the terms of its certificate, SPO authorisation or declaration.

The operator shall ensure that its aircraft are equipped and its crews are qualified as required for the area and type of operation.

The operator shall ensure that all personnel assigned to, or directly involved in, ground and flight operations are properly instructed, have demonstrated their abilities in their particular duties and are aware of their responsibilities and the relationship of such duties to the operation as a whole.

The operator shall establish procedures and instructions for the safe operation of each aircraft type, containing ground staff and crew member duties and responsibilities, for all types of operation on the ground and in flight. Those procedures and instructions shall not require crew members to perform any activities during critical phases of flight other than those required for the safe operation of the aircraft. Procedures and instructions for a sterile flight crew compartment shall also be included.

The operator shall ensure that all personnel are made aware that they shall comply with the laws, regulations and procedures of those States in which operations are conducted and that are pertinent to the performance of their duties.

The operator shall establish a checklist for each aircraft type to be used by crew members in all phases of flight under normal, abnormal and emergency conditions in order to ensure that the operating procedures in the operations manual are followed. The design and the usage of checklists shall observe human factors principles and take into account the latest relevant documentation from the design approval holder.

The operator shall specify flight planning procedures to provide for the safe conduct of the flight based on considerations of aircraft performance, other operating limitations and relevant expected conditions on the route to be followed and at the aerodromes or operating sites concerned. These procedures shall be included in the operations manual.

The operator shall establish and maintain dangerous goods training programmes for personnel as required by the technical instructions. Such training programmes shall be commensurate with the responsibilities of personnel. Training programmes of operators performing CAT, whether they transport dangerous goods or not, and of operators conducting operations other than CAT that transport dangerous goods shall be subject to review and approval by the competent authority.

Specialised operations / specific approvals:ETOPS,CAT I/II/III, and BRNAV

The operator applying for the initial issue of a specific approval shall provide to the competent authority the documentation required in the applicable Subpart, together with the following information:

- the name, address and mailing address of the applicant;
- a description of the intended operation.

Operating procedures should be documented in the operations manual.

If an operations manual is not required, operating procedures may be described in a manual specifying procedures (procedures manual). If the aircraft flight manual (AFM) or the pilot operating handbook (POH) contains such procedures, they should be considered as acceptable means to document the procedures.

The scope of the activity that an operator is approved to conduct shall be documented and specified:

- for operators holding an air operator certificate (AOC) in the operations specifications to the AOC;
- for all other operators in the list of specific approvals.

When the conditions of a specific approval are affected by changes, the operator shall provide the relevant documentation to the competent authority and obtain prior approval for the operation.

Specific approvals shall be issued for an unlimited duration and shall remain valid subject to the operator remaining in compliance with the requirements associated with the specific approval and taking into account the relevant elements defined in the mandatory part of the operational suitability data established in accordance with Regulation (EU) No 748/2012.

Extended Range Operations With Two-Engined Aeroplanes (Etops)

In commercial air transport operations, two-engined aeroplanes shall only be operated beyond the threshold distance if the operator has been granted an ETOPS operational approval by the competent authority.

To obtain an ETOPS operational approval from the competent authority, the operator shall provide evidence that:

- the aeroplane/engine combination holds an ETOPS type design and reliability approval for the intended operation;
- a training programme for the flight crew members and all other operations personnel involved in these operations has been established and the flight crew members and all other operations personnel involved are suitably qualified to conduct the intended operation;
- the operator's organisation and experience are appropriate to support the intended operation;
- operating procedures have been established.

Low visibility operations

The operator shall only conduct the following low visibility operations (LVO) when approved by the competent authority:

- low visibility take-off (LVTO) operation;
- lower than standard category I (LTS CAT I) operation;
- standard category II (CAT II) operation;
- other than standard category II (OTS CAT II) operation;
- standard category III (CAT III) operation;
- approach operation utilising enhanced vision systems (EVS) for which an operational credit is applied to reduce the runway visual range (RVR) minima by no more than one third of the published RVR.

Category I - Landing following a precision approach using an Instrument Landing System or Microwave System with a decision height of below 250 feet but not less than 200 feet. Runway visual range: not less than 400 meters.

Category II - Landing following a precision approach using an Instrument Landing System or Microwave System with a decision height of below 200 feet but not less than 100 feet. Runway visual range: not less than 300 meters.

Category IIIA - Landing following a precision approach using an Instrument Landing System or Microwave System with a decision height of below 100 feet. Runway visual range: not less than 200 meters.

Category IIIB - Landing following a precision approach using an Instrument Landing System or Microwave System with a decision height of below 50 feet. Runway visual range: less than 200 meters but not less than 75 meters.

BRNAV -Basic Area Navigation

RNAV is a method of navigation which permits the operation of an aircraft on any desired flight path; it allows its position to be continuously determined wherever it is rather than only along tracks between individual ground navigation aids. RNAV includes Performance Based Navigation (PBN) as well as other RNAV operations that are not within the definition of PBN.

In Europe, Basic Area Navigation (B-RNAV) has been in use since 1998 and is mandated for aircraft using higher level airspace. It requires a minimum navigational accuracy of +/- 5nm (RNP=5) for 95% of the time and is not approved for use below Minimum Sector Altitude.

Minimum Equipment List (MEL) and Configuration Deviation List (CDL)

The operator should have a system to ensure that all defects affecting the safe operation of the aircraft are rectified within the limits prescribed by the approved minimum equipment list (MEL), configuration deviation list (CDL) or maintenance data, as appropriate. Also that such defect rectification cannot be postponed unless agreed by the operator and in accordance with a procedure approved by the competent authority.

A minimum equipment list (MEL) shall be established as specified under point 8.a.3 of Annex IV to Regulation (EC) No 216/2008, based on the relevant master minimum equipment list (MMEL) as defined in the data established in accordance with Regulation (EU) No 748/2012. If an MMEL has not been established as part of the operational suitability data, the MEL may be based on the relevant MMEL accepted by the State of Operator or Registry as applicable.

The MEL and any amendment thereto shall be approved by the competent authority.

The operator shall amend the MEL after any applicable change to the MMEL within the acceptable timescales.

In addition to the list of items, the MEL shall contain:

- a preamble, including guidance and definitions for flight crews and maintenance personnel using the MEL;
- the revision status of the MMEL upon which the MEL is based and the revision status of the MEL;
- the scope, extent and purpose of the MEL.

The operator shall:

- establish rectification intervals for each inoperative instrument, item of equipment or function listed in the MEL. The rectification interval in the MEL shall not be less restrictive than the corresponding rectification interval in the MMEL;
- establish an effective rectification programme;
- only operate the aircraft after expiry of the rectification interval specified in the MEL when:
 - the defect has been rectified; or
 - the rectification interval has been extended.

Subject to approval of the competent authority, the operator may use a procedure for the one time extension of category B, C and D rectification intervals, provided that:

- the extension of the rectification interval is within the scope of the MMEL for the aircraft type;
- the extension of the rectification interval is, as a maximum, of the same duration as the rectification interval specified in the MEL;
- the rectification interval extension is not used as a normal means of conducting MEL item rectification and is used only when events beyond the control of the operator have precluded rectification;
- a description of specific duties and responsibilities for controlling extensions is established by the operator;
- the competent authority is notified of any extension of the applicable rectification interval; and
- a plan to accomplish the rectification at the earliest opportunity is established.

The CDL(s), if provided by the manufacturer, taking account of the aircraft types and variants operated, including procedures to be followed when an aircraft is being dispatched under the terms of its CDL

The operator's MEL/CDL provides the basis for establishing which defects may be deferred and the associated limits. The procedures should also define the responsibilities and actions to be taken for defects such as AOG situations, repetitive defects, and damage beyond the type certificate holder's limits.

For all other defects identified during maintenance, the information should be brought to the attention of the CAMO which, depending upon the procedural authority granted by the competent authority, may determine that some defects can be deferred. Therefore, adequate liaison between the CAMO, its subcontracted organisation and contracted maintenance organisation should be ensured.

Deferment of MEL/CDL allowable defects can be accomplished by a contracted maintenance organisation in compliance with the relevant technical log procedures, subject to the acceptance by the aircraft commander.

Aircraft placarding (Markings)

The nationality or common mark and registration mark shall consist of a group of characters. The nationality or common mark shall precede the registration mark. When the first character of the registration mark is a letter, it shall be preceded by a hyphen. The nationality mark shall be selected from the series of nationality symbols included in the radio call signs allocated to the State of Registry by the International Telecommunication Union. The nationality mark shall be notified to the International Civil Aviation Organization. The common mark shall be selected from the series of symbols included in the radio call signs allocated to the International Civil Aviation Organization by the International Telecommunication Union.

Note.— Assignment of the common mark to a common mark registering authority will be made by the International Civil Aviation Organization.

The registration mark shall be letters, numbers, or a combination of letters and numbers, and shall be that assigned by the State of Registry or common mark registering authority. When letters are used for the registration mark, combinations shall not be used which might be confused with the five-letter combinations used in the International Code of Signals, Part II, the three-letter combinations beginning with Q used in the Q Code, and with the distress signal SOS, or other similar urgent signals, for example XXX, PAN and TTT.

Documents to be carried on Board

The following documents, manuals and information shall be carried on each flight, as originals or copies unless otherwise specified:

- Certificate of Airworthiness / Restricted Certificate of Airworthiness;
- Airworthiness Review Certificate;
- Permit to Fly;
- Certificate of Registration;
- Noise Certificate;
- Weight and Balance report;
- Radio Station Licence.

Certificate of Airworthiness / Restricted Certificate of Airworthiness

In Article. 31 of the ICAO Convention, stipulated in Chicago on 7 December 1944, it is established that

" Every aircraft engaged in international navigation shall be provided with a certificate of airworthiness issued or rendered valid by the State in which it is registered".

The European regulations establishes that the eligibility of the aircraft to navigation is certified by the Certificate of Airworthiness. Associated to its must be there an Airworthiness Review Certificate that has one year of validity.

The (EU) Regulation that contains the requirements for the issue of certificate of airworthiness of aircraft is the Annex I (Part 21) to Regulation (EU) 748/2012. Instead, the one containing the requirements for the issue of Airworthiness Review Certificate is Annex I (Part M) to Regulation (EU) no. 1321/2014. The Airworthiness Review Certificate must always be carried on board the aircraft.

The Certificate of Airworthiness are those identified in paragraph 21A.173 of Part 21 and in particular:

- Certificates of Airworthiness (Model EASA 25). The certificate of airworthiness is that issued for aircraft that comply with a certificate of type approved by EASA.
- Restricted Certificates of Airworthiness (Model EASA 24). The Restricted Certificates of Airworthiness issued: - For aircrafts in compliance with a limited certificate approved by EASA, or

For individual aircraft for which compliance with certain "specific Airworthiness Specifications" has been demonstrated and which are able to ensure an adequate level of safety.

From the 28th September of 2004 the certificates of airworthiness are exclusively issued using the EASA models. When required by Part 21, with them is associated the Noise Certificate. (Model EASA 45).

The requirements for the issue of the Certificate of Airworthiness and the associated Noise Certificate are those set out respectively in Subparts H and I of sections A and B of Part 21. The process of issuing the Certificate of Airworthiness and the Noise Certificate is described in the Circular NAV-25E and associated documentation. For the issue of these Certificates, the owners of the aircraft (or their formally identified representatives) must present the relevant application to the CAA. The owners must also apply for registration of the aircraft to the Aircraft Register Unit of the local CAA.

The Certificate of Airworthiness and Restricted Certificate of Airworthiness do not expire (Part 21A.181) and it must be associated with an Airworthiness Review Certificate (ARC).

In the first issue of the Certificates of Airworthiness and the Restricted Certificate of Airworthiness, the ARC (EASA Model 15a) will be issued by the CAA responsible for the territory.

For aircraft not used in commercial air transport and until the full implementation of Part M in Italy according to specific provisions issued by the CAA in accordance with Regulation (EU) no. 1321/2014 where in Part 21 for the issuance of the Certificate of Airworthiness it is requested to apply and / or to comply with the provisions of Annex I (Part M) to Regulation (EU) 1321/2014, as amended , they may be used as an alternative the corresponding national requirements and procedures.

For the aircraft listed in Annex II of Regulation (EU) 2018/1139, which remain subject to the national regulations, shall be applied as expected of the CAA Technical Regulation.

The Permit to fly can be issued when it can be demonstrated that the aircraft, while not meeting the requirements of airworthiness (Certification Specifications), is able to safely perform an elementary flight. It can be issued with the appropriate limitations, and in any case with the aim of protecting third parties.

The Operating conditions and limitations refer to specified flight schedules and are generally approved by EASA or by an approved design organization. Once the flight conditions and limitations have been approved, the CAA or an approved planning organization can issue the Permit to fly.

Airworthiness Review Certificate

This Certificate is issued after a successful Airworthiness Review and has a validity of one year. The review entails a full documented review of the aircraft records and a physical survey of the aircraft.

Permit to Fly;

The Permit to fly can be issued when it can be demonstrated that the aircraft, while not meeting the requirements of airworthiness (Certification Specifications), is able to safely perform an elementary flight. It can be issued with the appropriate limitations, and in any case with the aim of protecting third parties.

The Operating conditions and limitations refer to specified flight schedules and are generally approved by EASA or by an approved design organization. Once the flight conditions and limitations have been approved, the CAA or an approved planning organization can issue the Permit to fly

Certificate of Registration

The Certificate of Registration of an aircraft contains the informations used from the national authorities to provide the prescriptions of airworthiness to the owners of the aircrafts.

The National Authority request the owner of the aircraft to update immediately the informations or as soon as there are changes.

Noise Certificate

Each aircraft must be in possession of a Noise Certificate attesting the compliance of the measured values with the limits set by international standards.

The noise information to fill the EASA Form 45 (noise certificate) can be found in the “EASA Type Certificate Data Sheet for Noise (TCDSN)”.

Aeronautical noise is a sound coming from an aircraft, during which there is clearly a noise significantly higher than the noises generally present in the background.

With regard to the noise source, each aircraft must be in possession of the noise certification issued following the tests carried out on the occasion of the release of the certificate of eligibility for air navigation. The required tests and the limits of acceptability of the measured values depend on the type of aircraft and must comply with international standards and recommended practices contained in ICAO Annex 16, Volume I.

The compliance to ICAO Annex 16 and the aspects related to the certification of environmental protection of the aircrafts is imposed by the Regulation (EU) 2018/1139. The implementing regulation for acoustic certification is the Certification Specification (CS) 36 issued by EASA and mandatory for all EU countries.

Since the annoyance perceived by the population in the areas surrounding the airports changes according to the person and the type of community, it was necessary to define the acoustic climate in the areas surrounding the airport through objective and measurable criteria.

Weight and Balance report;

The document that reports the aircraft weights in its various configurations must always be present in the documentation on board.

Radio Station Licence

Each radio station installed on board of civil aircraft, enrolled in the National Aeronautical Register, must be equipped with a special Operating License of the Radio Station (briefly indicated as LESR) issued by the Territorial Inspectorates of the Ministry of Economic Development. The license enables the onboard radio station to make communications regarding the safety and regularity of the flight.

The aeronautical mobile radio service is a service performed between aeronautical stations and aircraft stations, or between aircraft stations, in the bands assigned by the current National Frequency Distribution Plan drawn up by the Ministry of Economic Development.

Also, the radio stations of the vehicles of rescue and first aid participate to this service (SAR) when they use the frequencies intended for this aim.

10.6 Certification of aircraft, parts and appliances

Basic understanding of Part 21 and of the following EASA certification specifications: CS-22, CS-23, CS-25, CS-27, CS-29, and CS-STAN

SECTION A — TECHNICAL REQUIREMENTS

SUBPART A — GENERAL PROVISIONS

21.A.1 Scope

This Subpart establishes the general rights and obligations of the applicant for, and holder of, any certificate that has been issued or is to be issued in accordance with this Annex.

21.A.2 Undertaking by another person than the applicant for, or holder of, a certificate

The actions and obligations required to be undertaken by the holder of, or applicant for, a certificate for a product, part or appliance under this Section may be undertaken on its behalf by any other natural or legal person, provided the holder of, or applicant for, that certificate can show that it has made an agreement with the other person such as to ensure that the holder's obligations are and will be properly discharged.

21.A.3A Reporting system

Without prejudice to Regulation (EU) No 376/2014 of the European Parliament and of the Council¹ and its delegated and implementing acts, all natural or legal persons that have applied for or hold a type-certificate, restricted type-certificate, supplemental type-certificate, European Technical Standard Order (ETSO) authorisation, major repair design approval or any other relevant approval deemed to have been issued under this Regulation shall:

- establish and maintain a system for collecting, investigating and analysing occurrence reports in order to identify adverse trends or to address deficiencies and to extract occurrences whose reporting is mandatory in accordance with point 3 and those which are reported voluntarily.

SUBPART B — TYPE-CERTIFICATES AND RESTRICTED TYPE-CERTIFICATES

21.A.11 Scope

This Subpart establishes the procedure for issuing type-certificates for products and restricted type-certificates for aircraft, and establishes the rights and obligations of the applicants for, and holders of, those certificates.

21.A.13 Eligibility

Any natural or legal person that has demonstrated, or is in the process of demonstrating, its capability in accordance with point 21.A.14 shall be eligible as an applicant for a type-certificate or a restricted type-certificate under the conditions laid down in this Subpart.

(SUBPART C — NOT APPLICABLE)

SUBPART D — CHANGES TO TYPE-CERTIFICATES AND RESTRICTED TYPE-CERTIFICATES

21.A.90A Scope

This Subpart establishes the procedure for the approval of changes to type-certificates, and establishes the rights and obligations of the applicants for, and holders of, those approvals. This Subpart also defines standard changes that are not subject to an approval process under this Subpart. In this Subpart, references to type-certificates include type-certificate and restricted type-certificate.

21.A.90B Standard changes

Standard changes are changes to a type-certificate:

- in relation to:
 - aeroplanes of 5 700 kg Maximum Take-Off Mass (MTOM) or less;
 - rotorcraft of 3 175 kg MTOM or less;
 - sailplanes, powered sailplanes, balloons and airships, as defined in ELA1 or ELA2,
- that follow design data included in the certification specifications issued by the Agency, containing acceptable methods, techniques and practices for carrying out and identifying standard, including the associated instructions for continued airworthiness; and
- that are not in changes conflict with TC holders data.

SUBPART E — SUPPLEMENTAL TYPE-CERTIFICATES

21.A.111 Scope

This Subpart establishes the procedure for the approval of major changes to the type-certificate under supplemental type-certificate procedures, and establishes the rights and obligations of the applicants for, and holders of, those certificates. In this Subpart, the references to type-certificates include type-certificates and restricted type-certificates.

21.A.112A Eligibility

Any natural or legal person that has demonstrated, or is in the process of demonstrating, its capability in accordance with point 21.A.112B may apply for a supplemental type-certificate in accordance with the conditions laid down in this Subpart.

SUBPART F — PRODUCTION WITHOUT PRODUCTION ORGANISATION APPROVAL

21.A.121 Scope

This Subpart establishes the procedure for demonstrating the conformity with the applicable design data of a product, part and appliance that is intended to be manufactured without a production organisation approval under Subpart G.

This Subpart establishes the rules governing the obligations of the manufacturer of a product, part, or appliance being manufactured under this Subpart.

SUBPART G — PRODUCTION ORGANISATION APPROVAL

21.A.131 Scope

This Subpart establishes:

- the procedure for the issuance of a production organisation approval for a production organisation showing conformity of products, parts and appliances with the applicable design data;
- the rules governing the rights and obligations of the applicant for, and holders of, such approvals.

SUBPART H — CERTIFICATES OF AIRWORTHINESS AND RESTRICTED CERTIFICATES OF AIRWORTHINESS

21.A.171 Scope

This Subpart establishes the procedure for issuing airworthiness certificates.

SUBPART I — NOISE CERTIFICATES

21.A.201 Scope

This Subpart establishes the procedure for issuing noise certificates.

SUBPART J — DESIGN ORGANISATION APPROVAL

21.A.231 Scope

This Subpart establishes the procedure for the approval of design organisations and rules governing the rights and obligations of applicants for, and holders of, such approvals. In this Subpart, the references to type-certificates include type-certificates and restricted type-certificates.

SUBPART K — PARTS AND APPLIANCES

21.A.301 Scope

This Subpart establishes the procedure relating to the approval of parts and appliances

(SUBPART L — NOT APPLICABLE)

SUBPART M — REPAIRS

21.A.431A Scope

This Subpart establishes the procedure for the approval of a repair design of a product, part or appliance and establishes the rights and obligations of the applicants for, and holders of, those approvals.

This Subpart defines standard repairs that are not subject to an approval process under this Subpart.

A “repair” means the elimination of damage and/or restoration to an airworthy condition following the initial release to service by the manufacturer of any product, part or appliance.

The elimination of damage by replacement of parts or appliances without the necessity for design activity shall be considered as a maintenance task and shall therefore require no approval under this Annex.

A repair to an ETSO article other than an Auxiliary Power Unit (APU) shall be treated as a change to the ETSO design and shall be processed in accordance with point 21.A.611.

In this Subpart, the references to type-certificates include type-certificates and restricted type-certificates.

(SUBPART N — NOT APPLICABLE)

SUBPART O — EUROPEAN TECHNICAL STANDARD ORDER AUTHORISATIONS

21.A.601 Scope

This Subpart establishes the procedure for issuing ETSO authorisations and the rules governing the rights and obligations of applicants for, or holders of, such authorisations.

SUBPART P — PERMIT TO FLY

21.A.701 Scope

Permits to fly shall be issued in accordance with this Subpart to aircraft that do not meet, or have not been shown to meet, applicable airworthiness requirements but are capable of safe flight under defined conditions and for the following purposes:

- development;
- showing compliance with regulations or certification specifications;
- design organisations or production organisations crew training;
- production flight testing of new production aircraft;
- flying aircraft under production between production facilities;
- flying the aircraft for customer acceptance;
- delivering or exporting the aircraft;
- flying the aircraft for Authority acceptance;
- market survey, including customer's crew training;
- exhibition and air show;
- flying the aircraft to a location where maintenance or airworthiness review are to be performed, or to a place of storage;
- flying an aircraft at a weight in excess of its maximum certificated takeoff weight for flight beyond the normal range over water, or over land areas where adequate landing facilities or appropriate fuel is not available;
- record breaking, air racing or similar competition;

- flying aircraft meeting the applicable airworthiness requirements before conformity to the environmental requirements has been found;
- for non-commercial flying activity on individual non-complex aircraft or types for which a certificate of airworthiness or restricted certificate of airworthiness is not appropriate.
- flying an aircraft for troubleshooting purposes or to check the functioning of one or more systems, parts or appliances after maintenance.

This Subpart establishes the procedure for issuing permits to fly and approving associated flight conditions, and establishes the rights and obligations of the applicants for, and holders of, those permits and approvals of flight conditions.

SUBPART Q — IDENTIFICATION OF PRODUCTS, PARTS AND APPLIANCES

21.A.801 Identification of products

The identification of products shall include the following information:

- the manufacturer's name;
- the product designation;
- the manufacturer's serial number;
- the 'EXEMPT' mark in case of an engine, when the competent authority has granted an exemption from the environmental protection requirements;
- any other information the Agency finds appropriate.

Any natural or legal person that manufactures an aircraft or engine under Subpart G or Subpart F shall identify that aircraft or engine by means of a fireproof plate that has the information specified in point (a) marked on it by etching, stamping, engraving, or other approved method of fireproof marking. The identification plate shall be secured in such a manner that it is accessible and legible, and will not likely be defaced or removed during normal service, or lost or destroyed in an accident.

Any natural or legal person that manufactures a propeller, propeller blade, or propeller hub under Subpart G or Subpart F shall identify it by means of a plate, stamping, engraving, etching or other approved method of fireproof identification that is placed on it on a non-critical surface, contains the information specified in point (a), and will not likely be defaced or removed during normal service or lost or destroyed in an accident.

For manned balloons, the identification plate prescribed in point (b) shall be secured to the balloon envelope and shall be located, if practicable, where it is legible to the operator when the balloon is inflated. In addition, the basket, load frame assembly and any heater assembly shall be permanently and legibly marked with the manufacturer's name, part number, or equivalent, and serial number, or equivalent.

CS-22 Certification Specifications, Acceptable Means of Compliance and Guidance Material for Sailplanes and Powered Sailplanes

This Airworthiness Code is applicable to sailplanes and powered sailplanes in the utility U and aerobatic A categories:—

- sailplanes the maximum weight of which does not exceed 750 kg;
- single engined (spark- or compression-ignition) powered sailplanes the design value W/b^2 (weight to span²) of which is not greater than 3(W [kg], b [m]) and the maximum weight of which does not exceed 850 kg; and
- sailplanes and powered sailplanes the number of occupants of which does not exceed two.

CS-23 Certification Specifications for Normal-Category Aeroplanes

This Certification Specification prescribes airworthiness standards for the issuance of type certificates, and changes to those certificates, for aeroplanes in the normal category.

Certification in the normal category applies to aeroplanes with a passenger seating configuration of 19 or less and a maximum certified take-off mass of 8 618 kg (19 000 pounds) or less.

CS-25 Certification Specifications and Acceptable Means of Compliance for Large Aeroplanes

These Certification Specifications are applicable to turbine powered Large Aeroplanes

CS-27 Certification Specifications, Acceptable Means of Compliance and Guidance Material for Small Rotorcraft

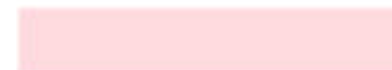
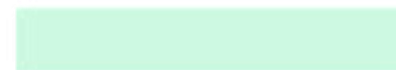
These certification specifications are applicable to small rotorcraft with maximum weights of 3 175 kg (7 000 lbs) or less and nine or less passenger seats.

CS-29 Certification Specifications, Acceptable Means of Compliance and Guidance Material for Large Rotorcraft

These certification specifications are applicable to large rotorcraft.

CS-STAN Certification Specifications for Standard Changes and Standard Repairs

These certification specifications for SCs/SRs contain design data with acceptable methods, techniques, and practices for carrying out and identifying SCs/SRs. SCs/SRs, designed in compliance with these certification specifications, are not subject to an approval process and, therefore, can be embodied in an aircraft when the conditions set out in the relevant points of Part 21



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10.7 Continuing Airworthiness

General understanding of the Part 21 requirements on continuing airworthiness

21.A.3B Airworthiness directives

(a) An airworthiness directive means a document issued or adopted by the Agency which mandates actions to be performed on an aircraft to restore an acceptable level of safety, when evidence shows that the safety level of this aircraft may otherwise be compromised.

(b) The Agency shall issue an airworthiness directive when:

1. an unsafe condition has been determined by the Agency to exist in an aircraft, as a result of a deficiency in the aircraft, or an engine, propeller, part or appliance installed on this aircraft; and
2. that condition is likely to exist or develop in other aircraft.

(c) When an airworthiness directive has to be issued by the agency to correct the unsafe condition referred to in point (b), or to require the performance of an inspection, the holder of the type-certificate, restricted type-certificate, supplemental type-certificate, major repair design approval, ETSO authorisation or any other relevant approval deemed to have been issued under this Regulation, shall:

1. propose the appropriate corrective action or required inspections, or both, and submit details of these proposals to the Agency for approval;
2. following the approval by the Agency of the proposals referred to under point (1), make available to all known operators or owners of the product, part or appliance and, on request, to any person required to comply with the airworthiness directive, appropriate descriptive data and accomplishment instructions.

(d) An airworthiness directive shall contain at least the following information:

1. an identification of the unsafe condition;
2. an identification of the affected aircraft;
3. the action(s) required;

4. the compliance time for the required action(s);

5. the date of entry into force.

SUBPART H — CERTIFICATES OF AIRWORTHINESS AND RESTRICTED CERTIFICATES OF AIRWORTHINESS

21.A.171 Scope

This Subpart establishes the procedure for issuing airworthiness certificates.

21.A.172 Eligibility

Any natural or legal person under whose name an aircraft is registered or will be registered in a Member State ('Member State of registry'), or its representative, shall be eligible as an applicant for an airworthiness certificate for that aircraft under this Subpart.

21.A.173 Classification

Airworthiness certificates shall be classified as follows:

- certificates of airworthiness shall be issued to aircraft which conform to a type-certificate that has been issued in accordance with this Annex I (Part 21);
- restricted certificates of airworthiness shall be issued to aircraft:
 1. which conform to a restricted type-certificate that has been issued in accordance with this Annex I (Part 21); or
 2. which have been shown to the Agency to comply with specific airworthiness specifications ensuring adequate safety.

21.A.174 Application

Pursuant to point 21.A.172, an application for an airworthiness certificate shall be made in a form and manner established by the competent authority of the Member State of registry. Each application for a certificate of airworthiness or restricted certificate of airworthiness shall include:

1. the class of airworthiness certificate applied for;
2. with regard to new aircraft:
 - (i) a statement of conformity:
 - issued under point 21.A.163(b); or
 - issued under point 21.A.130 and validated by the competent authority; or
 - for an imported aircraft, a statement signed by the exporting authority that the aircraft conforms to a design approved by the Agency;
 - (ii) a weight and balance report with a loading schedule and;
 - (iii) the flight manual, when required by the applicable certification specifications for the particular aircraft.
3. with regard to used aircraft originating from:
 - (i) a Member State, an airworthiness review certificate issued in accordance with Annex I (Part-M) or Annex Vb (Part-ML) to Commission Regulation (EU) No 1321/20141;
 - (ii) a non-member State:
 - a statement by the competent authority of the State where the aircraft is, or was, registered, reflecting the airworthiness status of the aircraft on its register at the time of transfer;
 - a weight and balance report with a loading schedule;

- the flight manual when such a manual is required by the airworthiness code for the aircraft;
- historical records to establish the production, modification and maintenance standard of the aircraft, including all limitations associated with a restricted certificate of airworthiness issued in accordance with point 21.B.327;
- a recommendation for the issuance of a certificate of airworthiness or restricted certificate of airworthiness and for an airworthiness review certificate pursuant to an airworthiness review in accordance with Annex I (Part-M) to Regulation (EU) No 1321/20142 or an airworthiness review certificate in accordance with Annex Vb (Part-ML) to Regulation (EU) No 1321/2014.
- the date on which the first certificate of airworthiness was issued and, if the standards of Volume III of Annex 16 to the Chicago Convention apply, the CO2 metric value data

Unless otherwise agreed, the statements referred to in points (b)(2)(i) and (b)(3)(ii) shall be issued no more than 60 days before presentation of the aircraft to the competent authority of the Member State of registry.

21.A.175 Language

The manuals, placards, listings, and instrument markings and other necessary information required by applicable certification specifications shall be presented in one or more of the official language(s) of the European Union acceptable to the competent authority of the Member State of registry.

21.A.177 Amendment or modification

An airworthiness certificate may be amended or modified only by the competent authority of the Member State of registry

21.A.179 Transferability and re-issuance within Member States

Where ownership of an aircraft has changed:

1. if it remains on the same register, the certificate of airworthiness, or the restricted certificate of airworthiness conforming to a restricted type-certificate only, shall be transferred together with the aircraft;
2. if the aircraft is registered in another Member State, the certificate of airworthiness, or the restricted certificate of airworthiness conforming to a restricted type-certificate only, shall be issued:
 - (i) upon presentation of the former certificate of airworthiness and of a valid airworthiness review certificate issued in accordance with Annex I (Part-M) or Annex Vb (Part-ML) of Regulation (EU) No 1321/2014;
 - (ii) when satisfying point 21.A.175.

Where ownership of an aircraft has changed, and the aircraft has a restricted certificate of airworthiness not conforming to a restricted type-certificate, the airworthiness certificates shall be transferred together with the aircraft provided the aircraft remains on the same register, or issued only with the formal agreement of the competent authority of the Member State of registry to which it is transferred.

21.A.181 Duration and continued validity

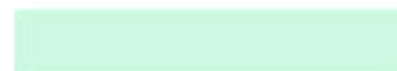
An airworthiness certificate shall be issued for an unlimited period of time. It shall remain valid subject to compliance with all the following conditions:

- the aircraft continues to comply with the applicable type design and continued airworthiness requirements; and
- the aircraft remaining on the same register; and
- the type-certificate or restricted type-certificate under which it is issued not being previously invalidated under point 21.A.51;
- the certificate has not been revoked by the competent authority under point 21.B.65, or surrendered by the certificate holder.

Upon surrender or revocation, the certificate shall be returned to the competent authority of the Member State of registry.

21.A.182 Aircraft identification

Each applicant for an airworthiness certificate under this Subpart shall demonstrate that its aircraft is identified in accordance with Subpart Q.



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General understanding of Part-M, Part-ML and Part-CAMO

ANNEX I (Part-M)

General

M.1

For the purpose of this Part, the competent authority shall be:

1. for the oversight of the continuing airworthiness of individual aircraft and the issue of airworthiness review certificates the authority designated by the Member State of registry;
2. for the oversight of a maintenance organisation as specified in Section A, Subpart F of this Annex (Part-M):
 - (i) the authority designated by the Member State where that organisation's principle place of business is located;
 - (ii) the Agency if the organisation is located in a third country;
3. for the approval of aircraft maintenance programmes ('AMP'), one of the following:
 - (i) the authority designated by the Member State of registry of the aircraft;
 - (ii) if prior to the approval of the aircraft maintenance programme the Member State of registry agrees, one of the following:
 - (a) the authority designated by the Member State where the operator has its principal place of business or, in case the operator has no principal place of business, the authority designated by the Member State where the operator has its place of establishment or where the operator resides;
 - (b) the authority responsible for the oversight of the organisation managing the continuing airworthiness of the aircraft or with which the owner has concluded a limited contract in accordance with point (i)(3) of point M.A.201.

4. for the oversight of a continuing airworthiness management organisation as specified in Section A, Subpart G of this Annex (Part-M):

- (i) the authority designated by the Member State where that organisation's principle place of business is located if the approval is not included in an air operator's certificate;
- (ii) the authority designated by the Member State of the operator if the approval is included in an air operator's certificate;
- (iii) the Agency if the organisation is located in a third country.

SUBPART A — GENERAL

M.A.101 Scope

This Section establishes the measures to be taken to ensure that the airworthiness of aircraft is maintained, including its maintenance. It also specifies the conditions to be met by the persons or organisations involved in such activities

SUBPART B — ACCOUNTABILITY

M.A.201 responsibilities

(a) The owner of the aircraft shall be responsible for the continuing airworthiness of aircraft and shall ensure that no flight takes place unless all of the following requirements are met:

- (1) the aircraft is maintained in an airworthy condition;
- (2) any operational and emergency equipment fitted is correctly installed and serviceable or clearly identified as unserviceable;
- (3) the airworthiness certificate is valid;
- (4) the maintenance of the aircraft is performed in accordance with the AMP specified in point M.A.302.

(b) When the aircraft is leased, the responsibilities of the owner are transferred to the lessee if:

1. the lessee is stipulated on the registration document; or
2. detailed in the leasing contract.

When reference is made in this Part to the 'owner', the term owner covers the owner or the lessee, as applicable.

(c) Any person or organisation performing maintenance shall be responsible for the tasks performed.

(d) The pilot-in-command or, in the case of aircraft used by air carriers licensed in accordance with Regulation (EC) No 1008/2008, the operator, shall be responsible for the satisfactory accomplishment of the pre-flight inspection. That inspection shall be carried out by the pilot or another qualified person and shall not need to be carried out by an approved maintenance organisation or by certifying staff.

(e) In the case of aircraft used by air carriers licensed in accordance with Regulation (EC) No 1008/2008 the operator shall be responsible for the continuing airworthiness of the aircraft it operates and shall:

- (1) ensure that no flight takes place unless the conditions set out in point (a) are met;
- (2) take the necessary steps to ensure its approval as a continuing airworthiness management organisation ('CAMO') pursuant to Annex Vc (Part-CAMO) or Subpart G of this Annex (Part-M), as part of air operator certificate for the aircraft it operates;
- (3) take the necessary steps to ensure its approval in accordance with Annex II (Part-145) or conclude a written contract in accordance with point CAMO.A.315(c) of Annex Vc (Part-CAMO) or point M.A.708(c) of this Annex (Part-M) with an organisation which has been approved in accordance with Annex II (Part-145).

(ea) By derogation to point (e)(2), at least two operators forming part of a single air carrier business grouping may use the same CAMO to assume the responsibility for the continuing airworthiness management of all the aircraft they operate, provided that all of the following requirements are met:

- (1) the CAMO is approved in accordance with Annex Vc (Part-CAMO) for the aircraft to be managed;
- (2) the CAMO forms part of the same air carrier business grouping as the operators concerned;
- (3) a contract is established in accordance with Appendix I to this Annex between the CAMO and the AOC holder not itself approved as a CAMO;
- (4) the CAMO has its principal place of business in the territory to which the Treaties apply;
- (5) the individual management systems of the organisations concluding a contract are harmonised with each other.

(eb) By derogation to point (e)(2), when the termination or revocation of an air operator certificate results in a situation where an air carrier licensed in accordance with Regulation (EC) No 1008/2008 and forming part of an air carrier business grouping is no longer in compliance with point M.A.201(ea), that licensed air carrier shall define and implement an action plan to the satisfaction of the competent authority to comply with point M.A.201(e)(2) as soon as practicable.

(f) For complex motor-powered aircraft used for commercial specialised operations, for CAT operations other than those performed by air carriers licensed in accordance with Regulation (EC) No 1008/2008 or by commercial Approved Training Organisations ('ATO') and Declared Training Organisations ('DTO') referred to in Article 10a of Regulation (EU) No 1178/2011, the operator shall ensure that:

- (1) no flight takes place unless the conditions set out in point (a) are met;
- (2) the tasks associated with continuing airworthiness are performed by a CAMO approved in accordance with Annex Vc (Part-CAMO) or Subpart G of this Annex (Part-M); when the operator is not a CAMO approved in accordance with Annex Vc (Part-CAMO) or Subpart G of this Annex (Part-M), it shall conclude a written contract as regards the performance of those tasks in accordance with Appendix I to this Annex with an organisation approved in accordance with Annex Vc (Part-CAMO) or Subpart G of this Annex (Part-M);
- (3) the CAMO referred to in point (2) is approved in accordance with Annex II (Part-145) as an organisation to qualify for the issue of an approval for the maintenance of aircraft and of components for installation thereon, or that CAMO has concluded a written contract in accordance with point CAMO.A.315(c) of Annex Vc (Part-CAMO) or point M.A.708(c) of this Annex (Part-M) with organisations approved in accordance with Annex II (Part-145).

(g) For complex motor-powered aircraft not included in points (e) and (f), the owner shall ensure that:

- (1) no flight takes place unless the conditions set out in point (a) are met;
- (2) the tasks associated with continuing airworthiness are performed by a CAMO approved in accordance with Annex Vc (Part-CAMO) or Subpart G of this Annex (Part-M); when the owner is not a CAMO approved in accordance with Annex Vc (Part-CAMO) or Subpart G of this Annex (Part-M), it shall conclude a written contract as regards the performance of those tasks in accordance with Appendix I to this Annex with an organisation approved in accordance with Annex Vc (Part-CAMO) or Subpart G of this Annex (Part-M);
- (3) the CAMO referred to in point (2) is approved in accordance with Annex II (Part-145) as an organisation to qualify for the issue of an approval for the maintenance of aircraft and of components for installation thereon, or that CAMO has concluded a written contract in accordance with point CAMO.A.315(c) of Annex Vc (Part-CAMO) or point M.A.708(c) of this Annex (Part-M) with organisations approved in accordance with Annex II (Part-145).

(h) For aircraft other than complex motor-powered aircraft used for commercial specialised operations or for CAT operations other than those performed by air carriers licensed in accordance with Regulation (EC) No 1008/2008, or by commercial ATOs and commercial DTOs referred to in Article 10a of Regulation (EU) No 1178/2011, the operator shall ensure that:

- (1) no flight takes place unless the conditions set out in point (a) are met;
- (2) the tasks associated with continuing airworthiness are performed by a CAMO approved in accordance with Annex Vc (Part-CAMO) or Subpart G of this Annex (Part-M), or a combined airworthiness organisation ('CAO') approved in accordance with Annex Vd (Part-CAO); when the operator is not a CAMO approved in accordance with Annex Vc (Part-CAMO) or Subpart G of this Annex (Part-M), or a CAO approved in accordance with Annex Vd (Part-CAO), it shall conclude a written contract in accordance with Appendix I to this Annex with a CAMO approved in accordance with Annex Vc (Part-CAMO) or Subpart G of this Annex (Part-M), or a CAO approved in accordance with Annex Vd (Part-CAO);
- (3) the CAMO or CAO referred to in point (2) is approved in accordance with Annex II (Part-145) or in accordance with Subpart F of this Annex (Part-M) or as a CAO with maintenance privileges, or that CAMO or CAO has concluded a written contract with organisations approved in accordance with Annex II (Part-145) or in accordance with Subpart F of this Annex (Part-M) or Annex Vd (Part-CAO) with maintenance privileges.
- (i) For aircraft other than complex motor-powered aircraft not included in points (e) and (h), or used for limited operations, the owner shall ensure that flight takes place only if the conditions set out in point (a) are met. To that end, the owner shall:
- (1) attribute the continuing airworthiness tasks referred to in point M.A.301 to a CAMO or CAO through a written contract concluded in accordance with Appendix I; or
- (2) carry out those tasks himself; or
- (3) carry out those tasks himself except the tasks of the development of and the processing of the approval of the AMP, only if those tasks are performed by a CAMO or CAO through a limited contract concluded in accordance with point M.A.302.
- (j) The owner/operator shall ensure that any person authorised by the competent authority is granted access to any of its facilities, aircraft or documents related to its activities, including any subcontracted activities, to determine compliance with this Part.
- (k) Where an aircraft included in an air operator certificate is used for non-commercial operations or specialised operations under point ORO.GEN.310 of Annex III or point NCO.GEN.104 of Annex VII to Regulation (EU) No 965/2012, the operator shall ensure that the tasks associated with continuing airworthiness are performed by the CAMO approved in accordance with Annex Vc (Part-CAMO) or Subpart G of this Annex (Part-M) or the combined airworthiness organisation ("CAO") approved in accordance with Annex Vd (Part-CAO), whichever applicable, of the air operator certificate holder.

M.A.202 Occurrence reporting

(a) Without prejudice to the reporting requirements set out in Annex II (Part-145) and Annex Vc (Part-CAMO), any person or organisation responsible in accordance with point M.A.201 shall report any identified condition of an aircraft or component which endangers flight safety to:

(1) the competent authority designated by the Member State of registry of the aircraft, and, when different to the Member State of registry, to the competent authority designated by the Member State of the operator;

(2) to the organisation responsible for the type design or supplemental type design.

(b) The reports referred to in point (a) shall be made in a manner determined by the competent authority referred to in point (a) and shall contain all pertinent information about the condition known to the person or organisation making the report.

(c) Where the maintenance or the airworthiness review of the aircraft is carried out on the basis of a written contract, the person or the organisation responsible for those activities shall also report any condition referred to in point (a) to the owner and the operator of the aircraft and, when different, to the CAMO or CAO concerned.

(d) The person or organisation shall submit the reports referred to in points (a) and (c) as soon as possible, but no later than 72 hours from the moment when the person or organisation identified the condition to which the report relates, unless exceptional circumstances prevent this.

(e) The person or organisation shall submit a follow-up report, providing details of actions which that person or organisation intends to take to prevent similar occurrences in the future, as soon as those actions have been identified. The follow-up report shall be submitted in a form and manner established by the competent authority.

SUBPART C — CONTINUING AIRWORTHINESS

M.A.301 continuing airworthiness tasks

The aircraft continuing airworthiness and the serviceability of operational and emergency equipment shall be ensured by:

- (a) the accomplishment of pre-flight inspections;
- (b) the rectification of any defect and damage affecting safe operation in accordance with data specified in points M.A.304 and M.A.401, as applicable, while taking into account the minimum equipment list ('MEL') and configuration deviation list, when they exist;
- (c) the accomplishment of all maintenance in accordance with the AMP referred to in point M.A.302;
- (d) the release of all maintenance in accordance with Subpart H;
- (e) for all complex motor-powered aircraft or aircraft used by air carriers licensed in accordance with Regulation (EC) No 1008/2008, the analysis of the effectiveness of the approved AMP referred to in point M.A.302;
- (f) the accomplishment of any applicable:
 - (1) airworthiness directive (AD);
 - (2) operational directive with a continuing airworthiness impact;
 - (3) continuing airworthiness requirement established by the Agency;
 - (4) measures required by the competent authority in immediate reaction to a safety problem;
- (g) the accomplishment of modifications and repairs in accordance with point M.A.304;
- (h) delivering to the pilot-in-command, or to the operator in the case of air carriers licensed in accordance with Regulation (EC) No 1008/2008, the mass and balance statement reflecting the current configuration of the aircraft;

(i) maintenance check flights, when necessary.

M.A.302 Aircraft maintenance programme

(a) Maintenance of each aircraft shall be organised in accordance with an AMP.

(b) The AMP and any subsequent amendments thereto shall be approved by the competent authority.

(c) When the continuing airworthiness of aircraft is managed by a CAMO or CAO, or when there is a limited contract between the owner and a CAMO or CAO concluded in accordance with point M.A.201(i)(3), the AMP and its amendments may be approved through an indirect approval procedure.

In that case, the indirect approval procedure shall be established by the CAMO or CAO concerned as part of the continuing airworthiness management exposition ('CAME') referred to in point CAMO.A.300 of Annex Vc or point M.A.704 of this Annex, or as part of the combined airworthiness exposition ('CAE') referred to in point CAO.A.025 of Annex Vd and shall be approved by the competent authority responsible for that CAMO or CAO.

The indirect approval procedure shall only be used when the CAMO or CAO concerned is under the oversight of the Member State of registry of aircraft, unless a written contract has been concluded in accordance with point 3 of point M.1 transferring responsibility for the approval of the aircraft maintenance programme to the competent authority responsible for the CAMO or CAO.

(d) The AMP shall demonstrate compliance with:

(1) the instructions issued by the competent authority;

(2) the instructions for continuing airworthiness:

(i) issued by the holders of the type certificate, restricted type certificate, supplemental type certificate, major repair design approval, ETSO authorisation or any other relevant approval issued under Annex I (Part-21) to Regulation (EU) No 748/2012;

(ii) included in the certification specifications referred to in point 21.A.90B or 21.A.431B of Annex I (Part-21) to Regulation (EU) No 748/2012, if applicable;

(3) the applicable provisions of Annex I (Part-26) to Regulation (EU) 2015/640.

(e) By derogation to point (d), the owner or the organisation managing the continuing airworthiness of the aircraft may deviate from the instruction referred to in point (d)(2) and propose escalated intervals in the AMP, based on data obtained from sufficient reviews carried out in accordance with point (h). Indirect approval is not permitted for the escalation of safety-related tasks. The owner or the organisation managing the continuing airworthiness of the aircraft may also propose additional instructions in the AMP.

(f) The AMP shall contain details of all maintenance to be carried out, including frequency and any specific tasks linked to the type and specificity of operations.

(g) For complex motor-powered aircraft, when the AMP is based on maintenance steering group logic or on condition monitoring, the AMP shall include a reliability programme.

(h) The AMP shall be subject to periodic reviews and be amended accordingly when necessary. Those reviews shall ensure that the AMP continues to be up to date and valid in light of the operating experience and instructions from the competent authority, while taking into account new or modified maintenance instructions issued by the type certificate and supplemental type certificate holders and any other organisation that publishes such data in accordance with Annex I (Part-21) to Regulation (EU) No 748/2012.

M.A.303 Airworthiness directives

Any applicable airworthiness directive must be carried out within the requirements of that airworthiness directive, unless otherwise specified by the Agency.

M.A.304 Data for modification and repairs

A person or organisation repairing an aircraft or a component, shall assess any damage. Modifications and repairs shall be carried out using, as appropriate, the following data:

- (a) approved by the Agency;
- (b) approved by a design organisation complying with Annex I (Part-21) to Regulation (EU) No 748/2012;
- (c) contained in the requirements referred to in point 21.A.90B or 21.A.431B of Annex I (Part-21) to Regulation (EU) No 748/2012.

M.A.305 Aircraft continuing airworthiness record system

- (a) At the completion of any maintenance, aircraft certificate of release to service ('CRS') required by point M.A.801 or point 145.A.50, as applicable, shall be entered in the aircraft continuing airworthiness record system, as soon as practicable and no later than 30 days after the completion of any maintenance.
- (b) The aircraft continuing airworthiness record system shall contain the following:
1. the date of the entry, the total in-service life accumulated in the applicable parameter for aircraft, engine(s) and/or propeller(s);
 2. the aircraft continuing airworthiness records described in points (c) and (d) below together with the supporting detailed maintenance records described in point (e) below;
 3. if required by point M.A.306, the aircraft technical log.
- (c) The aircraft continuing airworthiness records shall include the current mass and balance report and the current status of:
1. ADs and measures mandated by the competent authority in immediate reaction to a safety problem;
 2. modifications and repairs;
 3. compliance with the AMP;
 4. deferred maintenance tasks and deferred defects rectification.
- (d) The aircraft continuing airworthiness records shall include the current status specific to components of:
1. life-limited parts, including the life accumulated by each affected part in relation to the applicable airworthiness limitation parameter; and
 2. time-controlled components, including the life accumulated by the affected components in the applicable parameter, since the last accomplishment of scheduled maintenance, as specified in the AMP.

(e) The owner or operator shall establish a system to keep the following documents and data in a form acceptable to the competent authority and for the periods specified below:

1. aircraft technical log system: the technical log or other data equivalent in scope and detail, covering the 36 months period prior to the last entry,
2. the CRS and detailed maintenance records:
 - (i) demonstrating compliance with ADs and measures mandated by the competent authority in immediate reaction to a safety problem applicable to the aircraft, engine(s), propeller(s) and components fitted thereto, as appropriate, until such time as the information contained therein is superseded by new information equivalent in scope and detail but covering a period not shorter than 36 months;
 - (ii) demonstrating compliance with the applicable data in accordance with point M.A.304 for current modifications and repairs to the aircraft, engine(s), propeller(s) and any component subject to airworthiness limitations; and
 - (iii) of all scheduled maintenance or other maintenance required for continuing airworthiness of aircraft, engine(s), propeller(s), as appropriate, until such time as the information contained therein is superseded by new information equivalent in scope and detail but covering a period not shorter than 36 months.
3. data specific to certain components:
 - (i) an in-service history record for each life-limited part based on which the current status of compliance with airworthiness limitations is determined;
 - (ii) the CRS and detailed maintenance records for the last accomplishment of any scheduled maintenance and any subsequent unscheduled maintenance of all life-limited parts and time-controlled components until the scheduled maintenance has been superseded by another scheduled maintenance of equivalent scope and detail but covering a period not shorter than 36 months;
 - (iii) the CRS and owner's acceptance statement for any component that is fitted to an ELA2 aircraft without an EASA Form 1 in accordance with point 21.A.307(b)(2) of Annex I (Part 21) to Regulation (EU) No 748/2012 but covering a period not shorter than 36 months.
4. Record-keeping periods when the aircraft is permanently withdrawn from service:
 - (i) the data required by point (b)(1) of point M.A.305 in respect of aircraft, engine(s), and propeller(s) which shall be retained for at least 12 months;

- (ii) the last effective status and reports as identified under points (c) and (d) of point M.A.305 which shall be retained for at least 12 months; and
- (iii) the most recent CRS(s) and detailed maintenance records as identified under points (e)(2)(ii) and (e)(3)(i) of point M.A.305 which shall be retained for at least 12 months.

(f) The person or organisation responsible for the management of continuing airworthiness tasks pursuant to point M.A.201 shall comply with the requirements regarding the aircraft continuing airworthiness record system and present the records to the competent authority upon request.

(g) All entries made in the aircraft continuing airworthiness record system shall be clear and accurate. When it is necessary to correct an entry, the correction shall be made in a manner that clearly shows the original entry.

M.A.306 Aircraft technical log system

(a) In addition to the requirements of point M.A.305, for CAT, commercial specialised operations and commercial ATO or commercial DTO operations, the operator shall use a technical log system containing the following information for each aircraft:

1. information about each flight, necessary to ensure continued flight safety, and;
2. the current aircraft certificate of release to service, and;
3. the current maintenance statement giving the aircraft maintenance status of what scheduled and out of phase maintenance is next due except that the competent authority may agree to the maintenance statement being kept elsewhere, and;
4. all outstanding deferred defects rectifications that affect the operation of the aircraft, and;
5. any necessary guidance instructions on maintenance support arrangements.

(b) The initial issue of aircraft technical log system shall be approved by the competent authority specified in point CAMO.A.105 of Annex Vc (Part-CAMO), or point M.1 of this Annex (Part-M) or point CAO.1(1) of Annex Vd (Part-CAO), as applicable. Any subsequent amendment to that system shall be managed in accordance with point CAMO.A.300(c), or points M.A.704(b) and (c), or point CAO.A.025(c).

M.A.307 transfer of aircraft continuing airworthiness records

- (a) When an aircraft is permanently transferred from one owner or operator to another, the transferring owner or operator shall ensure that the continuing airworthiness records referred to in point M.A.305 and, if applicable the technical log system referred to in point M.A.306, are also transferred.
- (b) When the owner contracts the continuing airworthiness management tasks to a CAMO or CAO, the owner shall ensure that the continuing airworthiness records referred to in point M.A.305 are transferred to that contracted organisation.
- (c) The time periods for the retention of records set out in point (e) of point M.A.305 shall continue to apply to the new owner, operator, CAMO or CAO.

SUBPART D — MAINTENANCE STANDARDS

M.A.401 Maintenance data

(a) The person or organisation maintaining an aircraft shall have access to and use only applicable current maintenance data in the performance of maintenance including modifications and repairs.

(b) For the purposes of this Annex, applicable maintenance data is any of the following:

1. any applicable requirement, procedure, standard or information issued by the competent authority or the Agency;
2. any applicable airworthiness directive;
3. the applicable instructions for continuing airworthiness and other maintenance instructions, issued by the type-certificate holder, supplementary type-certificate holder and any other organisation that publishes such data in accordance with Annex I (Part 21) to Regulation (EU) No 748/2012;
4. for components approved for installation by the design approval holder, the applicable maintenance instructions published by the component manufacturers and acceptable to the design approval holder;
5. any applicable data issued in accordance with point 145.A.45(d).

(c) The person or organisation maintaining an aircraft shall ensure that all applicable maintenance data is current and readily available for use when required. The person or organisation shall establish a work card or worksheet system to be used and shall either transcribe accurately the maintenance data onto such work cards or worksheets or make precise reference to the particular maintenance task or tasks contained in such maintenance data.

M.A.402 Performance of maintenance

Except for maintenance performed by a maintenance organisation approved in accordance with Annex II (Part-145), any person or organisation performing maintenance shall:

- (a) be qualified for the tasks performed, as required by this part;
- (b) ensure that the area in which maintenance is carried out is well organised and clean in respect of dirt and contamination;

- (c) use the methods, techniques, standards and instructions specified in the M.A.401 maintenance data;
- (d) use the tools, equipment and material specified in the M.A.401 maintenance data. If necessary, tools and equipment shall be controlled and calibrated to an officially recognised standard;
- (e) ensure that maintenance is performed within any environmental limitations specified in the M.A.401 maintenance data;
- (f) ensure that proper facilities are used in case of inclement weather or lengthy maintenance;
- (g) ensure that the risk of multiple errors during maintenance and the risk of errors being repeated in identical maintenance tasks are minimised;
- (h) ensure that an error capturing method is implemented after the performance of any critical maintenance task; and
- (i) carry out a general verification after completion of maintenance to ensure the aircraft or component is clear of all tools, equipment and any extraneous parts or material, and that all access panels removed have been refitted.

M.A.403 Aircraft defects

- (a) Any aircraft defect that hazards seriously the flight safety shall be rectified before further flight.
- (b) Only the certifying staff referred to in point M.A.801(b)(1) or in Subpart F of this Annex or in Annex II (Part-145) or in Annex Vd (Part-CAO), or the person authorised in accordance with point M.A.801(c) of this Annex can decide, using maintenance data referred to in point M.A.401 of this Annex, whether an aircraft defect hazards seriously the flight safety and therefore decide when and which rectification action shall be taken before further flight and which defect rectification can be deferred. However, this does not apply when the MEL is used by the pilot or by the certifying staff.
- (c) Any aircraft defect that would not hazard seriously the flight safety shall be rectified as soon as practicable, after the date the aircraft defect was first identified and within any limits specified in the maintenance data or the MEL.
- (d) Any defect not rectified before flight shall be recorded in the aircraft continuing airworthiness record system referred to in point M.A.305 or, if applicable in the aircraft technical log system referred to in point M.A.306.

SUBPART E — COMPONENTS**M.A.501 Classification and installation**

(a) All components shall be classified into the following categories:

- (1) Components which are in a satisfactory condition, released on an EASA Form 1 or equivalent and marked in accordance with Subpart Q of Annex I (Part 21) to Regulation (EU) No 748/2012, unless otherwise specified in point 21.A.307 of Annex I (Part 21) to Regulation (EU) No 748/2012, or in this Annex (Part-M), or in Annex Vd (Part-CAO).
- (2) Unserviceable components which shall be maintained in accordance with this Regulation.
- (3) Components categorised as unsalvageable because they have reached their mandatory life limitation or contain a non-repairable defect.
- (4) Standard parts used on an aircraft, engine, propeller or other aircraft component when specified in the maintenance data and accompanied by evidence of conformity traceable to the applicable standard.
- (5) Material both raw and consumable used in the course of maintenance when the organisation is satisfied that the material meets the required specification and has appropriate traceability. All materials must be accompanied by documentation clearly relating to the particular material and containing a conformity to specification statement plus both the manufacturing and supplier source.

(b) Components, standard parts and material shall only be installed on an aircraft or a component when they are in a satisfactory condition, belong to one of the categories listed in point (a) and the applicable maintenance data specifies the particular component, standard part or material.

M.A.502 Component maintenance

(a) The maintenance of components other than the components referred to in points (b)(2) to (b)(6) of point 21.A.307 of Annex I (Part 21) to Regulation (EU) No 748/2012 shall be performed by maintenance organisations approved in accordance with Subpart F of this Annex or with Annex II (Part-145) or with Annex Vd (Part-CAO), as applicable.

(b) By way of derogation from point (a), where a component is fitted to the aircraft, the maintenance of such a component may be performed by an aircraft maintenance organisation approved in accordance with Subpart F of this Annex or with Annex II (Part-145) or with Annex Vd (Part-CAO) or by the certifying staff referred to in point (b)(1) of point M.A.801. Such maintenance shall be performed in accordance with the aircraft maintenance data or in accordance with the

component maintenance data if agreed by the competent authority. Such aircraft maintenance organisation or the certifying staff may temporarily remove the component for maintenance if this is necessary to improve access to the component, except where additional maintenance is required due to the removal. Component maintenance performed in accordance with this point shall not be eligible for the issuance of an EASA Form 1 and shall be subject to the aircraft release requirements provided for in point M.A.801.

(c) By way of derogation from point (a), where a component is fitted to the engine or the auxiliary power unit (APU), the maintenance of such component may be performed by an engine maintenance organisation approved in accordance with Subpart F of this Annex, or with Annex II (Part-145), or with Annex Vd (Part-CAO). Such maintenance shall be performed in accordance with the engine or the APU maintenance data or in accordance with the component maintenance data if agreed by the competent authority. Such engine maintenance organisation may temporarily remove the component for maintenance if this is necessary to improve access to the component, except where additional maintenance is required due to the removal.

(d) The maintenance of components referred to in point (b)(2) of point 21.A.307 of Annex I (Part 21) to Regulation (EU) No 748/2012, where the component is fitted to the aircraft or is temporarily removed to improve access, shall be performed by an aircraft maintenance organisation approved in accordance with Subpart F of this Annex or with Annex II (Part-145) or with Annex Vd (Part-CAO), as applicable, by the certifying staff referred to in point (b)(1) of point M.A.801 or by the pilot-owner referred to in point (b)(2) of point M.A.801. Component maintenance performed in accordance with this point shall not be eligible for the issuance of an EASA Form 1 and shall be subject to the aircraft release requirements provided for in point M.A.801.

(e) The maintenance of components referred to in points (b)(3) to (b)(6) of point 21.A.307 of Annex I (Part 21) to Regulation (EU) No 748/2012 shall be performed by the organisation referred to in point (a), or performed by any person or organisation and released with a “declaration of maintenance accomplished” issued by the person or organisation that performed the maintenance. The “declaration of maintenance accomplished” shall contain at least basic details of the maintenance carried out, the date on which the maintenance was completed, and the identification of the organisation or person that issues it. It shall be considered a maintenance record and equivalent to an EASA Form 1 in respect of the maintained component.

M.A.503 Life-limited parts and time-controlled components

(a) Installed life-limited parts and time-controlled components shall not exceed the approved limitation as specified in the AMP and ADs, except as provided for in point M.A.504(b).

(b) When the approved limitation expires, the component shall be removed from the aircraft for maintenance, or for disposal in the case of life-limited parts.

M.A.504 Segregation of components

- (a) Unserviceable and unsalvageable components shall be segregated from serviceable components, standards parts and materials.
- (b) Unsalvageable components shall not be permitted to re-enter the component supply system unless the mandatory life limitation has been extended or a repair solution has been approved in accordance with Regulation (EU) No 748/2012.



SUBPART H — CERTIFICATE OF RELEASE TO SERVICE — CRS

M.A.801 Aircraft certificate of release to service

(a) Except for aircraft released to service by a maintenance organisation approved in accordance with Annex II (Part-145), the CRS shall be issued in accordance with this Subpart.

(b) No aircraft shall be released to service unless a CRS is issued when all maintenance tasks ordered have been properly carried out. The CRS shall be issued by an authorised certifying staff of the maintenance organisation approved in accordance with Subpart F of this Annex or with Annex Vd (Part-CAO), except for maintenance tasks other than complex maintenance tasks listed in Appendix VII to this Annex where the CRS is issued, alternatively by:

1. independent certifying staff acting in accordance with the requirements laid down in Article 5 of this Regulation;
2. the pilot-owner acting in accordance with point M.A.803 of this Annex.

(c) By derogation from point (b), in case of unforeseen situations, when an aircraft is grounded at a location where no maintenance organisation approved in accordance with this Annex, Annex II (Part-145) or Annex Vd (Part-CAO) and no independent certifying staff are available, the owner may authorise any person, with no less than 3 years of appropriate maintenance experience and holding either a valid ICAO Annex 1 compliant maintenance license for the aircraft type requiring certification or a certifying staff authorisation valid for the work requiring certification issued by an ICAO Annex 6 approved maintenance organisation to maintain the aircraft in accordance with the standards set out in Subpart D of this Annex and release it to service. In that case, the owner shall:

1. obtain and keep in the aircraft records specifying details of the maintenance carried out and of the qualifications of the person issuing the CRS;
2. ensure that any such maintenance is later on verified and a new CRS is issued by an appropriately authorised person referred to in point (b) or an organisation approved in accordance with Subpart F of this Annex, Annex II (Part-145) or Annex Vd (Part-CAO), at the earliest opportunity and in any case within 7 calendar days from the issuance of a CRS by the person authorised by the owner;
3. notify the organisation responsible for the continuing airworthiness management of the aircraft, when contracted, or the competent authority in the absence of such a contract, within 7 days from the issuance of such authorisation.

(d) In case of a release to service in accordance with point (b)(1), the certifying staff may be assisted in performing the maintenance tasks by one or more persons subject to his or her direct and continuous control.

(e) A CRS shall contain at least:

1. basic details of the maintenance carried out;
2. the date on which the maintenance was completed;
3. the identity of the organisation or person issuing the CRS, including, alternatively:
 - (i) the approval reference of the maintenance organisation and the certifying staff issuing the CRS;
 - (ii) in the case referred to in point (b)(2), the identity and, where applicable, the licence number of the certifying staff issuing the CRS;
4. the limitations to airworthiness or operations, if any.

(f) By derogation from point (b) and notwithstanding point (g), when the required maintenance cannot be completed, a CRS may be issued with the approved aircraft limitations. In that case, the certificate shall indicate that the maintenance could not be completed, as well as indicate any applicable airworthiness or operations limitations, as part of the information required by point (e)(4).

(g) A CRS shall not be issued in the case of any known non-compliance which endangers flight safety.

M.A.802 Component certificate of release to service

(a) Except for components released to service by a maintenance organisation that is approved in accordance with Annex II (Part-145) and for the cases covered by point (e) of point M.A.502, a CRS shall be issued at the completion of any maintenance work carried out on an aircraft component in accordance with point M.A.502.

(b) The authorised release certificate identified as EASA Form 1 constitutes the component CRS, except when such maintenance on aircraft components has been performed in accordance with point (b) or (d) of point M.A.502 in which case the maintenance is subject to aircraft release procedures in accordance with point M.A.801.

M.A.803 Pilot-owner authorization

(a) To qualify as a Pilot-owner, the person must:

1. hold a valid pilot licence (or equivalent) issued or validated by a Member State for the aircraft type or class rating; and

2. own the aircraft, either as sole or joint owner; that owner must be:

(i) one of the natural persons on the registration form; or

(ii) a member of a non-profit recreational legal entity, where the legal entity is specified on the registration document as owner or operator, and that member is directly involved in the decision making process of the legal entity and designated by that legal entity to carry out Pilot-owner maintenance.

(b) For any other than complex motor-powered aircraft of 2 730 kg MTOM and below, which are not used in CAT operations, in commercial specialised operations or in commercial operations by ATOs or DTOs, the pilot-owner may issue a CRS after having carried out limited pilot-owner maintenance as specified in Appendix VIII to this Annex.

(c) The scope of the limited Pilot-owner maintenance shall be specified in the aircraft maintenance programme referred to in point M.A.302.

(d) The CRS shall be entered in the aircraft continuing airworthiness record system and contain basic details of the maintenance carried out, the maintenance data used, the date on which that maintenance was completed, as well as the identity, the signature and pilot licence number of the pilot-owner issuing such a certificate.

SUBPART I — AIRWORTHINESS REVIEW CERTIFICATE

M.A.901 Aircraft airworthiness review

To ensure the validity of the aircraft airworthiness certificate, an airworthiness review of the aircraft and its continuing airworthiness records shall be carried out periodically.

(a) An airworthiness review certificate is issued in accordance with Appendix III (EASA Form 15a or 15b) to this Annex upon completion of a satisfactory airworthiness review. The airworthiness review certificate shall be valid for 1 year;

(b) An aircraft in a controlled environment is an aircraft which, during the preceding 12 months:

1. has had its airworthiness continuously managed by a unique CAMO or CAO;
2. has been maintained by a maintenance organisation approved in accordance with Subpart F of this Annex, Annex II (Part-145) or Annex Vd (Part-CAO), including the cases when maintenance tasks referred to in point (b) of point M.A.803 are carried out and released to service in accordance with point (b)(1) or (b)(2) of point M.A.801 of this Annex.

(c) For all aircraft used by air carriers licensed in accordance with Regulation (EC) No 1008/2008, and for aircraft above 2 730 kg MTOM that are in a controlled environment, the organisation referred to in point (b)(1) managing the continuing airworthiness of the aircraft may in accordance with CAMO.A.125(e) of Annex Vc or point M.A.711(b) of this Annex or point CAO.A.095(c)(1) of Annex Vd, as applicable, and subject to compliance with point (j):

1. issue an airworthiness review certificate in accordance with point M.A.901;
2. extend at most twice the validity of the airworthiness review certificate it has issued, for a period of 1 year each time, where the aircraft concerned has remained within a controlled environment.

(d) The airworthiness review certificate shall be issued by the competent authority upon a satisfactory assessment based on a recommendation made by a CAMO or CAO, sent together with the application from the owner or operator for all aircraft used by air carriers licensed in accordance with Regulation (EC) No 1008/2008, and for aircraft above 2 730 kg MTOM that complies with the following alternative conditions:

1. they are not in a controlled environment;

2. their continuing airworthiness is managed by an organisation that does not hold the privilege to carry out airworthiness reviews.

The recommendation referred to in the first subparagraph shall be based on an airworthiness review carried out in accordance with point M.A.901.

(e) For aircraft of 2 730 kg MTOM and below not used by air carriers licensed in accordance with Regulation (EC) No 1008/2008, any CAMO or CAO chosen by the owner or operator may in accordance with CAMO.A.125(e) of Annex Vc or point M.A.711(b) of this Annex or CAO.A.095(c) of Annex Vd, as applicable, and subject to compliance with point (j):

1. issue the airworthiness review certificate in accordance with point M.A.901;
2. extend at most twice the validity of the airworthiness review certificate it has issued, for a period of 1 year each time, where the aircraft has remained within a controlled environment under its management.

(f) By derogation from points (c)(2) and (e)(2) of point M.A.901, for aircraft that are in a controlled environment, the organisation referred to in point (b)(1) managing the continuing airworthiness of the aircraft, may, subject to compliance with point (j), extend at most twice the validity of an airworthiness review certificate that the competent authority or another CAMO or CAO has issued, for a period of 1 year each time.

(g) Whenever circumstances reveal the existence of a potential risk to aviation safety, the competent authority shall carry out the airworthiness review and issue the airworthiness review certificate itself.

(h) Without prejudice to point (g), the competent authority may carry out the airworthiness review and issue the airworthiness review certificate itself in the following cases:

1. when the continuing airworthiness of the aircraft is managed by a CAMO or CAO which has its principal place of business located in a third country;
2. for any other aircraft of 2 730 kg MTOM and below, if the owner so requests.

(i) Where the competent authority issues the airworthiness review certificate itself in accordance with points (g) or (h) or after assessing the recommendation in accordance with point M.B.901, the owner or operator of the aircraft shall, where necessary for those purposes, provide the competent authority with:

1. any documentation required by the competent authority;

2. suitable accommodation at the appropriate location for its personnel;

3. the support of the certifying staff

(j) An airworthiness review certificate shall not be issued, nor extended if there is evidence or indications that the aircraft is not airworthy.

(k) The airworthiness review of the aircraft shall include a full documented review of the aircraft records establishing that the following requirements have been met:

1. airframe, engine and propeller flying hours and associated flight cycles have been properly recorded;
2. the flight manual is applicable to the aircraft configuration and reflects the latest revision status;
3. all the maintenance due on the aircraft pursuant to the approved AMP has been carried out;
4. all known defects have been corrected or, when applicable, carried forward in a controlled manner in accordance with M.A.403;
5. all applicable ADs have been applied and properly registered;
6. all modifications and repairs applied to the aircraft have been registered and are in compliance with point M.A.304;
7. all life-limited parts and time-controlled components installed on the aircraft are properly identified, registered and have not exceeded their limitation;
8. all maintenance has been carried out in accordance with this Annex;
9. the current mass and balance statement reflects the current configuration of the aircraft and is valid;
10. the aircraft complies with the latest revision of its type design approved by the Agency;
11. if required, the aircraft holds a noise certificate corresponding to the current configuration of the aircraft in compliance with Subpart I of Annex I (Part-21) to Regulation (EU) No 748/2012.

(l) The airworthiness review of the aircraft shall include a physical survey of the aircraft. For that survey, airworthiness review staff not appropriately qualified in accordance with Annex III (Part-66) shall be assisted by such qualified staff.

(m) Through the physical survey of the aircraft, the airworthiness review staff shall ensure that:

1. all required markings and placards are properly installed;
2. the aircraft complies with its approved flight manual;
3. the aircraft configuration complies with the approved documentation;
4. no evident defect can be found that has not been addressed in accordance with point M.A.403;
5. no inconsistencies can be found between the aircraft and the documented review of records referred to in point (k).

(n) By derogation from point (a), the airworthiness review may be anticipated by a maximum period of 90 days without loss of continuity of the airworthiness review pattern, so as to allow for the physical review to take place during a maintenance check.

(o) The airworthiness review certificate (EASA Form 15b) or the recommendation for the issue of the airworthiness review certificate (EASA Form 15a) referred to in Appendix III to this Annex can only be issued:

1. by authorised airworthiness review staff on behalf of the approved organisation;
2. if the airworthiness review has been completely carried out.

(p) A copy of any airworthiness review certificate issued or extended for an aircraft shall be sent to the Member State of registry of the aircraft concerned within 10 days.

(q) Airworthiness review tasks shall not be subcontracted.

(r) Should the outcome of the airworthiness review be inconclusive, the organisation having carried out the review shall inform the competent authority as soon as possible and in any case within 72 hours from the moment the organisation identifies the reason for which the airworthiness review is inconclusive.

(s) The airworthiness review certificate shall not be issued until all findings have been closed.

M.A.902 Validity of the airworthiness review certificate

(a) An airworthiness review certificate becomes invalid if:

1. suspended or revoked; or
2. the airworthiness certificate is suspended or revoked; or
3. the aircraft is not on the aircraft register of a Member State; or
4. the type certificate under which the airworthiness certificate was issued is suspended or revoked.

(b) An aircraft must not fly if the airworthiness certificate is invalid or if:

1. the continuing airworthiness of the aircraft or any component fitted to the aircraft does not meet the requirements of this Part; or
2. the aircraft does not remain in conformity with the type design approved by the Agency; or
3. the aircraft has been operated beyond the limitations of the approved flight manual or the airworthiness certificate, without appropriate action being taken; or
4. the aircraft has been involved in an accident or incident that affects the airworthiness of the aircraft, without subsequent appropriate action to restore airworthiness; or
5. a modification or repair is not in compliance with point M.A.304.

(c) Upon surrender or revocation, the airworthiness review certificate shall be returned to the competent authority

M.A.903 Transfer of aircraft registration within the EU

(a) When transferring an aircraft registration within the EU, the applicant shall:

1. inform the former Member State in which Member State it will be registered, then;
2. apply to the new Member State for the issuance of a new airworthiness certificate in accordance with Annex I (Part-21) to Regulation (EU) No 748/2012.

(b) Notwithstanding point M.A.902(a)(3), the former airworthiness review certificate shall remain valid until its expiry date.

M.A.904 Airworthiness review of aircraft imported into the EU

(a) When importing an aircraft onto a Member State register from a third country or from a regulatory system where Regulation (EU) 2018/1139 does not apply, the applicant shall:

1. apply to the competent authority of the Member State of registry for the issuance of a new airworthiness certificate in accordance with Annex I (Part-21) to Regulation (EU) No 748/2012;
2. for aircraft other than new, have an airworthiness review carried out in accordance with point M.A.901;
3. have all maintenance carried out to comply with the AMP approved in accordance with point M.A.302.

(b) When satisfied that the aircraft is in compliance with the relevant requirements, the organisation performing the airworthiness review, shall send a documented recommendation for the issuance of an airworthiness review certificate to the competent authority of the Member State of registry.

(c) The owner of the aircraft shall allow access to the aircraft for inspection by the competent authority of the Member State of registry.

(d) The competent authority of the Member State of registry shall issue an airworthiness certificate when it is satisfied that the aircraft complies with the requirements of Annex I (Part-21) to Regulation (EU) No 748/2012.

(e) That competent authority of the Member State shall also issue the airworthiness review certificate. The certificate shall be valid for 1 year, unless the competent authority decides to reduce the period of validity for reasons of aviation safety.

M.A.905 Findings

- (a) A level 1 finding is any finding of significant non-compliance with the requirements of this Annex, which lowers the safety standard and seriously endangers flight safety.
- (b) A level 2 finding is any finding of non-compliance with the requirements of this Annex, which may lower the safety standard and may endanger the flight safety.
- (c) After receipt of notification of findings according to point M.B.903, the person or organisation accountable referred to in point M.A.201 shall define a corrective action plan and demonstrate corrective action to the satisfaction of the competent authority within a period agreed with this authority including appropriate corrective action to prevent reoccurrence of the finding and its root cause.

Annex Vb (Part-ML)

General

ML.1

(a) In accordance with paragraph 2 of Article 3, this Annex (Part-ML) applies to the following other than complex motor-powered aircraft not listed in the air operator certificate of an air carrier licensed in accordance with Regulation (EC) No 1008/2008:

- (1) aeroplanes of 2 730 kg maximum take-off mass (MTOM) or less;
- (2) rotorcraft of 1 200 kg MTOM or less, certified for a maximum of up to 4 occupants;
- (3) other ELA2 aircraft.

(b) For the purpose of this Annex, the competent authority shall be the authority designated by the Member State of registry of the aircraft.

(c) For the purpose of this Annex, the following definitions shall apply:

(1) 'independent certifying staff' means certifying staff who does not work on behalf of an approved maintenance organisation and who complies with, alternatively:

- (i) the requirements of Annex III (Part-66);
- (ii) for aircraft to which Annex III (Part-66) does not apply, the certifying staff requirements in force in the Member State of registry of the aircraft;

(2) 'maintenance organisation' means an organisation holding an approval issued in accordance with, alternatively :

- (i) Subpart F of Annex I (Part-M);
- (ii) Section A of Annex II (Part-145);
- (iii) Section A of Annex Vd (Part-CAO).

(3) 'owner' means the person responsible for the continuing airworthiness of the aircraft, including, alternatively:

- (i) the registered owner of the aircraft;
- (ii) the lessee in the case of a leasing contract;
- (iii) the operator.

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SUBPART A — GENERAL

ML.A.101 Scope

This Section establishes the measures to be taken in order to ensure that the aircraft is airworthy. It also specifies the conditions to be met by the persons or organisations involved in the activities related to the airworthiness of the aircraft.

SUBPART B — ACCOUNTABILITY

ML.A.201 Responsibilities

(a) The owner of the aircraft shall be responsible for the continuing airworthiness of the aircraft and shall ensure that no flight takes place unless all of the following requirements are met:

- (1) the aircraft is maintained in an airworthy condition;
- (2) any operational and emergency equipment fitted is correctly installed and serviceable or clearly identified as unserviceable;
- (3) the airworthiness certificate is valid;
- (4) the maintenance of the aircraft is performed in accordance with the Aircraft Maintenance Program ('AMP') specified in point ML.A.302.

(b) By derogation from point (a), where the aircraft is leased, the responsibilities set out in point (a) shall apply to the lessee, if the lessee is identified either in the registration document of the aircraft or in the leasing contract.

(c) Any person or organisation performing maintenance of aircraft and components shall be responsible for the maintenance tasks being performed.

(d) The pilot-in-command of the aircraft shall be responsible for the satisfactory accomplishment of the preflight inspection. That inspection shall be carried out by the pilot or another qualified person but need not be carried out by an approved maintenance organisation or by certifying staff.

(e) For aircraft operated by commercial Approved Training Organisations ('ATO') and commercial Declared Training Organisations ('DTO') referred to in Article 10a of Regulation (EU) No 1178/2011 or not operated in accordance with Annex VII to Regulation (EU) No 965/2012 (Part-NCO) or operated in accordance with Subpart-ADD of Annex II (Part-BOP) to Regulation (EU) 2018/395 or Subpart-DEC of Annex II (Part-SAO) to Regulation (EU) 2018/19761, the operator shall:

(1) be approved as a CAMO or as a CAO for the management of the continuing airworthiness of its aircraft in accordance with Annex Vc (Part-CAMO), Subpart G of Annex I (Part-M) or Annex Vd (Part-CAO), or contract such an organisation using the contract set out in Appendix I to this Annex;

(2) ensure that all maintenance is performed by maintenance organisations approved in accordance with point (c)(2) of point ML.1.;

(3) ensure that the requirements of point (a) are satisfied.

(f) For aircraft not included in point (e), in order to satisfy the requirements of point (a), the owner of the aircraft may contract the tasks associated with continuing airworthiness management to an organisation approved as a CAMO or CAO in accordance with Annex Vc (Part-CAMO), Subpart G of Annex I (Part-M) or Annex Vd (Part-CAO). In that case, the contracted organisation shall assume responsibility for the proper performance of those tasks and a written contract shall be concluded in accordance with Appendix I to this Annex. If the owner does not contract such an organisation, the owner is responsible for the proper performance of the tasks associated with the continuing airworthiness management

(g) The owner shall grant the competent authority access to the aircraft and the aircraft records, in order for the competent authority to determine whether the aircraft complies with the requirements of this Annex.

(h) In the case of an aircraft included in an air operator certificate is used for non-commercial or specialised operations under point ORO.GEN.310 of Annex III or point NCO.GEN.104 of Annex VII to Regulation (EU) No 965/20121, the operator shall ensure that the tasks associated with continuing airworthiness are performed by the CAMO approved in accordance with Annex Vc (Part-CAMO) or Subpart G of Annex I (Part-M) or the combined airworthiness organisation ("CAO") approved in accordance with Annex Vd (Part-CAO), whichever applicable, of the air operator certificate holder.

ML.A.202 Occurrence reporting

(a) Without prejudice to the reporting requirements set out in Annex II (Part-145) and Annex Vc (Part-CAMO), any person or organisation responsible in accordance with point ML.A.201 shall report any identified condition of an aircraft or component which endangers flight safety to:

(1) the competent authority designated by the Member State of registry of the aircraft, and, when different to the Member State of registry, to the competent authority designated by the Member State of the operator;

(2) to the organisation responsible for the type design or supplemental type design.

(b) The reports referred to in point (a) shall be made in a manner determined by the competent authority referred to in point (a) and shall contain all pertinent information about the condition known to the person or organisation making the report.

(c) Where the maintenance or the airworthiness review of the aircraft is carried out on the basis of a written contract, the person or the organisation responsible for those activities shall also report any condition referred to in point (a) to the owner of the aircraft and, when different, to the CAMO or CAO concerned.

(d) The person or organisation shall submit the reports referred to in points (a) and (c) as soon as possible, but no later than 72 hours from the moment when the person or organisation identified the condition to which the report relates, unless exceptional circumstances prevent this.

SUBPART C — CONTINUING AIRWORTHINESS

ML.A.301 Continuing-airworthiness tasks

The aircraft continuing airworthiness and the serviceability of operational and emergency equipment shall be ensured by:

- (a) the accomplishment of pre-flight inspections;
- (b) the rectification of any defect and damage affecting safe operation in accordance with data specified in points ML.A.304 and ML.A.401, as applicable, while taking into account the minimum equipment list ('MEL') and configuration deviation list, when they exist;
- (c) the accomplishment of all maintenance in accordance with the AMP referred to in point ML.A.302;
- (d) the accomplishment of any applicable:
 - (1) airworthiness directive ('AD');
 - (2) operational directive with a continuing-airworthiness impact;
 - (3) continuing-airworthiness requirement established by the Agency;
 - (4) measure required by the competent authority as an immediate reaction to a safety problem;
- (e) the accomplishment of modifications and repairs in accordance with point ML.A.304;
- (f) maintenance check flights, when necessary.

ML.A.302 Aircraft maintenance programme

(a) The maintenance of each aircraft shall be organised in accordance with an AMP.

(b) The AMP and any subsequent amendments thereto shall be, alternatively:

- (1) declared by the owner in accordance with point (c)(7) of point ML.A.302, where the continuing airworthiness of the aircraft is not managed by a CAMO or CAO;
- (2) approved by the CAMO or CAO responsible for managing the continuing airworthiness of the aircraft.

The owner declaring the AMP in accordance with point (b)(1) or the organisation approving the AMP in accordance with point (b)(2) shall keep the AMP updated.

(c) The AMP:

- (1) shall clearly identify the owner of the aircraft and the aircraft to which it relates, including any installed engine and propeller, as applicable;
- (2) shall include, alternatively:
 - (a) the tasks or inspections contained in the applicable minimum inspection programme ('MIP') referred to in point (d);
 - (b) the instructions for continuing airworthiness ('ICA') issued by the design approval holder ('DAH');
- (3) may include additional maintenance actions to those referred to in point (c)(2) or maintenance actions alternative to those referred to in point (c)(2)(b) at the proposal of the owner, CAMO or CAO, once approved or declared in accordance with point (b). Alternative maintenance actions to those referred to in point (c)(2)(b) shall not be less restrictive than those set out in the applicable MIP;
- (4) shall include all the mandatory continuing airworthiness information, such as repetitive ADs, the airworthiness limitation section ('ALS') of the ICAs, and specific maintenance requirements contained in the type certificate data sheet ('TCDS');
- (5) shall identify any additional maintenance tasks to be performed because of the specific aircraft type, aircraft configuration and type and specificity of operation, whereas the following elements shall be taken into consideration as a minimum:

- (a) specific installed equipment and modifications of the aircraft;
 - (b) repairs carried out in the aircraft;
 - (c) life-limited components and flight-safety-critical components;
 - (d) maintenance recommendations, such as time between overhaul ('TBO') intervals, issued through service bulletins, service letters, and other non-mandatory service information;
 - (e) applicable operational directives or requirements related to the periodic inspection of certain equipment;
 - (f) special operational approvals;
 - (g) use of the aircraft and operational environment;
- (6) shall identify whether the Pilot-owners are authorised to perform maintenance;
- (7) when declared by the owner, shall contain a signed statement by which the owner declares that this is the AMP for the particular aircraft registration and that he is fully responsible for its content and, in particular, for any deviations from the DAH's recommendations;
- (8) when approved by the CAMO or CAO, shall be signed by this organisation, which shall retain records with the justification for any deviation introduced to the DAH's recommendations;
- (9) shall be reviewed at least annually in order to assess its effectiveness, and this review shall be performed, alternatively:
- (a) in conjunction with the airworthiness review of the aircraft by the person who performs such an airworthiness review;
 - (b) by the CAMO or CAO managing the continuing airworthiness of the aircraft in those cases where the review of the AMP is not performed in conjunction with an airworthiness review.

If the review shows deficiencies of the aircraft linked with deficiencies in the content of the AMP, the AMP shall be amended accordingly. In this case the person performing the review shall inform the competent authority of the Member State of registry if he does not agree with the measures amending the

AMP taken by the owner, CAMO or CAO. The competent authority shall decide which amendments to the AMP are necessary, raising the corresponding findings and, if necessary, reacting in accordance with point ML.B.304.

(d) A MIP:

(1) shall contain the following inspection intervals:

(a) for aeroplanes, touring motor gliders ('TMGs') and balloons, every annual or 100-h interval, whichever comes first, to which a tolerance of 1 month or 10 h may be applied. The next interval shall be calculated as from the time the inspection takes place;

(b) for sailplanes and powered sailplanes other than TMG, every annual interval to which a tolerance of 1 month may be applied. The next interval shall be calculated as from the time the inspection takes place;

(2) shall contain the following, as applicable to the aircraft type:

(a) servicing tasks as required by the DAH's requirements;

(b) inspection of markings;

(c) review of weighing records and weighing in accordance with Regulation (EU) No 965/2012, Regulation (EU) 2018/395 and Regulation (EU) 2018/1976;

(d) operational test of transponder (if installed);

(e) functional test of the pitot-static system;

(f) in the case of aeroplanes:

(i) operational tests for power and revolutions per minute (rpm), magnetos, fuel and oil pressure, engine temperatures;

(ii) for engines equipped with automated engine control, the published run-up procedure;

- (iii) for dry-sump engines, engines with turbochargers and liquid-cooled engines, an operational test for signs of disturbed fluid circulation;
- (g) inspection of the condition and attachment of the structural items, systems and components corresponding to the following areas:
- (i) for aeroplanes:
- airframe, cabin and cockpit, landing gear, wing and centre section, flight controls, empennage, avionics and electrics, power plant, clutches and gearboxes, propeller and miscellaneous systems, such as the ballistic rescue system;
- (ii) for sailplanes and powered sailplanes:
- airframe, cabin and cockpit, landing gear, wing and centre section, empennage, avionics and electrics, power plant (for powered sailplanes) and miscellaneous systems, such as removable ballast and/or drag chute and controls, as well as water ballast system;
- (iii) for hot-air balloons:
- envelope, burner, basket, fuel containers, equipment and instruments;
- (iv) for gas balloons:
- envelope, basket, equipment and instruments.

As long as this Annex does not specify an MIP for airships and rotorcraft, their AMP shall be based on the ICA issued by the DAH, as referred to in point (c)(2)(b).

(e) By derogation from points (b) and (c), a declaration by the owner or an approval by a CAMO or CAO is not required, and an AMP document is not required to be produced when the following conditions are met:

- (1) all the ICA issued by the DAH are being followed without any deviations;
- (2) all maintenance recommendations, such as TBO intervals, issued through service bulletins, service letters, and other non-mandatory service information, are being followed without any deviations;

(3) there are no additional maintenance tasks to be performed resulting from any of the following:

- (a) specific installed equipment and modifications of the aircraft;
- (b) repairs carried out in the aircraft;
- (c) life-limited components and flight-safety-critical components;
- (d) special operational approvals;
- (e) use of the aircraft and operational environment.

(4) Pilot-owners are authorised to perform Pilot-owner maintenance.

This derogation is not applicable if the pilot-owner or, in case of jointly-owned aircraft, any of the pilot-owners is not authorised to perform Pilot-owner maintenance because this has to be specified in the declared or approved AMP.

(f) If the conditions provided for in points (e)(1) to (e)(4) are met, the AMP applicable to the aircraft shall consist of the following:

- (1) the ICA issued by the DAH;
- (2) the maintenance recommendations, such as TBO intervals, issued through service bulletins, service letters, and other non-mandatory service information;
- (3) the mandatory continuing airworthiness information, such as repetitive ADs, the ALS of the ICA and specific maintenance requirements contained in the TCDS;
- (4) the tasks due to specific operational or airspace directives or requirements in relation to particular instruments and equipment.

ML.A.303 Airworthiness directives

Any applicable AD must be carried out within the requirements of that AD unless otherwise specified by the Agency.

ML.A.304 Data for modifications and repairs

A person or organisation repairing an aircraft or a component shall assess any damage. Modifications and repairs shall be carried out using, as appropriate, the following data:

- (a) approved by the Agency;
- (b) approved by a design organisation complying with Annex I (Part-21) to Regulation (EU) No 748/2012;
- (c) contained in the requirements referred to in point 21.A.90B or point 21.A.431B of Annex I (Part-21) to Regulation (EU) No 748/2012.

ML.A.305 Aircraft continuing-airworthiness record system

- (a) At the completion of any maintenance, the certificate of release to service (CRS) required by point ML.A.801 shall be entered in the aircraft continuing airworthiness record system. Each entry shall be made as soon as possible but not later than 30 days after the day of the completion of the maintenance task.
- (b) The aircraft continuing airworthiness records shall consist of an aircraft logbook, engine logbook(s) or engine module log cards, propeller logbook(s) and log cards, for any service-life-limited component, as appropriate.
- (c) The aircraft type and registration mark, the date together with the total flight time and flight cycles and landings, shall be entered in the aircraft logbooks.
- (d) The aircraft continuing airworthiness records shall contain:
 - (1) the current status of ADs and measures mandated by the competent authority in immediate reaction to a safety problem;
 - (2) the current status of modifications, repairs and other DAH maintenance recommendations;
 - (3) the current status of compliance with the AMP;

- (4) the current status of service-life-limited components;
- (5) the current mass and balance report;
- (6) the current list of deferred maintenance.

(e) In addition to the authorised release document, EASA Form 1, as set out in Appendix II of Annex I (Part-M), or equivalent, the following information relevant to any component installed, such as engine, propeller, engine module or service-life-limited component, shall be entered in the appropriate engine or propeller logbook, engine module or service-life-limited component log card:

- (1) the identification of the component;
- (2) the type, serial number and registration, as appropriate, of the aircraft, engine, propeller, engine module or service-life-limited component to which the particular component has been fitted, along with the reference to the installation and removal of the component;
- (3) the date together with the component's accumulated total flight time, flight cycles, landings and calendar time, as relevant to the particular component;
- (4) the current information referred to in point (d), applicable to the component.

(f) The person or organisation responsible for the management of continuing airworthiness and tasks pursuant to point ML.A.201, shall control the records as detailed in point ML.A.305 and present the records to the competent authority upon request.

(g) All entries made in the aircraft continuing airworthiness records shall be clear and accurate. When it is necessary to correct an entry, the correction shall be made in a manner that clearly shows the original entry.

(h) An owner shall ensure that a system has been established to keep the following records for the periods specified:

- (1) all detailed maintenance records in respect of the aircraft and any service-life-limited component fitted thereto, until such time as the information contained therein is superseded by new information equivalent in scope and detail but no less than 36 months after the aircraft or component has been released to service;

- (2) the total time in service, this is to say hours, calendar time, cycles and landings, of the aircraft and all service-life-limited components, for at least 12 months after the aircraft or component has been permanently withdrawn from service;
- (3) the time in service, this is to say hours, calendar time, cycles and landings, as appropriate, since the last scheduled maintenance of the component subjected to a service life limit, at least until the component scheduled maintenance has been superseded by another scheduled maintenance of equivalent work scope and detail;
- (4) the current status of compliance with the AMP at least until the scheduled maintenance of the aircraft or component has been superseded by another scheduled maintenance of equivalent work scope and detail;
- (5) the current status of ADs applicable to the aircraft and components, at least 12 months after the aircraft or component has been permanently withdrawn from service;
- (6) details of current modifications and repairs to the aircraft, engine(s), propeller(s) and any other component vital to flight safety, at least 12 months after they have been permanently withdrawn from service.

ML.A.307 Transfer of aircraft continuing-airworthiness records

- (a) When an aircraft is permanently transferred from one owner to another, the transferring owner shall ensure that the continuing airworthiness records referred to in point ML.A.305 are also transferred.
- (b) When the owner contracts the continuing airworthiness management tasks to a CAMO or CAO the owner shall ensure that the continuing airworthiness records referred to in point ML.A.305 are transferred to the contracted organisation.
- (c) The time periods for the retention of records set out in point (h) of point ML.A.305 shall continue to apply to the new owner, CAMO or CAO.

SUBPART D — MAINTENANCE STANDARDS

ML.A.401 Maintenance data

- (a) The person or organisation maintaining an aircraft shall only use applicable maintenance data during the performance of maintenance.
- (b) For the purposes of this Annex, “applicable maintenance data” means any of the following:
1. any applicable requirement, procedure, standard or information issued by the competent authority or the Agency;
 2. any applicable AD;
 3. the applicable ICA and other maintenance instructions, issued by the type-certificate holder, supplementary type-certificate holder and any other organisation that publishes such data in accordance with Annex I (Part 21) to Regulation (EU) No 748/2012;
 4. for components approved for installation by the design approval holder, the applicable maintenance instructions published by the component manufacturers and acceptable to the design approval holder;
 5. any applicable data issued in accordance with point 145.A.45(d).

ML.A.402 Performance of maintenance

- (a) Maintenance performed by approved maintenance organisations shall be in accordance with Subpart F of Annex I (Part-M), Annex II (Part-145) or Annex Vd (Part-CAO), as applicable.
- (b) For maintenance not performed in accordance with point (a), the person performing maintenance shall:
- (1) be qualified for the tasks performed, as required by this Annex;
 - (2) ensure that the area in which maintenance is carried out is well organised and clean with no dirt or contamination;
 - (3) use the methods, techniques, standards and instructions specified in the maintenance data referred to in point ML.A.401;

- (4) use the tools, equipment and material specified in the maintenance data referred to in point ML.A.401. If necessary, tools and equipment shall be controlled and calibrated to an officially recognised standard;
- (5) ensure that maintenance is performed within any environmental limitations specified in the maintenance data referred to in point ML.A.401;
- (6) ensure that proper facilities are used in case of inclement weather or lengthy maintenance;
- (7) ensure that the risk of multiple errors during maintenance and the risk of errors being repeated in identical maintenance tasks are minimised;
- (8) ensure that an error-capturing method is implemented after the performance of any critical maintenance task;
- (9) perform a general verification after completion of maintenance to ensure that the aircraft or component is clear of all tools, equipment and any extraneous parts and material, and that all access panels removed have been refitted;
- (10) ensure that all maintenance performed is properly recorded and documented.

ML.A.403 Aircraft defects

- (a) Any aircraft defect that seriously endangers the flight safety shall be rectified before further flight.
- (b) The following persons may decide that a defect does not seriously endanger flight safety, and may defer it accordingly:
 - (1) the pilot in respect of defects affecting non-required aircraft equipment;
 - (2) the pilot, when using the minimum equipment list, in respect of defects affecting required aircraft equipment — otherwise, these defects may only be deferred by authorised certifying staff;
 - (3) the pilot in respect of defects other than those referred to in points (b)(1) and (b)(2) if all the following conditions are met:
 - (i) the aircraft is operated under Annex VII to Regulation(EU) No 965/2012 (Part-NCO) or, in the case of balloons or sailplanes, not operated under Subpart-ADD of Annex II (Part-BOP) to Regulation (EU) 2018/395 or not following Subpart DEC of Annex II (Part-SAO) to Regulation (EU) 2018/1976;

(ii) the pilot defers the defect with the agreement of the aircraft owner or, if applicable, of the contracted CAMO or CAO;

(4) the appropriately qualified certifying staff in respect of other defects than those referred to in points (b)(1) and (b)(2), where the conditions referred to in point 3(i) and (ii) are not met.

(c) Any aircraft defect that does not seriously hazard flight safety shall be rectified as soon as practicable from the date on which the defect was first identified and within the limits specified in the maintenance data.

(d) Any defect not rectified before flight shall be recorded in the aircraft continuing airworthiness record system referred to in point ML.A.305 and a record shall be available to the pilot.

SUBPART E — COMPONENTS

ML.A.501 Classification and installation

(a) Unless otherwise specified in Subpart F of Annex I (Part-M), in Annex II (Part-145), in Annex Vd (Part-CAO) to this Regulation or in point 21.A.307 of Annex I (Part 21) to Regulation (EU) No 748/2012, a component may be fitted only if all of the following conditions are met:

- (i) it is in a satisfactory condition;
- (ii) it has been appropriately released to service using an EASA Form 1 as set out in Appendix II to Annex I (Part-M), or equivalent;
- (iii) it has been marked in accordance with Subpart Q of Annex I (Part 21) to Regulation (EU) No 748/2012.

(b) Prior to the installation of a component on an aircraft, the person or approved maintenance organisation shall ensure that the particular component is eligible to be fitted if different modifications or AD configurations are applicable.

(c) Standard parts shall only be fitted to an aircraft or component when the maintenance data specifies those particular standard parts. Standard parts shall only be fitted when accompanied by evidence of conformity to the applicable standard and has appropriate traceability.

(d) Raw or consumable material shall only be used on an aircraft or component provided that:

- (i) the aircraft or component manufacturer allows for the use of raw or consumable material in relevant maintenance data or as specified in Subpart F of Annex I (Part-M), Annex II (Part-145) or Annex Vd (Part-CAO).
- (ii) such material meets the required material specification and has appropriate traceability.
- (iii) such material is accompanied by documentation clearly relating to the particular material and containing a conformity-to-specification statement as well as the manufacturing and supplier source.

(e) In case of balloons, where different combinations of baskets, burners and fuel cylinders are possible for a particular envelope, the person installing them shall ensure that:

- (1) the basket, burner and/or fuel cylinders are eligible for installation according to the TCDS or other documents referred to in the TCDS;

(2) the basket, burner and/or fuel cylinders are in serviceable condition and have the appropriate maintenance records.

ML.A.502 Component maintenance

(a) Components which are accepted by the owner in accordance with point (b)(2) of point 21.A.307 of Annex I (Part 21) to Regulation (EU) No 748/2012 shall be maintained by any person or organisation, subject to reacceptance by the owner under the conditions of point (b)(2) of point 21.A.307 of that Annex. This maintenance is not eligible for the issuance of an EASA Form 1, as set out in Appendix II to Annex I (Part-M), and shall be subject to the aircraft release requirements.

(b) Components shall be released in accordance with the following table:

	Released using an EASA Form 1 (as set out in Appendix II of Annex I (Part-M))	Released at aircraft level per point ML.A.801 (not possible to issue an EASA Form 1)
Components maintained in accordance with component maintenance data (data issued by the component manufacturer)		
Maintenance other than overhaul	Engine-rated (for engine) or component-rated (for other components) maintenance organisations	(i) Aircraft-rated maintenance organisations; and/or (ii) independent certifying staff
Overhaul of components other than engines and propellers	Component-rated maintenance organisations	Not possible
Overhaul of engines and propellers for CS-VLA, CS-22 and LSA aircraft	Engine-rated (for engine) or component-rated (for propeller) maintenance organisations	(iii) Aircraft-rated maintenance organisations; and/or (iv) independent certifying staff
Overhaul of engines and propellers for other than CS- VLA, CS-22 and LSA aircraft	Engine-rated (for engine) or component-rated (for propeller) maintenance organisations	Not possible
Components maintained in accordance with aircraft maintenance data (data issued by the aircraft manufacturer)		
All components and all types of maintenance	Engine-rated (for engine) or component-rated (for other components) maintenance organisations	— Aircraft-rated maintenance organisations; and/or — independent certifying staff

(c) Components which are referred to in points (b)(3) to (b)(6) of point 21.A.307 of Annex I (Part 21) to Regulation (EU) No 748/2012 may be maintained by any person or organisation. In such case, by way of derogation from point (b), the maintenance of those components shall be released with a “declaration of maintenance accomplished” issued by the person or organisation that performed the maintenance. The “declaration of maintenance accomplished” shall contain at least basic details of the maintenance carried out, the date on which the maintenance was completed, and the identification of the organisation or person that issues it. It shall be considered a maintenance record and equivalent to an EASA Form 1 in respect of the maintained component.

ML.A.503 Service-life-limited components

(a) The term 'service life-limited components' contains the following components:

- (1) components subject to a certified life limit after which the components should be retired, and;
- (2) components subject to a service life limit after which the components shall undergo maintenance to restore their serviceability.

(b) Installed service-life-limited components shall not exceed the approved service life limit as specified in the AMP and ADs, except as provided for in point ML.A.504(c).

(c) The approved service life is expressed in calendar time, flight hours, landings or cycles, as appropriate.

(d) At the end of the approved service life limit, the component must be removed from the aircraft for maintenance, or for disposal in the case of components with a certified life limit.

ML.A.504 Control of unserviceable components

(a) A component shall be considered unserviceable in any of the following circumstances:

- (1) expiry of the component's service life limit as defined in the AMP;
- (2) non-compliance with the applicable ADs and other continued-airworthiness requirement mandated by the Agency; (3) absence of the necessary information to determine the airworthiness status of the component or its eligibility for installation;
- (4) evidence of component defects or malfunctions;
- (5) component involvement in an incident or accident likely to affect its serviceability.

(b) Unserviceable components shall be identified as one of the following:

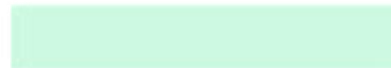
- (1) unserviceable and stored in a secure location under the control of an approved maintenance organisation or independent certifying staff until a decision is made on the future status of such components;
- (2) unserviceable by the person or organisation that declared the component unserviceable, and its custody shall be transferred to the aircraft owner after documenting such transfer in aircraft maintenance record system referred to in point ML.A.305.

(c) Components which have reached their certified life limit or contain a non-repairable defect or malfunction shall be classified as unsalvageable and shall not be permitted to re-enter the component supply system unless certified life limits have been extended or a repair solution has been approved in accordance with point ML.A.304.

(d) Any person or organisation responsible pursuant to point ML.A.201 shall in the case of an unsalvageable component, as provided for in point (c), take one of the following actions:

- (1) retain such component in a location referred to in point (b)(1);
- (2) arrange for the component to be mutilated in a manner that ensures that it is beyond economic salvage or repair before relinquishing responsibility for such a component.

(e) Notwithstanding point (d), a person or organisation responsible pursuant to point ML.A.201 may transfer responsibility of components classified as unsalvageable without mutilation to an organisation for training or research.



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SUBPART H — CERTIFICATE OF RELEASE TO SERVICE (CRS)

ML.A.801 Aircraft certificate of release to service

- (a) A CRS shall be issued after the required maintenance has been carried out properly on an aircraft.
- (b) The CRS shall be issued, alternatively by:
- (1) appropriate certifying staff on behalf of the approved maintenance organisation;
 - (2) independent certifying staff;
 - (3) the pilot- owner in compliance with point ML.A.803.
- (c) By derogation from point (b), in the case of unforeseen circumstances, when an aircraft is grounded at a location where no appropriately approved maintenance organisation and no appropriate certifying staff are available, the owner may authorise any person, with no less than 3 years of appropriate maintenance experience and holding the proper qualifications, to maintain the aircraft according to the standards set out in Subpart D of this Annex and release the aircraft. The owner shall in that case:
- (1) obtain and keep in the aircraft records, details of all the work carried out and of the qualifications held by the person issuing the certification;
 - (2) ensure that any such maintenance is rechecked and released in accordance with point (b) of point ML.A.801 at the earliest opportunity and within a period not exceeding 7 days or, in the case of aircraft operated under Annex VII to Regulation (EU) No 965/2012 (Part-NCO) or, in the case of balloons, not operated under Subpart-ADD of Annex II (Part-BOP) to Regulation (EU) 2018/395 or, in the case of sailplanes not following Subpart DEC of Annex II (Part-SAO) to Regulation (EU) 2018/1976, within a period not exceeding 30 days;
 - (3) notify the contracted CAMO or CAO, or the competent authority in the absence of such a contract, within 7 days of the issuance of such authorisation.
- (d) In the case of a release to service in accordance with points (b)(1) or (b)(2), the certifying staff may be assisted in performing the maintenance tasks by one or more persons subject to his direct and continuous control;
- (e) A CRS shall contain at least:

- (1) basic details of the maintenance carried out;
- (2) the date on which the maintenance was completed;
- (3) the identity of the organisation or person issuing the release to service, including, alternatively:
 - (i) the approval reference of the maintenance organisation and certifying staff issuing the CRS;
 - (ii) in the case of point (b)(2), the identity and, if applicable, the licence number of the independent certifying staff issuing the CRS;
- (4) the limitations to airworthiness or operations, if any.

(f) By derogation from point (a) and notwithstanding point (g), when the required maintenance cannot be completed, a CRS may be issued within the approved aircraft limitations. In that case, the CRS shall indicate that the maintenance could not be completed, as well as indicate any applicable airworthiness or operations limitations, as part of the information required in point (e)(4) .

(g) A CRS shall not be issued in the case of any known non-compliance with the requirements of this Annex which endangers flight safety.

ML.A.802 Component certificate of release to service

(a) Except for the cases covered by point (c) of point ML.A.502, a component CRS shall be issued after the required maintenance work has been properly carried out on an aircraft component in accordance with point ML.A.502.

(b) The authorised release certificate identified as EASA Form 1, as set out Appendix II of Annex I (Part-M) , constitutes the component CRS, except when such maintenance is released at aircraft level, as indicated in point ML.A.502(b).

ML.A.803 Pilot-owner authorisation

(a) To qualify as a pilot-owner, the person must:

(1) hold a valid pilot licence or equivalent licence issued or validated by a Member State for the aircraft type or class rating;

(2) own the aircraft, either as a sole or joint owner; that owner must be, alternatively:

(i) one of the natural persons on the registration form;

(ii) a member of a non-profit recreational legal entity, where the legal entity is specified on the registration document as owner or operator; that member must be directly involved in the decision-making process of the legal entity and designated by that legal entity to carry out Pilot-owner maintenance.

(b) For aircraft operated under Annex VII (Part-NCO) to Regulation (EU) No 965/2012 or, in the case of balloons, not operated under Subpart-ADD of Annex II (Part-BOP) to Regulation (EU) 2018/395 or, in the case of sailplanes, not following Subpart DEC of Annex II (Part-SAO) to Regulation (EU) 2018/1976, the pilot-owner may issue a CRS after limited Pilot-owner maintenance as provided for in Appendix II to this Annex.

(c) The CRS shall be entered in the logbooks and contain basic details of the maintenance carried out, the maintenance data used, the date on which that maintenance was completed, as well as the identity, the signature and the pilot licence (or equivalent) number of the pilot-owner issuing such a certificate.

SUBPART I — AIRWORTHINESS REVIEW CERTIFICATE (ARC)

ML.A.901 Aircraft airworthiness review

To ensure the validity of the aircraft airworthiness certificate, an airworthiness review of the aircraft and its continuing airworthiness records shall be carried out periodically.

(a) An ARC is issued in accordance with Appendix IV (EASA Form 15c) to this Annex upon completion of a satisfactory airworthiness review. The ARC shall be valid for 1 year;

(b) The airworthiness review and the issuance of the ARC shall be performed in accordance with point ML.A.903, alternatively by:

(1) the competent authority;

(2) an appropriately approved CAMO or CAO;

(3) the approved maintenance organisation while performing the 100-h/annual inspection contained in the AMP;

(4) for aircraft operated under Annex VII (Part-NCO) to Regulation (EU) No 965/2012 or, in the case of balloons, not operated under Subpart-ADD of Annex II (Part-BOP) to Regulation (EU) 2018/3951 or, in the case of sailplanes, not following Subpart DEC of Annex II (Part-SAO) to Regulation (EU) 2018/19762, the independent certifying staff while performing the 100-h/annual inspection contained in the AMP, when holding:

(i) a licence issued in accordance with Annex III (Part-66) rated for the corresponding aircraft or, if Annex III (Part-66) is not applicable to the particular aircraft, a national certifying-staff qualification valid for that aircraft;

(ii) an authorisation issued by, alternatively:

(A) the competent authority who issued the licence issued in accordance with Annex III (Part-66),

(B) if Annex III (Part-66) is not applicable, the competent authority responsible for the national certifying-staff qualification.

Independent certifying staff holding a licence issued in accordance with Annex III (Part-66), may perform airworthiness reviews and issue the ARC for aircraft registered in any Member State. However, independent certifying staff holding a national qualification shall only perform airworthiness reviews and issue the ARC for aircraft registered in the Member State responsible for the national qualification.

ARCs issued by independent certifying staff holding a national qualification shall not benefit from mutual recognition when transferring the aircraft to another Member State.

Whenever circumstances reveal the existence of a potential safety threat, the competent authority shall carry out the airworthiness review and issue the ARC itself.

(c) The validity of an ARC may be extended maximum two consecutive times, for a period of one year each time, by an appropriately approved CAMO or CAO, subject to the following conditions:

- (1) the aircraft has been continuously managed for the previous 12 months by this CAMO or CAO;
- (2) the aircraft has been maintained for the previous 12 months by approved maintenance organisations; this includes pilot-owner maintenance tasks carried out and released to service either by the pilot-owner or by independent certifying staff;
- (3) the CAMO or CAO does not have any evidence or reason to believe that the aircraft is not airworthy.

This extension by the CAMO or CAO is possible regardless of which staff or organisation, as provided for in point (b), initially issued the ARC.

(d) By derogation from point (c), the extension of the ARC may be anticipated for a maximum period of 30 days, without loss of continuity of the airworthiness review pattern, to ensure the availability of the aircraft in order to place the original ARC on board.

(e) When the competent authority carries out the airworthiness review and issues the ARC itself, the owner shall provide the competent authority with:

- (1) the documentation required by the competent authority;
- (2) suitable accommodation at the appropriate location for its personnel;
- (3) when necessary, the support of appropriate certifying staff.

ML.A.902 Validity of the airworthiness review certificate

(a) An ARC becomes invalid if, alternatively:

- (1) it is suspended or revoked;
- (2) the airworthiness certificate is suspended or revoked;
- (3) the aircraft is not in the aircraft register of a Member State;
- (4) the type certificate under which the airworthiness certificate was issued is suspended or revoked.

(b) An aircraft shall not fly if the ARC is invalid or if any of the following circumstances are present:

- (1) the continuing airworthiness of the aircraft or any component fitted to the aircraft does not meet the requirements of this Annex;
- (2) the aircraft does not remain in conformity with the type design approved by the Agency;
- (3) the aircraft has been operated beyond the limitations of the approved flight manual or airworthiness certificate, without appropriate action being taken;
- (4) the aircraft has been involved in an accident or incident that affects the airworthiness of the aircraft, without subsequent appropriate action to restore airworthiness;
- (5) a modification or repair to the aircraft or any component fitted to the aircraft is not in compliance with Annex I (Part-21) to Regulation (EU) No 748/2012.

(c) Upon surrender or revocation, the ARC shall be returned to the competent authority.

ML.A.903 Airworthiness review process

(a) To satisfy the requirement for the airworthiness review of an aircraft referred to in point ML.A.901, the airworthiness review staff shall perform a documented review of the aircraft records to verify that:

- (1) airframe, engine and propeller flying hours and associated flight cycles have been properly recorded;
- (2) the flight manual is applicable to the aircraft configuration and reflects the latest revision status;
- (3) all the maintenance due on the aircraft according to the AMP has been carried out;
- (4) all known defects have been corrected or deferred in a controlled manner;
- (5) all applicable ADs have been applied and properly registered;
- (6) all modifications and repairs made to the aircraft have been registered and are in compliance with Annex I (Part-21) to Regulation (EU) No 748/2012;
- (7) all service-life-limited components installed on the aircraft are properly identified, registered and have not exceeded their approved service life limit;
- (8) all maintenance has been certified in accordance with this Annex;
- (9) if required, the current mass-and-balance statement reflects the configuration of the aircraft and is valid;
- (10) the aircraft complies with the latest revision of its type design approved by the Agency;
- (11) if required, the aircraft holds a noise certificate corresponding to the current configuration of the aircraft in compliance with Subpart I of Annex I (Part-21) to Regulation (EU) No 748/2012.

(b) The airworthiness review staff referred to in point (a) shall carry out a physical survey of the aircraft. For this survey, airworthiness review staff not appropriately qualified under Annex III (Part-66) shall be assisted by such qualified personnel.

(c) Through the physical survey of the aircraft, the airworthiness review staff shall ensure that:

- (1) all required markings and placards are properly installed;
- (2) the aircraft complies with its approved flight manual;
- (3) the aircraft configuration complies with the approved documentation;
- (4) no evident defect can be found that has not been addressed according to point ML.A.403;
- (5) no inconsistencies can be found between the aircraft and the documented review of records as referred to in point (a).

(d) By derogation from point ML.A.901(a), the airworthiness review may be anticipated for a maximum period of 90 days, without loss of continuity of the airworthiness review pattern, so as to allow the physical review to take place during a maintenance check.

(e) The ARC (EASA Form 15c) set out to in Appendix IV shall only be issued:

- (1) by appropriately authorised airworthiness review staff;
- (2) when the airworthiness review has been completely carried out, all findings have been closed;
- (3) when any discrepancy found in the AMP in accordance with point (h) has been satisfactorily addressed.

(f) A copy of any ARC issued or extended for an aircraft shall be sent to the Member State of registry of that aircraft within 10 days.

(g) Airworthiness review tasks shall not be subcontracted.

(h) The effectiveness of the AMP may be reviewed in conjunction with the airworthiness review in accordance with point (c)(9) of point ML.A.302. This review shall be completed by the person who performed the airworthiness review. If the review shows deficiencies of the aircraft linked with deficiencies in the content of the AMP, the AMP shall be amended accordingly. The person performing the review shall inform the competent authority of the Member State of registry if he does not agree with the measures amending the AMP taken by the owner, CAMO or CAO. In such case the competent authority shall decide which amendments to the AMP are necessary, raising the corresponding findings defined in point ML.B.903 and, if necessary, reacting in accordance with point ML.B.304.

ML.A.904 Qualification of airworthiness review staff

- (a) Airworthiness review staff acting on behalf of the competent authority shall be qualified in accordance with point ML.B.902.
- (b) Airworthiness review staff acting on behalf of an organisation referred to in Subpart F or Subpart G of Annex I (Part-M), Annex II (Part-145), Annex Vc (Part-CAMO) or Annex Vd (Part-CAO) shall be qualified in accordance with Subpart F or Subpart G of Annex I (Part-M), Annex II (Part-145), Annex Vc (Part-CAMO) or Annex Vd (Part-CAO), respectively.
- (c) Airworthiness review staff acting on their own behalf, as permitted pursuant to point ML.A.901(b)(4), shall:
- (1) hold a licence issued in accordance with Annex III (Part-66) rated for the corresponding aircraft or, if Annex III (Part-66) is not applicable to the particular aircraft, hold a national certifying-staff qualification valid for that aircraft; and
 - (2) hold an authorisation issued by, alternatively:
 - (i) the competent authority who issued the licence in accordance with Annex III (Part-66);
 - (ii) if Annex III (Part-66) is not applicable, the competent authority responsible for the national certifying-staff qualification.
- (d) The authorisation required under point (c)(2) shall be issued by the competent authority when:
- (1) the competent authority has assessed that the person has the knowledge of the parts of this Annex relevant to continuing-airworthiness management, performance of airworthiness reviews and issuance of ARCs;
 - (2) the person has satisfactorily performed an airworthiness review under the supervision of the competent authority.

This authorisation shall remain valid for a duration of 5 years as long as the holder has performed at least 1 airworthiness review every 12-months. If this is not the case, a new airworthiness review shall be satisfactorily performed under the supervision of the competent authority.

Upon expiration of its validity, the authorisation shall be renewed for another 5 years subject to a new compliance with points (d)(1) and (d)(2). There is no limit to the number of renewals.

The holder of the authorisation shall keep records of all the airworthiness reviews performed and shall make them available, upon request, to any competent authority and to any aircraft owner for whom they are performing an airworthiness review.

This authorisation may be revoked by the competent authority at any time if it is not satisfied with the competence of the holder or with the use of such an authorisation.

ML.A.905 Transfer of aircraft registration within the Union

(a) When transferring an aircraft registration within the Union, the applicant shall:

- (1) first, provide the former Member State with the name of the Member State in which the aircraft will be registered;
- (2) and subsequently apply to the new Member State for the issuance of a new airworthiness certificate in accordance with Annex I (Part-21) to Regulation (EU) No 748/2012.

(b) Notwithstanding point (a)(3) of point ML.A.902, the former ARC shall remain valid until its expiry date, except when the ARC was issued by independent certifying staff holding a national certifying-staff qualification in accordance with point (b)(4) of point ML.A.901, in which case point ML.A.906 shall apply.

(c) Notwithstanding points (a) and (b), in those cases where the aircraft was in a non-airworthy condition in the former Member State or where the airworthiness status of the aircraft cannot be determined using the existing records, point ML.A.906 shall apply.

ML.A.906 Airworthiness review of aircraft imported into the Union

(a) When importing an aircraft into a Member State's register from a third country or from a regulatory system where Regulation (EU) 2018/1139 does not apply, the applicant shall:

- (1) apply to the competent authority of the Member State of registry for the issuance of a new airworthiness certificate in accordance with Annex I (Part-21) to Regulation (EU) No 748/2012;
- (2) for aircraft other than new, have an airworthiness review carried out satisfactorily in accordance with point ML.A.901;
- (3) have all maintenance carried out to comply with the approved or declared AMP.

(b) If the aircraft complies with the relevant requirements, the competent authority, the CAMO or CAO, the maintenance organisation or the independent certifying staff performing the airworthiness review, as provided for in point (b) of point ML.A.901, shall issue an ARC and shall submit a copy to the competent authority of the Member State of registry.

(c) The owner shall allow access to the aircraft for inspection by the competent authority of the Member State of registry.

(d) A new airworthiness certificate shall be issued by the competent authority of the Member State of registry if the aircraft complies with Annex I (Part-21) to Regulation (EU) No 748/2012.

ML.A.907 Findings

(a) Findings are categorised as follows:

(1) A Level 1 finding is any finding of significant non-compliance with the requirements of this Annex which lowers the safety standard and seriously endangers flight safety.

(2) A Level 2 finding is any finding of non-compliance with the requirements of this Annex which may lower the safety standard and may endanger flight safety.

(b) After receipt of notification of findings in accordance with point ML.B.903, the person or organisation, having responsibilities pursuant to point ML.A.201, shall define and demonstrate to the competent authority within a period agreed with this authority a corrective action plan, aimed at preventing reoccurrence of the finding and its root cause.

Annex Vc (Part-CAMO)

SECTION A — ORGANISATION REQUIREMENTS

CAMO.A.005 Scope

This Section establishes the requirements to be met by an organisation to qualify for the issue or continuation of a certificate for the management of continuing airworthiness of an aircraft and of components for installation.

CAMO.A.105 Competent authority

For the purpose of this Annex, the competent authority shall be:

(a) for organisations having their principal place of business in a territory for which a Member State is responsible under the Chicago Convention, one of the following:

(i) the authority designated by that Member State where that organisation's principal place of business is located, if the approval is not included in an air operator certificate or if the CAMO is contracted in accordance with M.A.201(ea);

(ii) the authority designated by the Member State of the operator, if the approval is included in an air operator certificate;

(iii) the authority designated by a Member State other than (i) or (ii), if the responsibility has been reallocated to that Member State in accordance with Article 64 of Regulation (EU) 2018/1139;

(iv) the Agency if the responsibility has been reallocated to the Agency in accordance with Articles 64 or 65 of Regulation (EU) 2018/1139;

(b) the Agency if the organisation's principal place of business is located outside a territory for which a Member State is responsible under the Chicago Convention.

CAMO.A.115 Application for an organisation certificate

(a) The application for a certificate or an amendment to an existing certificate in accordance with this Annex shall be made in a form and manner established by the competent authority, taking into account the applicable requirements of Annex I (Part-M), Annex Vb (Part-ML) and this Annex.

(b) Applicants for an initial certificate pursuant to this Annex shall provide the competent authority with:

(1) the results of a pre-audit performed by the organisation against the applicable requirements provided for in Annex I (Part-M), Annex Vb (Part-ML) and this Annex;

(2) documentation demonstrating how they will comply with the requirements established in this Regulation.

Such documentation shall include, as provided for in point CAMO.A.130, a procedure describing how changes not requiring prior approval will be managed and notified to the competent authority.

CAMO.A.120 Means of compliance

(a) Alternative means of compliance to the AMC adopted by the Agency may be used by an organisation to establish compliance with Regulation (EU) 2018/1139 and its delegated and implementing acts.

(b) When an organisation wishes to use an alternative means of compliance, it shall, prior to using it, provide the competent authority with a full description of the alternative means of compliance. The description shall include any revisions to manuals or procedures that may be relevant, as well as an assessment demonstrating compliance with Regulation (EU) 2018/1139 and its delegated and implementing acts.

The organisation may use these alternative means of compliance subject to prior approval by the competent authority, and upon receipt of the notification as provided for in point CAMO.B.120.

CAMO.A.125 Terms of approval and privileges of the organisation

(a) The approval is indicated on the certificate, which is included in Appendix I, and is issued by the competent authority.

(b) Notwithstanding point (a), for air carriers licensed in accordance with Regulation (EC) No 1008/2008, the approval shall be part of the air operator certificate issued by the competent authority for the aircraft operated except when, in accordance with point M.A.201(ea) of Annex I (Part-M), the CAMO is contracted by operators forming part of a single air carrier business grouping.

(c) The scope of work shall be specified in the continuing airworthiness management exposition (CAME) in accordance with point CAMO.A.300.

(d) An organisation approved in accordance with this Annex may:

- (1) manage the continuing airworthiness of aircraft, except those used by air carriers licensed in accordance with Regulation (EC) No 1008/2008, as listed on the certificate;
- (2) manage the continuing airworthiness of aircraft used by air carriers licensed in accordance with Regulation (EC) No 1008/2008, when listed both on its certificate and on the air operator certificate or when M.A.201(ea) applies;
- (3) arrange to carry out limited continuing airworthiness tasks with any subcontracted organisation, working under its management system, as listed on the certificate;
- (4) extend an airworthiness review certificate under the conditions of point M.A.901(f) of Annex I (Part-M) or point ML.A.901(c) of Annex Vb (Part-ML), as applicable.
- (5) Approve the AMP, in accordance with point (b)(2) of point ML.A.302, for aircraft managed in accordance with Annex Vb (Part-ML).

(e) An organisation approved in accordance with this Annex and having its principal place of business in one of the Member States, may additionally be approved to carry out airworthiness reviews in accordance with point M.A.901 of Annex I (Part-M) or point ML.A.903 of Annex Vb (Part-ML) as applicable, and:

- (1) issue the related airworthiness review certificate and extend it in due time under the conditions of point M.A.901(c)(2) and point M.A.901(e)(2) of Annex I (Part-M) or point ML.A.901(c) of Annex Vb (Part-ML), as applicable;
- (2) issue a recommendation for the airworthiness review to the competent authority of the Member State of registry, under the conditions of point (d) of point M.A.901 or point (b) of point M.A.904 of Annex I (Part-M).

(f) An organisation holding the privileges referred to in point (e) may additionally be approved to issue a permit to fly in accordance with point (d) of point 21.A.711 of Annex I (Part-21) to Regulation (EU) No 748/2012 for the particular aircraft for which the organisation is approved to issue the airworthiness review certificate, when the organisation is attesting conformity with approved flight conditions, subject to an adequate procedure in the CAME referred to in point CAMO.A.300.

CAMO.A.130 Changes to the organisation

(a) The following changes to the organisation shall require prior approval:

- (1) changes that affect the scope of the certificate or the terms of approval of the organisation;

(2) changes to personnel nominated in accordance with points (a)(3) to (a)(5) and (b)(2) of point CAMO.A.305;

(3) changes to the reporting lines between the personnel nominated in accordance with points (a)(3) to (a)(5) and (b)(2) of point CAMO.A.305, and the accountable manager;

(4) the procedure as regards changes not requiring prior approval referred to in point (c).

(b) For any changes requiring prior approval in accordance with Regulation (EU) 2018/1139 and its delegated and implementing acts, the organisation shall apply for and obtain an approval issued by the competent authority. The application shall be submitted before any such change takes place, in order to enable the competent authority to determine continued compliance with Regulation (EU) 2018/1139 and its delegated and implementing acts and to amend, if necessary, the organisation certificate and related terms of approval attached to it.

The organisation shall provide the competent authority with any relevant documentation.

The change shall only be implemented upon receipt of formal approval by the competent authority in accordance with point CAMO.B.330.

The organisation shall operate under the conditions established by the competent authority during such changes, as applicable.

(c) All changes not requiring prior approval shall be managed and notified to the competent authority as defined in the procedure referred to in point (b) of point CAMO.A.115 and approved by the competent authority in accordance with point (h) of point CAMO.B.310.

CAMO.A.135 Continued validity

(a) The organisation's certificate shall remain valid subject to compliance with all of the following conditions:

(1) the organisation remaining in compliance with Regulation (EU) 2018/1139 and its delegated and implementing acts, taking into account the provisions related to the handling of findings as specified under point CAMO.B.350;

(2) the competent authority being granted access to the organisation as specified in point CAMO.A.140;

(3) the certificate not being surrendered or revoked.

(b) For air carriers licensed in accordance with Regulation (EC) No 1008/2008, termination, suspension or revocation of the air operator certificate automatically invalidates the organisation certificate in relation to the aircraft registrations specified in the air operator certificate, unless otherwise explicitly stated by the competent authority.

(c) Notwithstanding point (b), when the CAMO is contracted by operators forming part of a single air carrier business grouping in accordance with point M.A.201(ea) of Annex I (Part-M), the termination, suspension or revocation of the air operator certificate does not automatically invalidate the CAMO's certificate. In this case, the contract in accordance with Appendix I to Annex I (Part-M) to this Regulation becomes void.

(d) Upon revocation or surrender, the organisation certificate shall be returned to the competent authority without delay.

CAMO.A.140 Access

For the purpose of determining compliance with the relevant requirements of Regulation (EU) 2018/1139 and its delegated and implementing acts, the organisation shall grant access at any time to any facility, aircraft, document, records, data, procedures or any other material relevant to its activity subject to certification, whether it is contracted/subcontracted or not, to any person authorised by one of the following authorities:

(a) the competent authority defined in point CAMO.A.105;

(b) the authority acting under the provisions of point (d) of point CAMO.B.300 or point (e) of point CAMO.B.300.

CAMO.A.150 Findings

(a) After receipt of notification of findings according to point CAMO.B.350, the organisation shall:

(1) identify the root cause or causes of and contributing factors to the non-compliance;

(2) define a corrective action plan;

(3) demonstrate corrective action implementation to the satisfaction of the competent authority.

(b) Actions referred to in points (a)(1), (a)(2) and (a)(3) shall be performed within the period agreed with that competent authority as defined in point CAMO.B.350.

CAMO.A.155 Immediate reaction to a safety problem

The organisation shall implement:

- (a) any safety measures mandated by the competent authority in accordance with point CAMO.B.135;
- (b) any relevant mandatory safety information issued by the Agency.

CAMO.A.160 Occurrence reporting

- (a) As part of its management system the organisation shall implement an occurrence reporting system that meets the requirements defined in Regulation (EU) No 376/2014 and Implementing Regulation (EU) 2015/10181.
- (b) Without prejudice to point (a), the organisation shall ensure that any incident, malfunction, technical defect, exceeding of technical limitations, occurrence that would highlight inaccurate, incomplete or ambiguous information contained in data established in accordance with Annex I (Part-21) to Regulation (EU) No 748/2012 or other irregular circumstance that has or may have endangered the safe operation of the aircraft and that has not resulted in an accident or serious incident are reported to the competent authority and to the organisation responsible for the design of the aircraft.
- (c) Without prejudice to Regulation (EU) No 376/2014 and Implementing Regulation (EU) 2015/1018, the reports referred to in points (a) and (b) shall be made in a form and manner established by the competent authority and shall contain all pertinent information about the condition known to the organisation.
- (d) Reports shall be made as soon as possible, but in any case within 72 hours of the organisation identifying the condition to which the report relates, unless exceptional circumstances prevent this.
- (e) Where relevant, the organisation shall produce a follow-up report to provide details of actions it intends to take to prevent similar occurrences in the future, as soon as these actions have been identified. This report shall be produced in a form and manner established by the competent authority.

CAMO.A.200 Management system

- (a) The organisation shall establish, implement, and maintain a management system that includes:
 - (1) clearly defined lines of responsibility and accountability throughout the organisation, including a direct safety accountability of the accountable manager;

- (2) a description of the overall philosophies and principles of the organisation with regard to safety, referred to as the safety policy;
- (3) the identification of aviation safety hazards entailed by the activities of the organisation, their evaluation and the management of associated risks, including taking actions to mitigate the risks and verify their effectiveness;
- (4) maintaining personnel trained and competent to perform their tasks;
- (5) documentation of all management system key processes, including a process for making personnel aware of their responsibilities and the procedure for amending this documentation;
- (6) a function to monitor compliance of the organisation with the relevant requirements. Compliance monitoring shall include a feedback system of findings to the accountable manager to ensure effective implementation of corrective actions as necessary;
- (7) any additional requirements that are laid down in this Regulation.

(b) The management system shall correspond to the size of the organisation and the nature and complexity of its activities, taking into account the hazards and associated risks inherent in these activities.

(c) Where the organisation holds one or more additional organisation certificates within the scope of Regulation (EU) 2018/1139 and its delegated and implementing acts, the management system may be integrated with that required under the additional certificate(s) held.

(d) Notwithstanding point (c), for air carriers licensed in accordance with Regulation (EC) No 1008/2008, the management system provided for in this Annex shall be an integrated part of the operator's management system.

(e) When, in accordance with point M.A.201(ea) of Annex I (Part-M), a contract is concluded between a CAMO and operators forming part of a single air carrier business grouping, the CAMO shall ensure that its management system is harmonised with the management systems of the operators forming part of that business grouping.

CAMO.A.202 Internal safety reporting scheme

(a) As part of its management system, the organisation shall establish an internal safety reporting scheme to enable the collection and evaluation of such occurrences to be reported under point CAMO.A.160.

- (b) The scheme shall also enable the collection and evaluation of those errors, near misses, and hazards reported internally that do not fall under point (a).
- (c) Through this scheme, the organisation shall:
- (1) identify the causes of and contributing factors to any errors, near misses, and hazards reported and address them as part of safety risk management in accordance with point (a)(3) of point CAMO.A.200;
 - (2) ensure evaluation of all known, relevant information relating to errors, the inability to follow procedures, near misses, and hazards, and a method to circulate the information as necessary.
- (d) The organisation shall provide access to its internal safety reporting scheme to any subcontracted organisation.
- (e) The organisation shall cooperate on safety investigations with any other organisation having a significant contribution to the safety of its own continuing airworthiness management activities.

CAMO.A.205 Contracting and subcontracting

- (a) The organisation shall ensure that when contracting maintenance or when subcontracting any part of its continuing airworthiness management activities:
- (1) these activities conform to the applicable requirements; and
 - (2) any aviation safety hazards associated with such contracting or subcontracting are considered as part of the organisation's management system.
- (b) When the organisation subcontracts any part of its continuing airworthiness management activities to another organisation, the subcontracted organisation shall work under the approval of the organisation. The organisation shall ensure that the competent authority is given access to the subcontracted organisation, to determine continued compliance with the applicable requirements.

CAMO.A.215 Facilities

The organisation shall provide suitable office accommodation at appropriate locations for the personnel specified in point CAMO.A.305.

CAMO.A.220 Record-keeping

(a) Continuing airworthiness management records

- (1) The organisation shall ensure that records required by points M.A.305, ML.A.305 and, if applicable point M.A.306, are retained.
- (2) The organisation shall record all details of work carried out.
- (3) If the organisation has the privilege referred to in point (e) of point CAMO.A.125, it shall retain a copy of each airworthiness review certificate and recommendation issued or, as applicable, extended, together with all supporting documents. In addition, the organisation shall retain a copy of any airworthiness review certificate that it has extended under the privilege referred to in point (d)(4) of point CAMO.A.125.
- (4) If the organisation has the privilege referred to in point (f) of point CAMO.A.125, it shall retain a copy of each permit to fly issued in accordance with the provisions of point 21.A.729 of Annex I (Part-21) to Regulation (EU) No 748/2012.
- (5) The organisation shall retain a copy of all records referred to in points (a)(2) to (a)(4) until 3 years after the responsibility for the aircraft in accordance with points M.A.201 or ML.A.201 has been permanently transferred to another person or organisation.
- (6) Where the organisation terminates its operation, all retained records shall be transferred to the owner of the aircraft.

(b) Management system, contracting and subcontracting records

- (1) The organisation shall ensure that the following records are retained:
 - (i) records of management system key processes as defined in point CAMO.A.200;
 - (ii) contracts, both for contracting and subcontracting, as defined in point CAMO.A.205;
- (2) Management system records, as well as any contracts pursuant to point CAMO.A.205, shall be kept for a minimum period of 5 years.

(c) Personnel records

(1) The organisation shall ensure that the following records are retained:

- (i) records of qualification and experience of personnel involved in continuing airworthiness management, compliance monitoring and safety management;
- (ii) records of qualification and experience of all airworthiness review staff, as well as staff issuing recommendations and permits to fly.

(2) The records of all airworthiness review staff, staff issuing recommendations and staff issuing permits to fly shall include details of any appropriate qualification held together with a summary of the relevant continuing airworthiness management experience and training and a copy of the authorisation.

(3) Personnel records shall be kept as long as the person works for the organisation, and shall be retained until 3 years after the person has left the organisation.

(d) The organisation shall establish a system of record-keeping that allows adequate storage and reliable traceability of all activities developed.

(e) The format of the records shall be specified in the organisation's procedures.

(f) Records shall be stored in a manner that ensures protection from damage, alteration and theft.

CAMO.A.300 Continuing airworthiness management exposition (CAME)

(a) The organisation shall provide the competent authority with a CAME and, where applicable, any referenced associated manuals and procedures, containing all of the following information:

- (1) a statement signed by the accountable manager confirming that the organisation will at all times work in accordance with this Annex, Annex I (Part-M) and Annex Vb (Part-ML), as applicable, and with the approved CAME. When the accountable manager is not the chief executive officer of the organisation, then such chief executive officer shall countersign the statement;
- (2) the organisation's safety policy as defined in point (a)(2) of point CAMO.A.200;
- (3) the organisation's scope of work relevant to the terms of approval;

- (4) a general description of the manpower resources and of the system in place to plan the availability of staff as required by point (d) of point CAMO.A.305;
- (5) the title(s) and name(s) of person(s) referred to in points (a)(3) to (a)(5), (b)(2) and (f) of point CAMO.A.305;
- (6) the duties, accountabilities, responsibilities and authorities of the persons nominated under points (a)(3) to (a)(5), (b)(2), (e) and (f) of point CAMO.A.305;
- (7) an organisation chart showing the associated chains of accountability and responsibility between all the person(s) referred to in points (a)(3) to (a)(5), (b)(2), (e) and (f) of point CAMO.A.305, and related to point (a)(1) of point CAMO.A.200;
- (8) a list of staff authorised to issue airworthiness review certificates or recommendations referred to in point (e) of point CAMO.A.305, specifying, where applicable, the staff authorised to issue permits to fly in accordance with point (c) of point CAMO.A.125;
- (9) a general description and location of the facilities;
- (10) the description of the internal safety reporting scheme as required by point CAMO.A.202;
- (11) the procedures specifying how the organisation ensures compliance with this Annex, Annex I (Part-M) and Annex Vb (Part-ML), as applicable, including in particular:
 - (i) the documentation of management system key processes as required by point CAMO.A.200;
 - (ii) procedures defining how the organisation controls any contracted and subcontracted activities as required by point CAMO.A.205 and point (c) of point CAMO.A.315);
 - (iii) continuing airworthiness management, airworthiness review and permit to fly procedures, as applicable;
 - (iv) the procedure defining the scope of changes not requiring prior approval and describing how such changes will be managed and notified, as required by point (b) of point CAMO.A.115 and point (c) of point CAMO.A.130;
 - (v) the CAME amendment procedures.

(12) the list of approved aircraft maintenance programmes for those aircraft for which a continuing airworthiness management contract exists in accordance with point M.A.201 or ML.A.201;

(13) the list of maintenance contracts in accordance with point (c) of point CAMO.A.315;

(14) the list of currently approved alternative means of compliance.

(b) The initial issue of the CAME shall be approved by the competent authority. It shall be amended as necessary to remain an up-to-date description of the organisation.

(c) Amendments to the CAME shall be managed as defined in the procedures referred to in points (a)(11)(iv) and (a)(11)(v). Any amendments not included in the scope of the procedure referred to in point (a)(11)(iv), as well as amendments related to the changes listed in point CAMO.A.130(a), shall be approved by the competent authority.

CAMO.A.305 Personnel requirements

(a) The organisation shall appoint an accountable manager, who has corporate authority for ensuring that all continuing airworthiness management activities can be financed and carried out in accordance with Regulation (EU) 2018/1139 and delegated and implementing acts adopted on the basis thereof. The accountable manager shall:

(1) ensure that all necessary resources are available to manage continuing airworthiness in accordance with this Annex, Annex I (Part-M) and Annex Vb (Part-ML), as applicable, to support the organisation approval certificate;

(2) establish and promote the safety policy specified in point CAMO.A.200;

(3) nominate a person or group of persons with the responsibility of ensuring that the organisation always complies with the applicable continuing airworthiness management, airworthiness review and permit to fly requirements of this Annex, Annex I (Part-M) and Annex Vb (Part-ML);

(4) nominate a person or group of persons with the responsibility for managing the compliance monitoring function as part of the management system;

(5) nominate a person or group of persons with the responsibility for managing the development, administration, and maintenance of effective safety management processes as part of the management system;

(6) ensure that the person or group of persons nominated in accordance with points (a)(3) to (a)(5) and (b)(2) of point CAMO.A.305 have direct access to keep him/her properly informed on compliance and safety matters;

(7) demonstrate a basic understanding of this Regulation.

(b) For organisations also approved as air carriers licensed in accordance with Regulation (EC) No 1008/2008, the accountable manager shall in addition:

(1) be the person appointed as accountable manager for the air carrier as required by point (a) of point ORO.GEN.210 of Annex III (Part-ORO) to Regulation (EU) No 965/2012;

(2) nominate a person responsible for the management and supervision of continuing airworthiness, who shall not be employed by an organisation approved in accordance with Annex II (Part-145) under contract to the operator, unless specifically agreed by the competent authority.

(ba) If involved in continuing airworthiness management activities related to a contract established in accordance with point M.A.201(ea), the person or persons nominated in accordance with point (a)(3) of point CAMO.A.305 shall not be employed by an organisation approved in accordance with Annex II (Part-145) under contract to the CAMO, unless specifically agreed by the competent authority.

(c) The person or persons nominated in accordance with points (a)(3) to (a)(5) and (b)(2) of point CAMO.A.305 shall be able to demonstrate relevant knowledge, background and satisfactory experience related to aircraft continuing airworthiness management and demonstrate a working knowledge of this Regulation. Such person(s) shall be ultimately responsible to the accountable manager.

(d) The organisation shall have a system in place to plan the availability of staff to ensure that the organisation has sufficient appropriately qualified staff to plan, perform, supervise, inspect and monitor the organisation's activities in accordance with the terms of approval.

(e) To be approved to carry out airworthiness reviews or recommendations in accordance with point (e) of point CAMO.A.125 and, if applicable, to issue permits to fly in accordance with point (f) of point CAMO.A.125, the organisation shall have airworthiness review staff qualified and authorised in accordance with point CAMO.A.310.

(f) For organisations extending airworthiness review certificates in accordance with point (d)(4) of point CAMO.A.125, the organisation shall nominate persons authorised to do so.

(g) The organisation shall establish and control the competency of personnel involved in compliance monitoring, safety management, continuing airworthiness management, airworthiness reviews or recommendations, and, if applicable, issuing permits to fly, in accordance with a procedure and to a standard agreed by the competent authority. In addition to the necessary expertise related to the job function, competency must include an understanding of safety management and human factors principles appropriate to the person's function and responsibilities in the organisation.

CAMO.A.310 Airworthiness review staff qualifications

(a) Airworthiness review staff issuing airworthiness review certificates or recommendations in accordance with point (e) of point CAMO.A.125 and, if applicable, issuing permits to fly in accordance with point (f) of point CAMO.A.125 shall have:

- (1) at least 5 years of experience in continuing airworthiness;
- (2) acquired an appropriate licence in compliance with Annex (III) Part-66 or an aeronautical degree or a national equivalent;
- (3) received formal aeronautical maintenance training;
- (4) held a position within the approved organisation with appropriate responsibilities.

(b) Notwithstanding points (a)(1), (a)(3) and (a)(4), the requirement laid down in point (a)(2) may be replaced with 5 years of experience in continuing airworthiness additional to those already required by point (a)(1).

(c) Airworthiness review staff nominated by the organisation can only be issued an authorisation by that organisation when formally accepted by the competent authority after satisfactory completion of an airworthiness review under the supervision of the competent authority, or under the supervision of the organisation's authorised airworthiness review staff, in accordance with a procedure approved by the competent authority as part of the CAME.

(d) The organisation shall ensure that aircraft airworthiness review staff can demonstrate appropriate, recent continuing airworthiness management experience.

CAMO.A.315 Continuing airworthiness management

(a) The organisation shall ensure that all continuing airworthiness management is carried out in accordance with Section A, Subpart C of Annex I (Part-M), or Section A Subpart C of Annex Vb (Part-ML), as applicable.

(b) For every aircraft managed, the organisation shall in particular:

- (1) ensure that an aircraft maintenance programme including any applicable reliability programme, as required by point M.A.302 or ML.A.302 as applicable, is developed and controlled;
- (2) for aircraft not used by air carriers licensed in accordance with Regulation (EC) No 1008/2008, provide a copy of the aircraft maintenance programme to the owner or operator responsible in accordance with point M.A.201 or ML.A.201 as applicable;
- (3) ensure that data used for any modification and repairs complies with points M.A.304 or ML.A.304 as applicable;
- (4) for all complex motor-powered aircraft or aircraft used by air carriers licensed in accordance with Regulation (EC) No 1008/2008, establish a procedure to assess non-mandatory modifications and/or inspections and decide on their application, making use of the organisation's safety risk management process as required by point (a)(3) of point CAMO.A.200;
- (5) ensure that the aircraft, engine(s), propeller(s) and components thereof are taken to an appropriately approved maintenance organisation referred to in Subpart F of Annex I (Part-M), Annex II (Part-145) or Annex Vd (Part-CAO) whenever necessary;
- (6) order maintenance, supervise activities, and coordinate related decisions to ensure that any maintenance is carried out properly and is appropriately released for the determination of aircraft airworthiness.

(c) Where the organisation is not appropriately approved in accordance with Subpart F of Annex I (Part-M), Annex II (Part-145) or Annex Vd (Part-CAO) it shall, in consultation with the operator, manage the written maintenance contracts required by points (e)(3), (f)(3), (g)(3) and (h)(3) of M.A.201 or point ML.A.201 to ensure that:

- (1) all maintenance is ultimately carried out by an appropriately approved maintenance organisation;
- (2) the functions required under points (b), (c), (f) and (g) of point M.A.301 of Annex I (Part-M) or point ML.A.301 of Annex Vb (Part-ML), as applicable, are clearly specified.

(d) Notwithstanding point (c), the contract may be in the form of individual work orders addressed to the maintenance organisation in the case of:

- (1) an aircraft requiring unscheduled line maintenance;

(2) component maintenance, including engine and propeller maintenance, as applicable.

(e) The organisation shall ensure that human factors and human performance limitations are taken into account during continuing airworthiness management, including all contracted and subcontracted activities.

CAMO.A.320 Airworthiness review

When the organisation approved in accordance with point (e) of point CAMO.A.125 performs airworthiness reviews, they shall be performed in accordance with point M.A.901 of Annex I (Part-M) or point ML.A.903 of Annex Vb (Part-ML), as applicable.

CAMO.A.325 Continuing airworthiness management data

The organisation shall hold and use applicable current maintenance data in accordance with point M.A.401 of Annex I (Part-M) or point ML.A.401 of Annex Vb (Part-ML), as applicable, for the performance of continuing airworthiness tasks referred to in point CAMO.A.315 of this Annex (Part-CAMO). That data may be provided by the owner or the operator, subject to an appropriate contract being established with such an owner or operator. In such case, the continuing airworthiness management organisation shall only keep such data for the duration of the contract, except when otherwise required by point CAMO.A.220(a).

Aircraft Maintenance Programme

Maintenance of each aircraft shall be organised in accordance with an aircraft maintenance programme (AMP). The AMP and any subsequent amendments thereto shall be approved by the competent authority. When the continuing airworthiness of aircraft is managed by a CAMO or CAO, or when there is a limited contract between the owner and a CAMO or CAO, the AMP and its amendments may be approved through an indirect approval procedure. In that case, the indirect approval procedure shall be established by the CAMO or CAO concerned as part of the continuing airworthiness management exposition ('CAME'), or as part of the combined airworthiness exposition ('CAE') and shall be approved by the competent authority responsible for that CAMO or CAO. The indirect approval procedure shall only be used when the CAMO or CAO concerned is under the oversight of the Member State of registry of aircraft, unless a written contract transferring responsibility for the approval of the aircraft maintenance programme to the competent authority responsible for the CAMO or CAO. The AMP shall demonstrate compliance with:

- the instructions issued by the competent authority;
- the instructions for continuing airworthiness:
 - issued by the holders of the type certificate, restricted type certificate, supplemental type certificate, major repair design approval, ETSO authorisation or any other relevant approval issued under Annex I (Part-21) to Regulation (EU) No 748/2012;
 - included in the certification specifications referred to in point 21.A.90B or 21.A.431B of Annex I (Part-21) to Regulation (EU) No 748/2012, if applicable;.

The owner or the organisation managing the continuing airworthiness of the aircraft may deviate from the instruction and propose escalated intervals in the AMP, based on data obtained from sufficient reviews carried out. Indirect approval is not permitted for the escalation of safety-related tasks. The owner or the organisation managing the continuing airworthiness of the aircraft may also propose additional instructions in the AMP. The AMP shall contain details of all maintenance to be carried out, including frequency and any specific tasks linked to the type and specificity of operations. For complex motor-powered aircraft, when the AMP is based on maintenance steering group logic or on condition monitoring, the AMP shall include a reliability programme. The AMP shall be subject to periodic reviews and be amended accordingly when necessary. Those reviews shall ensure that the AMP continues to be up to date and valid in light of the operating experience and instructions from the competent authority, while taking into account new or modified maintenance instructions issued by the type certificate and supplemental type certificate holders and any other organisation that publishes such data in accordance with Annex I (Part-21) to Regulation (EU) No 748/2012.

10.8 Oversight principles in continuing airworthiness

Oversight planning cycle: refers to the time frame within which all areas of the approval and all processes should be reviewed by the competent authority by means of audits and inspections.

Oversight programme: refers to the detailed oversight schedule that defines the number of audits and inspections, the scope and duration of each audit and inspection, including details of product audits and locations, as appropriate, to be performed by the competent authority, and the tentative time frame for performing each audit and inspection.

GM1 145.A.200(a)(6) and 145.B.300 Management system and Oversight principles

THE USE OF INFORMATION AND COMMUNICATION TECHNOLOGIES (ICT) FOR PERFORMING REMOTE AUDITS

This GM provides technical guidance on the use of remote information and communication technologies (ICT) to support:

- competent authorities when overseeing regulated organisations;
- regulated organisations when conducting internal audits/monitoring compliance of their organisation with the relevant requirements, and when evaluating vendors, suppliers and subcontractors.

In the context of this GM:

- ‘remote audit’ means an audit that is performed with the use of any real-time video and audio communication tools instead of the physical presence of the auditor on-site; the specificities of each type of approval need to be considered in addition to the general overview (described below) when applying the ‘remote audit’ concept;
- ‘auditing entity’ means the competent authority or organisation that performs the remote audit;
- ‘auditee’ means the entity being audited/inspected (or the entity audited/inspected by the auditing entity via a remote audit);

It is the responsibility of the auditing entity to assess whether the use of remote ICT constitutes a suitable alternative to the physical presence of an auditor on-site in accordance with the applicable requirements.

THE CONDUCT OF A REMOTE AUDIT

The auditing entity that decides to conduct a remote audit should describe the remote audit process in its documented procedures and should consider at least the following elements:

- The methodology for the use of remote ICT is sufficiently flexible and non-prescriptive in nature to optimise the conventional audit process.
- Adequate controls are defined and are in place to avoid abuses that could compromise the integrity of the audit process.
- Measures to ensure that the security and confidentiality are maintained throughout the audit activities (data protection and intellectual property of the organisation also need to be safeguarded).

Examples of the use of remote ICT during audits may include but are not limited to:

- meetings by means of teleconference facilities, including audio, video and data sharing;
- assessment of documents and records by means of remote access, in real time;
- recording, in real time during the process, of evidence to document the results of the audit, including non-conformities, by means of exchange of emails or documents, instant pictures, video or/and audio recordings;
- visual (livestream video) and audio access to facilities, stores, equipment, tools, processes, operations, etc.

An agreement between the auditing entity and the auditee should be established when planning a remote audit, which should include the following:

- determining the platform for hosting the audit;
- granting security and/or profile access to the auditor(s);

- testing platform compatibility between the auditing entity and the auditee prior to the audit;
- considering the use of webcams, cameras, drones, etc. when the physical evaluation of an event (product, part, process, etc.) is desired or is necessary;
- establishing an audit plan which will identify how remote ICT will be used and the extent of their use for the audit purposes to optimise their effectiveness and efficiency while maintaining the integrity of the audit process;
- if necessary, time zone acknowledgement and management to coordinate reasonable and mutually agreeable convening times;
- a documented statement of the auditee that they shall ensure full cooperation and provision of the actual and valid data as requested, including ensuring any supplier or subcontractor cooperation, if needed; and
- data protection aspects.

The following equipment and set-up elements should be considered:

- the suitability of video resolution, fidelity, and field of view for the verification being conducted;
- the need for multiple cameras, imaging systems, or microphones, and whether the person that performs the verification can switch between them, or direct them to be switched and has the possibility to stop the process, ask a question, move the equipment, etc.;
- the controllability of viewing direction, zoom, and lighting;
- the appropriateness of audio fidelity for the evaluation being conducted; and
- real-time and uninterrupted communication between the person(s) participating to the remote audit from both locations (on-site and remotely).

When using remote ICT, the auditing entity and the other persons involved (e.g. drone pilots, technical experts) should have the competence and ability to understand and utilise the remote ICT tools employed to achieve the desired results of the audit(s)/assessment(s). The auditing entity should also be aware of the risks and opportunities of the remote ICT used and the impacts they may have on the validity and objectivity of the information gathered.

Audit reports and related records should indicate the extent to which remote ICT have been used in conducting remote audits and the effectiveness of remote ICT in achieving the audit objectives, including any item that has not been able to be completely reviewed.

CAMO.B.300 Oversight principles

(a) The competent authority shall verify:

- (1) compliance with the requirements applicable to organisations prior to the issue of an organisation certificate, as applicable;
- (2) continued compliance with the applicable requirements of organisations it has certified;
- (3) implementation of appropriate safety measures mandated by the competent authority as defined in points (c) and (d) of point CAMO.B.135.

(b) This verification shall:

- (1) be supported by documentation specifically intended to provide personnel responsible for safety oversight with guidance to perform their functions;
- (2) provide the organisations concerned with the results of safety oversight activity;
- (3) be based on assessments, audits and inspections, including unannounced inspections;
- (4) provide the competent authority with the evidence needed in case further action is required, including the measures provided for in point CAMO.B.350 'Findings and corrective actions'.

(c) The scope of oversight defined in points (a) and (b) shall take into account the results of past oversight activities and the safety priorities.

(d) Where organisation facilities are located in more than one State, the competent authority as defined in point CAMO.A.105 may agree to have oversight tasks performed by the competent authority(ies) of the Member State(s) where facilities are located, or by the Agency for facilities located in a third country. Any organisation subject to such agreement shall be informed of its existence and of its scope.

(e) For oversight performed at facilities located in another State, the competent authority as defined in point CAMO.A.105 shall inform the competent authority of such State, or the Agency for facilities of organisations having their principal place of business in a third country, before performing any on-site audit or inspection of such facilities.

(f) The competent authority shall collect and process any information deemed useful for oversight, including for unannounced inspections.

(g) When a contract is concluded in accordance with point M.A.201(ea) of Annex I (Part-M), the competent authority responsible for the oversight of the CAMO and the competent authorities responsible for the oversight of the operators concerned shall cooperate to ensure the exchange of information which is relevant for the performance of their tasks. This cooperation shall include the exchange of information on results of the oversight activities performed by those competent authorities and may include the performance of oversight tasks on the CAMO by the competent authorities responsible for the operators.

CAMO.B.305 Oversight programme

(a) The competent authority shall establish and maintain an oversight programme covering the oversight activities required by point CAMO.B.300.

(b) The oversight programme shall be developed taking into account the specific nature of the organisation, the complexity of its activities, the results of past certification and/or oversight activities, and shall be based on the assessment of associated risks. It shall include within each oversight planning cycle:

(1) assessments, audits and inspections, including unannounced inspections and, as applicable:

- (i) management system assessments and process audits;
- (ii) product audits of a relevant sample of aircraft managed by the organisation;
- (iii) sampling of airworthiness reviews performed;
- (iv) sampling of permits to fly issued;

(2) meetings convened between the accountable manager and the competent authority to ensure both remain informed of significant issues.

(c) For organisations certified by the competent authority, an oversight planning cycle not exceeding 24 months shall be applied.

(d) Notwithstanding point (c), the oversight planning cycle may be extended up to 36 months if the competent authority has established that during the previous 24 months:

- (1) the organisation has demonstrated an effective identification of aviation safety hazards and management of associated risks;
- (2) the organisation has continuously demonstrated under point CAMO.A.130 that it has full control over all changes;
- (3) no level 1 findings have been issued;
- (4) all corrective actions have been implemented within the time period accepted or extended by the competent authority as defined in point CAMO.B.350.

Notwithstanding point (c), the oversight planning cycle may be further extended to a maximum of 48 months if, in addition to the conditions provided in points (1) to (4) of the first subparagraph, the organisation has established, and the competent authority has approved, an effective continuous reporting system to the competent authority on the safety performance and regulatory compliance of the organisation itself.

(e) The oversight planning cycle may be reduced if there is any evidence that the safety performance of the organisation has decreased.

(f) The oversight programme shall include records of the dates when audits, inspections and meetings are due, and when such audits, inspections and meetings have been carried out.

(g) At the completion of each oversight planning cycle, the competent authority shall issue a recommendation report on the continuation of the approval reflecting the results of oversight.

10.9 Maintenance and certification beyond current EU regulations If not superseded by EU requirements)

Maintenance of European Union aircraft that are not within the scope of Regulation (EU) 2018/1139 (Annex I aircraft)

ARTICLE 140 – TRANSITIONAL PROVISIONS of Regulation (EU) 2018/1139

By 12 September 2021 the Agency may issue guidance material for voluntary use by Member States to support the development of proportionate national rules concerning the design, production, maintenance and operation of aircraft listed in Annex I.

For the maintenance of ENAC type-approved aircraft referred to in Annex I to Regulation (EU) no. 2018/1139 which remain subject to the National regulation developed by ENAC, the requirements on the execution and resolution of maintenance issued by the EU are applicable according to the terms and conditions included in this regard in the relevant technical regulation issued by ENAC (e.g. Technical Regulation of 'Enac and ad hoc regulations) and on the page Art. 2.3.(a) Reg. (EU) n. 2018/1139 [link to the updated page Art. 2.3.(a) Reg. (EU) n. 2018/1139].

European military airworthiness requirements (EMAR) 66 licence

As a result, military airworthiness activities are being conducted and regulated on a national basis, with European harmonisation only being achieved at an individual programme level and having to be repeated and developed for each new programme. This generates many challenges for multinational aircraft programmes and is one of the primary causes of delays and additional costs.

A significant cost driver for any aircraft programme is the costs associated with the initial airworthiness certification of the aircraft, which requires extensive Test and Evaluation (T&E) by the customer nations. If this activity could be carried out collaboratively, by joint T&E teams working to a set of common, harmonised airworthiness requirements, then significant cost and time savings could be realised. Having a set of common and harmonised airworthiness requirements could also reduce through-life sustainment costs by enabling cross-national aircraft maintenance or training of maintenance personnel, whilst economies of scale when outsourcing aircraft maintenance to industry could also be achieved for nations that have common aircraft types.

It has been recognised, therefore, that there exists a unique opportunity to agree on an EU-wide harmonisation and unification strategy for military airworthiness. This strategy will also be of considerable benefit to European industry and will thus strengthen the European Defence Technology and Industrial Base (EDTIB).

To deliver this strategy, the Military Airworthiness Authorities (MAWA) Forum, created in 2008, strives to harmonise the airworthiness requirements

Applicable national and international requirements for component maintenance, welding, painting, NDT, etc. (if not superseded by EU requirements)

Component maintenance

The personnel authorized to certify (or Certifying Staff - CS) and, when applicable, the Support staff (or Support Staff - SS) on the products, components, parts and appliances for which there is no obligation to possess the License of Aeronautical Maintenance according to Annex III (Part 66) to Regulation (EU) no. 1321/2014, as revised, must be qualified in accordance with the national requirements applicable to Certifying Staff.

Achievement of the necessary qualification is certified with the release of the Certificate of Technical Suitability (C.I.T.) in the Certifying Staff category.

The privileges are those reported in the relevant provisions of the "Privileges" paragraph of the National Regulation applicable to the C.I.T., taking into account the qualifications and limitations reported therein.

The holder of a C.I.T. can use the privileges associated with the C.I.T. within a maintenance organization approved in accordance with Regulation (EU) no. 1321/2014 for those products, components, parts and appliances for which possession of an Aeronautical Maintenance License according to Part 66 is not required, or in accordance with the relevant national Regulation. By virtue of the above, the holder of a C.I.T. cannot act on its own (independent CS) according to the provisions of §M.A.801(b)2 in the cases provided for in Chapter H of Annex I (Part M) or, as applicable starting from the date of applicability of the new regulations (EU) 2019/1383 and 2020/270 (which amended Regulation (EU) 1321/2014), according to §ML.A.801(b)(2) from Chapter H of Annex V ter (Part ML), to the Regulation (EU) no. 1321/2014

Welding, painting, NDT

For welding, painting, non-destructive testing and other special activities, the national and international reference regulations apply, which vary in each state of the European Union and which are defined according to the specific activity. for example in Italy On 09 March 2017, the UNI - Italian Standardization Body published the latest revision of the standard UNI EN 4179:2017 Aerospace series - Qualification and approval of personnel assigned to non-destructive testing

10.10 Cybersecurity in aviation maintenance

Regulation on the introduction of organisation requirements for the management of information security risks related to aeronautical information systems used in civil aviation.

COMMISSION IMPLEMENTING REGULATION (EU) 2023/203 of 27 October 2022

Article 1 – Subject matter

This Regulation sets out the requirements to be met by the organisations and competent authorities in order:

- (a) to identify and manage information security risks with potential impact on aviation safety which could affect information and communication technology systems and data used for civil aviation purposes,
- (b) to detect information security events and identify those which are considered information security incidents with potential impact on aviation safety,
- (c) to respond to, and recover from, those information security incidents.

Article 3 – Definitions

For the purpose of this Regulation, the following definitions shall apply:

- (1) ‘information security’ means the preservation of confidentiality, integrity, authenticity and availability of network and information systems;
- (2) ‘information security event’ means an identified occurrence of a system, service or network state indicating a possible breach of the information security policy or failure of information security controls, or a previously unknown situation that can be relevant for information security;
- (3) ‘incident’ means any event having an actual adverse effect on the security of network and information systems as defined in Article 4(7) of Directive (EU) 2016/1148;

- (4) 'information security risk' means the risk to organisational civil aviation operations, assets, individuals, and other organisations due to the potential of an information security event. Information security risks are associated with the potential that threats will exploit vulnerabilities of an information asset or group of information assets;
- 5) 'threat' means a potential violation of information security which exists when there is an entity, circumstance, action or event that could cause harm;
- (6) 'vulnerability' means a flaw or weakness in an asset or a system, procedures, design, implementation, or information security measures that could be exploited and results in a breach or violation of the information security policy.

ANNEX II INFORMATION SECURITY – ORGANISATION REQUIREMENTS [PART-IS.I.OR]

IS.I.OR.100 Scope

This Part establishes the requirements to be met by the organisations referred to in Article 2(1) of this Regulation.

IS.I.OR.200 Information security management system (ISMS)

(a) In order to achieve the objectives set out in Article 1, the organisation shall set up, implement and maintain an information security management system (ISMS) which ensures that the organisation:

- (1) establishes a policy on information security setting out the overall principles of the organisation with regard to the potential impact of information security risks on aviation safety;
- (2) identifies and reviews information security risks in accordance with point IS.I.OR.205;
- (3) defines and implements information security risk treatment measures in accordance with point IS.I.OR.210;
- (4) implements an information security internal reporting scheme in accordance with point IS.I.OR.215;
- (5) defines and implements, in accordance with point IS.I.OR.220, the measures required to detect information security events, identifies those events which are considered incidents with a potential impact on aviation safety except as permitted by point IS.I.OR.205(e), and responds to, and recovers from, those information security incidents;
- (6) implements the measures that have been notified by the competent authority as an immediate reaction to an information security incident or vulnerability with an impact on aviation safety;
- (7) takes appropriate action, in accordance with point IS.I.OR.225, to address findings notified by the competent authority;
- (8) implements an external reporting scheme in accordance with point IS.I.OR.230 in order to enable the competent authority to take appropriate actions;
- (9) complies with the requirements contained in point IS.I.OR.235 when contracting any part of the activities referred to in point IS.I.OR.200 to other organisations;
- (10) complies with the personnel requirements laid down in point IS.I.OR.240;

(11) complies with the record-keeping requirements laid down in point IS.I.OR.245;

(12) monitors compliance of the organisation with the requirements of this Regulation and provides feedback on findings to the accountable manager to ensure effective implementation of corrective actions;

(13) protects, without prejudice to applicable incident reporting requirements, the confidentiality of any information that the organisation may have received from other organisations, according to its level of sensitivity.

(b) In order to continuously meet the requirements referred to in Article 1, the organisation shall implement a continuous improvement process in accordance with point IS.I.OR.260.

(c) The organisation shall document, in accordance with point IS.I.OR.250, all key processes, procedures, roles and responsibilities required to comply with point IS.I.OR.200(a), and shall establish a process for amending that documentation. Changes to those processes, procedures, roles and responsibilities shall be managed in accordance with point IS.I.OR.255.

(d) The processes, procedures, roles and responsibilities established by the organisation in order to comply with point IS.I.OR.200(a) shall correspond to the nature and complexity of its activities, based on an assessment of the information security risks inherent to those activities, and may be integrated within other existing management systems already implemented by the organisation.

(e) Without prejudice to the obligation to comply with the reporting requirements laid down in Regulation (EU) No 376/2014 and the requirements laid down in point IS.I.OR.200 (a)(13), the organisation may be approved by the competent authority not to implement the requirements referred to in points (a) to (d) and the related requirements contained in points IS.I.OR.205 through IS.I.OR.260, if it demonstrates to the satisfaction of that authority that its activities, facilities and resources, as well as the services it operates, provides, receives and maintains, do not pose any information security risks with a potential impact on aviation safety neither to itself nor to other organisations. The approval shall be based on a documented information security risk assessment carried out by the organisation or a third party in accordance with point IS.I.OR.205 and reviewed and approved by its competent authority.

The continued validity of that approval will be reviewed by the competent authority following the applicable oversight audit cycle and whenever changes are implemented in the scope of work of the organisation.

IS.I.OR.205 Information security risk assessment

(a) The organisation shall identify all its elements which could be exposed to information security risks. That shall include:

- (1) the organisation's activities, facilities and resources, as well as the services the organisation operates, provides, receives or maintains;
- (2) the equipment, systems, data and information that contribute to the functioning of the elements listed in point (1).

(b) The organisation shall identify the interfaces that it has with other organisations, and which could result in the mutual exposure to information security risks.

(c) With regard to the elements and interfaces referred to in points (a) and (b), the organisation shall identify the information security risks which may have a potential impact on aviation safety. For each identified risk, the organisation shall:

- (1) assign a risk level according to a predefined classification established by the organisation;
- (2) associate each risk and its level with the corresponding element or interface identified in accordance with points (a) and (b).

The predefined classification referred to in point (1) shall take into account the potential of occurrence of the threat scenario and the severity of its safety consequences. Based on that classification, and taking into account whether the organisation has a structured and repeatable risk management process for operations, the organisation shall be able to establish whether the risk is acceptable or needs to be treated in accordance with point IS.I.OR.210.

In order to facilitate the mutual comparability of risks assessments, the assignment of the risk level pursuant to point (1) shall take into account relevant information acquired in coordination with the organisations referred to in point (b).

(d) The organisation shall review and update the risk assessment carried out in accordance with points (a), (b) and, as applicable, points (c) or (e), in any of the following situations:

- (1) there is a change in the elements subject to information security risks;
- (2) there is a change in the interfaces between the organisation and other organisations, or in the risks communicated by the other organisations;
- (3) there is a change in the information or knowledge used for the identification, analysis and classification of risks;

(4) there are lessons learnt from the analysis of information security incidents.

(e) By derogation from point (c), organisations required to comply with Subpart C of Annex III (Part-ATM/ANS.OR) to Implementing Regulation (EU) 2017/373 shall replace the analysis of the impact on aviation safety by an analysis of the impact on their services as per the safety support assessment required by point ATM/ANS.OR.C.005. This safety support assessment shall be made available to the air traffic service providers to whom they provide services and those air traffic service providers shall be responsible for evaluating the impact on aviation safety.

IS.I.OR.210 Information security risk treatment

(a) The organisation shall develop measures to address unacceptable risks identified in accordance with point IS.I.OR.205, implement them in a timely manner and check their continued effectiveness. Those measures shall enable the organisation to:

- (1) control the circumstances that contribute to the effective occurrence of the threat scenario;
- (2) reduce the consequences on aviation safety associated with the materialisation of the threat scenario;
- (3) avoid the risks.

Those measures shall not introduce any new potential unacceptable risks to aviation safety.

(b) The person referred to in point IS.I.OR.240 (a) and (b) and other affected personnel of the organisation shall be informed of the outcome of the risk assessment carried out in accordance with point IS.I.OR.205, the corresponding threat scenarios and the measures to be implemented.

The organisation shall also inform organisations with which it has an interface in accordance with point IS.I.OR.205(b) of any risk shared between both organisations.

IS.I.OR.215 Information security internal reporting scheme

(a) The organisation shall establish an internal reporting scheme to enable the collection and evaluation of information security events, including those to be reported pursuant to point IS.I.OR.230.

(b) That scheme and the process referred to in point IS.I.OR.220 shall enable the organisation to:

- (1) identify which of the events reported pursuant to point (a) are considered information security incidents or vulnerabilities with a potential impact on aviation safety;
- (2) identify the causes of, and contributing factors to, the information security incidents and vulnerabilities identified in accordance with point (1), and address them as part of the information security risk management process in accordance with points IS.I.OR.205 and IS.I.OR.220;
- (3) ensure an evaluation of all known, relevant information relating to the information security incidents and vulnerabilities identified in accordance with point (1);
- (4) ensure the implementation of a method to distribute internally the information as necessary.

(c) Any contracted organisation which may expose the organisation to information security risks with a potential impact on aviation safety shall be required to report information security events to the organisation. Those reports shall be submitted using the procedures established in the specific contractual arrangements and shall be evaluated in accordance with point (b).

(d) The organisation shall cooperate on investigations with any other organisation that has a significant contribution to the information security of its own activities.

(e) The organisation may integrate that reporting scheme with other reporting schemes it has already implemented.

IS.I.OR.220 Information security incidents – detection, response and recovery

(a) Based on the outcome of the risk assessment carried out in accordance with point IS.I.OR.205 and the outcome of the risk treatment performed in accordance with point IS.I.OR.210, the organisation shall implement measures to detect incidents and vulnerabilities that indicate the potential materialisation of unacceptable risks and which may have a potential impact on aviation safety. Those detection measures shall enable the organisation to:

- (1) identify deviations from predetermined functional performance baselines;
- (2) trigger warnings to activate proper response measures, in case of any deviation.

(b) The organisation shall implement measures to respond to any event conditions identified in accordance with point (a) that may develop or have developed into an information security incident. Those response measures shall enable the organisation to:

- (1) initiate the reaction to the warnings referred to in point (a)(2) by activating predefined resources and course of actions;
 - (2) contain the spread of an attack and avoid the full materialisation of a threat scenario;
 - (3) control the failure mode of the affected elements defined in point IS.I.OR.205(a).
- (c) The organisation shall implement measures aimed at recovering from information security incidents, including emergency measures, if needed. Those recovery measures shall enable the organisation to:
- (1) remove the condition that caused the incident, or constrain it to a tolerable level;
 - (2) reach a safe state of the affected elements defined in point IS.I.OR.205(a) within a recovery time previously defined by the organisation.

IS.I.OR.225 Response to findings notified by the competent authority

- (a) After receipt of the notification of findings submitted by the competent authority, the organisation shall:
- (1) identify the root cause or causes of, and contributing factors to, the non-compliance;
 - (2) define a corrective action plan;
 - (3) demonstrate the correction of the non-compliance to the satisfaction of the competent authority.
- (b) The actions referred to in point (a) shall be carried out within the period agreed with the competent authority.

IS.I.OR.230 Information security external reporting scheme

The organisation shall implement an information security reporting system that complies with the requirements laid down in Regulation (EU) No 376/2014 and its delegated and implementing acts if that Regulation is applicable to the organisation.

(b) Without prejudice to the obligations of Regulation (EU) No 376/2014, the organisation shall ensure that any information security incident or vulnerability, which may represent a significant risk to aviation safety, is reported to their competent authority. Furthermore:

- (1) Where such an incident or vulnerability affects an aircraft or associated system or component, the organisation shall also report it to the design approval holder;
- (2) Where such an incident or vulnerability affects a system or constituent used by the organisation, the organisation shall report it to the organisation responsible for the design of the system or constituent.

(c) The organisation shall report the conditions referred to in point (b) as follows:

- (1) a notification shall be submitted to the competent authority and, if applicable, to the design approval holder or to the organisation responsible for the design of the system or constituent, as soon as the condition has been known to the organisation;
- (2) a report shall be submitted to the competent authority and, if applicable, to the design approval holder or to the organisation responsible for the design of the system or constituent, as soon as possible, but not exceeding 72 hours from the time the condition has been known to the organisation, unless exceptional circumstances prevent this.

The report shall be made in the form defined by the competent authority and shall contain all relevant information about the condition known to the organisation;

(3) a follow-up report shall be submitted to the competent authority and, if applicable, to the design approval holder or to the organisation responsible for the design of the system or constituent, providing details of the actions the organisation has taken or intends to take to recover from the incident and the actions it intends to take to prevent similar information security incidents in the future.

The follow-up report shall be submitted as soon as those actions have been identified, and shall be produced in the form defined by the competent authority.

IS.I.OR.235 Contracting of information security management activities

(a) The organisation shall ensure that when contracting any part of the activities referred to in point IS.I.OR.200 to other organisations, the contracted activities comply with the requirements of this Regulation and the contracted organisation works under its oversight. The organisation shall ensure that the risks associated with the contracted activities are appropriately managed.

(b) The organisation shall ensure that the competent authority can have access upon request to the contracted organisation to determine continued compliance with the applicable requirements laid down in this Regulation.

IS.I.OR.240 Personnel requirements

(a) The accountable manager of the organisation designated in accordance with Regulations (EU) No 1321/2014, (EU) No 965/2012, (EU) No 1178/2011, (EU) 2015/340, Implementing Regulation (EU) 2017/373 or Implementing Regulation (EU) 2021/664 as applicable referred to in Article 2(1) of this Regulation shall have corporate authority to ensure that all activities required by this Regulation can be financed and carried out. That person shall:

- (1) ensure that all necessary resources are available to comply with the requirements of this Regulation;
- (2) establish and promote the information security policy referred to in point IS.I.OR.200(a)(1);
- (3) demonstrate a basic understanding of this Regulation.

(b) The accountable manager shall appoint a person or group of persons to ensure that the organisation complies with the requirements of this Regulation, and shall define the extent of their authority. That person or group of persons shall report directly to the accountable manager, and shall have the appropriate knowledge, background and experience to discharge their responsibilities. It shall be determined in the procedures who deputises for a particular person in the case of lengthy absence of that person.

(c) The accountable manager shall appoint a person or group of persons with the responsibility to manage the compliance monitoring function referred to in point IS.I.OR.200(a)(12).

(d) Where the organisation shares information security organisational structures, policies, processes and procedures with other organisations or with areas of their own organisation which are not part of the approval or declaration, the accountable manager may delegate its activities to a common responsible person.

In such a case, coordination measures shall be established between the accountable manager of the organisation and the common responsible person to ensure adequate integration of the information security management within the organisation.

(e) The accountable manager or the common responsible person referred to in (d) shall have corporate authority to establish and maintain the organisational structures, policies, processes and procedures necessary to implement point IS.I.OR.200.

(f) The organisation shall have a process in place to ensure that they have sufficient personnel on duty to carry out the activities covered by this Annex.

(g) The organisation shall have a process in place to ensure that the personnel referred to in point (f) have the necessary competence to perform their tasks.

(h) The organisation shall have a process in place to ensure that personnel acknowledge the responsibilities associated with the assigned roles and tasks.

(i) The organisation shall ensure that the identity and trustworthiness of the personnel who have access to information systems and data subject to the requirements of this Regulation are appropriately established.

IS.I.OR.245 Record-keeping

(a) The organisation shall keep records of its information security management activities

(1) The organisation shall ensure that the following records are archived and traceable:

(i) any approval received and any associated information security risk assessment in accordance with point IS.I.OR.200(e);

(ii) contracts for activities referred to in point IS.I.OR.200(a)(9);

(iii) records of the key processes referred to in point IS.I.OR.200(d);

(iv) records of the risks identified in the risk assessment referred to in point IS.I.OR.205 along with the associated risk treatment measures referred to in point IS.I.OR.210;

(v) records of information security incidents and vulnerabilities reported in accordance with the reporting schemes referred to in points IS.I.OR.215 and IS.I.OR.230;

(vi) records of those information security events which may need to be reassessed to reveal undetected information security incidents or vulnerabilities.

(2) The records referred to in point (1)(i) shall be retained at least until 5 years after the approval has lost its validity.

(3) The records referred to in point (1)(ii) shall be retained at least until 5 years after the contract has been amended or terminated.

(4) The records referred to point (1)(iii), (iv) and (v) shall be retained at least for a period of 5 years.

(5) The records referred to in point (1)(vi) shall be retained until those information security events have been reassessed in accordance with a periodicity defined in a procedure established by the organisation.

(b) The organisation shall keep records of qualification and experience of its own staff involved in information security management activities

(1) The personnel's qualification and experience records shall be retained for as long as the person works for the organisation, and for at least 3 years after the person has left the organisation.

(2) Members of the staff shall, upon their request, be given access to their individual records. In addition, upon their request, the organisation shall provide them with a copy of their individual records on leaving the organisation.

(c) The format of the records shall be specified in the organisation's procedures.

(d) Records shall be stored in a manner that ensures protection from damage, alteration and theft, with information being identified, when required, according to its security classification level. The organisation shall ensure that the records are stored using means to ensure integrity, authenticity and authorised access.

IS.I.OR.250 Information security management manual (ISMM)

(a) The organisation shall make available to the competent authority an information security management manual (ISMM) and, where applicable, any referenced associated manuals and procedures, containing:

- (1) a statement signed by the accountable manager confirming that the organisation will at all times work in accordance with this Annex and with the ISMM. If the accountable manager is not the chief executive officer (CEO) of the organisation, then the CEO shall countersign the statement;
- (2) the title(s), name(s), duties, accountabilities, responsibilities and authorities of the person or persons defined in point IS.I.OR.240(b) and (c); ▼B
- (3) the title, name, duties, accountabilities, responsibilities and authority of the common responsible person defined in point IS.I.OR.240(d), if applicable;
- (4) the information security policy of the organisation as referred to in point IS.I.OR.200(a)(1);
- (5) a general description of the number and categories of staff and of the system in place to plan the availability of staff as required by point IS.I.OR.240;
- (6) the title(s), name(s), duties, accountabilities, responsibilities and authorities of the key persons responsible for the implementation of point IS.I.OR.200, including the person or persons responsible for the compliance monitoring function referred to in point IS.I.OR.200(a)(12);
- (7) an organisation chart showing the associated chains of accountability and responsibility for the persons referred to in points (2) and (6);
- (8) the description of the internal reporting scheme referred to in point IS.I.OR.215;
- (9) the procedures that specify how the organisation ensures compliance with this Part, and in particular:
 - (i) the documentation referred to in point IS.I.OR.200(c);
 - (ii) the procedures that define how the organisation controls any contracted activities as referred to in point IS.I.OR.200(a)(9);
 - (iii) the ISMM amendment procedure referred to in point (c);
- (10) the details of currently approved alternative means of compliance.

- (b) The initial issue of the ISMM shall be approved and a copy shall be retained by the competent authority. The ISMM shall be amended as necessary to remain an up-to-date description of the ISMS of the organisation. A copy of any amendments to the ISMM shall be provided to the competent authority.
- (c) Amendments to the ISMM shall be managed in a procedure established by the organisation. Any amendments that are not included within the scope of this procedure and any amendments related to the changes referred to in point IS.I.OR.255(b) shall be approved by the competent authority.
- (d) The organisation may integrate the ISMM with other management expositions or manuals it holds, provided there is a clear cross reference that indicates which portions of the management exposition or manual correspond to the different requirements contained in this Annex.

IS.I.OR.255 Changes to the information security management system

- (a) Changes to the ISMS may be managed and notified to the competent authority in a procedure developed by the organisation. This procedure shall be approved by the competent authority.
- (b) With regard to changes to the ISMS not covered by the procedure referred to in point (a), the organisation shall apply for and obtain an approval issued by the competent authority.

With regard to those changes:

- (1) the application shall be submitted before any such change takes place, in order to enable the competent authority to determine continued compliance with this Regulation and to amend, if necessary, the organisation certificate and related terms of approval attached to it;
- (2) the organisation shall make available to the competent authority any information it requests to evaluate the change;
- (3) the change shall be implemented only upon receipt of a formal approval by the competent authority;
- (4) the organisation shall operate under the conditions prescribed by the competent authority during the implementation of such changes.

IS.I.OR.260 Continuous improvement

- (a) The organisation shall assess, using adequate performance indicators, the effectiveness and maturity of the ISMS. That assessment shall be carried out on a calendar basis predefined by the organisation or following an information security incident.
- (b) If deficiencies are found following the assessment carried out in accordance with point (a), the organisation shall take the necessary improvement measures to ensure that the ISMS continues to comply with the applicable requirements and maintains the information security risks at an acceptable level. In addition, the organisation shall reassess those elements of the ISMS affected by the adopted measures. ▼ B